

KESAVANANDA BHARATI v STATE OF KERALA (1973)
OPINION OF A.N. RAY, J.

=====

A.N. Ray, J.

788. The validity of the Constitution 24th, 25th and 29th Amendment Acts is challenged.

The Constitution 24th Amendment Act amended Article 368. Article 368 in the unamended form speaks of "Amendment of this Constitution" and how the Constitution

shall stand amended. The Constitution 24th Amendment Act enacts that Parliament may

in exercise of its constituent power amend by way of addition, variation or repeal any

provision of this Constitution in accordance with the procedure laid down in that Article.

The other part of the amendment is that nothing in Article 13 shall apply to any amendment under Article 368. The Constitution 25th Amendment Act has amended Article 31(2) and also Article 31(2A). The effect of these two amendments with regard to

Articles 31(2) and 31 (2A) is two-fold. First, no property shall be compulsorily acquired

or requisitioned save for a public purpose and save by authority of law which provides for

an amount which may be fixed by law or which may be determined in accordance with

such principles. Secondly, nothing in Article 19(1)(f) shall affect any law as is referred to

or

in Article 31(2). The second part of the Constitution 25th Amendment Act is introduction

of Article 31C which enacts that notwithstanding anything contained in Article 13 no law

giving effect to the policy of the State towards securing principles prescribed in Clauses

(b) and (c) of Article 39 shall be deemed to be void on the ground that it is inconsistent

with or takes away or abridges any of the rights conferred by Articles 14, 19 and 31; and

no law containing a declaration that it is for giving effect to such policy shall be called

in

question in any court on the ground that it does not give effect to such policy.

By the

Constitution 29th Amendment Act the Kerala Land Reforms Amendment Act 1969 and the Kerala Land Reforms Amendment Act 1971 have been introduced into the Ninth Schedule of the Constitution.

789. The principal question which falls for determination is whether the power to amend

is under any express limitation of Article 13(2). Another question is whether there are

implied and inherent limitation on the power of amendment. Can there be any implied or

inherent limitation in the face of any express power of amendment without any exception? Question have been raised that essential features of the Constitution cannot be

amended. Does the Constitution admit of distinction between essential and non-essential

features ? Who is to determine what the essential features are? Who is the authority to pronounce as to what features are essential? The preeminent question is whether the power of amendment is to be curtailed or restricted, though the Constitution does not contain any exception to the power of amendment. The people gave the Constitution to the people. The people gave the power of amendment to Parliament. Democracy proceeds on the faith and capacity of the people to elect their representatives and faith in the representatives to represent the people. Throughout the history of man-kind if any motive power has been more potent than another it is that of faith in themselves. The ideal of faith in ourself is of the greatest help to us. Grote the historian of Greece said that the diffusion of Constitutional morality, not merely among the majority of any community but throughout the whole, is the indispensable condition of a government at once free and peaceful. By Constitutional morality Grote meant a paramount reverence for the forms of the Constitution, with a perfect confidence in the bosom of every citizen amidst the bitterness of party contest that the forms of the Constitution will not be less sacred in the eyes of opponents than in his own. The question is "He that planted the tree, shall he not hear? or he that made the eye, shall he not see".

790. The real question is whether there is any power to amend the Constitution and if so whether there is any limitation on the power. The answer to this question depends on these considerations. First, what is the correct ratio and effect of the decision in *I.C. Golak Nath and Ors. v. State of Punjab and Anr.* (1967) 2 S.C.R. 762. Second, should that ratio be upheld. Third, is there any limitation on the power to amend the Constitution. Fourth, was the 24th Amendment validly enacted. If it was, is there any inherent and implied limitation on that power under Article 368 as amended.

791. The scope and power under Article 368 as it stood prior to the Constitution (24th) Amendment Act to amend the Constitution falls for consideration.

792. Two principal questions arise. First, is the Constitution as well as an amendment to the Constitution law within the meaning of Article 13(2). Second, is there any implied and inherent limitation on the power of amendment apart from Article 13(2).

793. Mr. Palkhivala contends that the unamended Article 368 was subject to Article 13(2). It is said that amendment of the Constitution is law, and, therefore, any law which contravenes fundamental rights is void. It is also said that Article 368 does not prevail over or override Article 13. The four bars under Article 13 are said to be

these. The bar is imposed against the State, that is to say the totality of all the forces of the State. Second, all categories of law are covered by the bar, whether they are Constitutional amendments or bye-laws or executive Orders and Notifications. Third, all laws in force under Article 372 and all laws to be brought into force at any future date are brought within the scope of this bar. Fourth, the effect of the bar is to render the law void.

794. Mr. Palkhivala said that the preamble makes it clear that the object of the Constitution is to secure basic human freedom, and this guarantee will be meaningless if the Legislature against whom the guarantee is to operate is at liberty to abrogate the guarantees. It is said that law is comprehensive enough to include both ordinary law and Constitutional law. The various forms of oath in the Third Schedule of the Constitution refer to "Constitution as by law established". It is, therefore, submitted by the petitioner that the Constitution itself was originally established by law and every amendment has likewise to be established by law in order to take effect. It is emphasised that the Constitutional amendment is a law, and, therefore, the word "law" in Article 13(2) includes Constitutional amendments.

795. The Attorney General and Mr. Seervai said that the Constitution is the supreme higher law. An amendment to the Constitution is in exercise of constituent power. The amending power is not a legislative power. Law in Article 13(2) embodies the doctrine of ultra vires to render void any law enacted under the Constitution.

796. This Court in *Shankari Prasad Singh Deo v. Union of India and State of Bihar* (1952) S.C.R. 89 and *Sajjan Singh v. State of Rajasthan* (1965) 1 S.C.R. 933 examined the power to amend the Constitution.

797. In *Shankari Prasad* case the Constitution First Amendment Act was challenged. The principal contention was that the First Amendment in so far as it purported to take away or abridge the rights conferred by Part III of the Constitution fell within the prohibition of Article 13(2) of the Constitution.

798. The unanimous view of this Court in *Shankari Prasad* case was that although law must ordinarily include Constitutional law there is a clear demarcation between ordinary

law which is made in exercise of legislative power and Constitutional law which is made in exercise of constituent power. In the absence of a clear indication to the contrary it is difficult to hold that the framers of the Constitution intended to make the fundamental rights immune of Constitutional amendment. The terms of Article 368 are general to empower Parliament to amend the Constitution without any exception. Article 13(2) construed in the context of Article 13 means that law in Article 13(2) would be relateable to exercise of ordinary legislative power and not amendment to the Constitution. 799. The Constitution Fourth Amendment Act came into existence on 5 October, 1963. The Constitution Seventeenth Amendment Act came into force on 20 June, 1964. By the Seventeenth Amendment Act Article 31A Clause (1) was amended by inserting one more proviso. A fresh Sub-clause (a) was substituted for original Sub-clause (a) of Clause (2) of Article 31 retrospectively. 44 Acts were added in the Ninth Schedule. The validity of the Seventeenth Amendment was challenged before this Court in Sajjan Singh case. 800. The main contention in Sajjan Singh case was that the power prescribed by Article 226 was likely to be affected by the Seventeenth Amendment, and, therefore, it was necessary that the special procedure laid down in the proviso to Article 368 should have been followed. The Seventeenth Amendment Act was said to be invalid because that procedure was not followed. 801. The majority view of this Court in Sajjan Singh case was that Article 368 plainly and unambiguously meant amendment of all the provisions of the Constitution. The word "law" in Article 13(2) was held not to take in the Constitution Amendment Acts passed under Article 368. It was also said that fundamental rights in Article 19 could be regulated as specified in Clauses (2) to (6) and, therefore, it could not be said to have been assumed by the Constitution makers that fundamental rights were static and incapable of expansion. It was said that the concept of public interest and other important considerations which are the basis of Clauses (2) to (6) in Article 19 "may change and may even expand". The majority view said that "The Constitution makers knew that Parliament could be competent to make amendments in those rights (meaning thereby fundamental rights) so as to meet the challenge of the problem which may arise in the course of socio economic progress and the development of the country". 802. The minority view in Sajjan Singh case doubted the correctness of the unanimous view in Shankari Prasad case. The doubt was on a question as to whether fundamental rights could be abridged by exercise of power under Article 368. The minority

view in

Sajjan Singh case was that the rights of society are made paramount and are placed above

those of the individual. But the minority view was also that though fundamental rights

could be restricted under Clause (2) to (6) of Article 19 there could be no "removal or

debilitation" of such rights.

803. In Golak Nath case the Punjab Security of Land Tenures Act, 1953 was challenged

as violative of fundamental rights and as not being protected by the Constitution First

Amendment Act, 1951, the Constitution Fourth Amendment Act, 1955 and the Constitution Seventeenth Amendment Act, 1964. The validity of the Mysore Reforms Act, 1962 as amended by Act 14 of 1965 was also challenged on the same grounds. The

Punjab Act and the Mysore Act were included in the Ninth Schedule. It was common case that if the Seventeenth Amendment Act adding the Punjab Act and the Mysore Act

in the Ninth Schedule was valid the two Acts could not be impugned on any ground.

804. The majority decision of this Court in Golak Nath case was that an amendment of

the Constitution was law within the meaning of Article 13(2). There were two reasonings

in the majority view arriving at the same conclusion. The majority view where Subba

Rao, C.J., spoke was as follows: The power to amend the Constitution is derived from

Articles 245, 246 and 248 of the Constitution and not from Article 368. Article 368 deals

only with procedure. Amendment is a legislative process. Amendment is law within the

meaning of Article 13. Therefore, if an amendment takes away or abridges rights conferred by Part III of the Constitution it is void. The Constitution First Amendment

Act, the Constitution Fourth Amendment Act and the Constitution Seventeenth Amendment Act abridged the scope of fundamental rights. On the basis of earlier decisions of this Court the Constitution Amendment Acts were declared to be valid. On

the application of the doctrine of prospective over-ruling the amendments will continue to

be valid. Parliament will have no power from the date of this decision (meaning thereby

the decision in Golak Nath case) to amend any of the provisions of Part III of the

Constitution so as to take away or abridge the fundamental rights. The Constitution

Seventeenth Amendment Act holds the field. Therefore, the Punjab Act and the Mysore

Act cannot be questioned.

805. The concurring majority view of Hidayatullah, J. was this. The fundamental rights

are outside the amendatory process if the amendment seeks to abridge or take away any

of the rights. The First, the Fourth and the Seventh Amendment Acts being Part of the Constitution by acquiescence for a long time cannot be challenged. These Amendment Acts contain authority for the Seventeenth Amendment Act. Any further inroad into fundamental rights as they exist on the date of the decision will be illegal and unconstitutional unless it complies with Part III in general and Article 13(2) in particular.

The constituent body will have to be Convened for abridging or taking away fundamental rights. The Punjab Act and the Mysore Act are valid not because they are included in the Ninth Schedule of the Constitution but because they are protected by Article 31A and the assent of the President.

806. The two views forming the majority arrived at the same conclusion that an amendment of the Constitution being law within the meaning of Article 13(2) would be unconstitutional if such an amendment abridged any fundamental right. The leading majority view did not express any final opinion as to whether fundamental rights could be abridged by Parliament exercising its residuary power and calling a Constituent Assembly "for making a new Constitution or radically changing it". The concurring majority view held that the fundamental rights could be abridged by suitably amending Article 368 to convoke Constituent Assembly. The concurring majority view was that a Constituent Assembly could be called by passing a law under Entry 97 of List I and then that Assembly would be able to abridge or take away fundamental rights.

807. The minority view of five learned Judges expressed in 3 judgments as against the majority view of six learned Judges in Golak Nath case was this. 808. Wanchoo, J. spoke for himself and two concurring learned Judges as follows. Article 368 contains both the power and the procedure for amendment of the Constitution. It is incomprehensible that the residuary power of Parliament will apply to amendment of the Constitution when the procedure for amendment speaks of amendment by ratification by the States. When an entire part of the Constitution is devoted to amendment it will be more appropriate to read Article 368 as containing the power to amend because there is no specific mention of amendment in Article 248 or in any Entry of List I. The Constitution is the fundamental law and without express power to affect change legislative power cannot effect any change in the Constitution. Legislative Acts

are passed under the power conferred by the Constitution. Article 245 which gives power to make law for the whole or any part of India is subject to the provisions of the Constitution. If, however, power to amend is in Article 248 read with the

residuary Entry

in List I that power is to be exercised subject to the Constitution and it cannot change the Constitution which is the fundamental law. It is because of the difference between the fundamental law and the legislative power under the Constitution that the power to amend cannot be located in the Residuary Entry which is law making power under the Constitution.

809. Article 368 confers power on Parliament subject to the procedure provided therein for amendment of any provision of the Constitution, It is impossible to introduce in the concept of amendment, any idea of improvement. The word "amendment" must be given its full meaning. This means that, by amendment an existing Constitution or law can be changed. This change can take the form either of addition to the existing provisions, or alteration of existing provisions and their substitution by others or deletion of certain provisions altogether. An amendment of the Constitution is not an ordinary law made under the powers conferred under Chapter I of Part XI of the Constitution, and therefore, it cannot be subject to Article 13(2). It is strange that the power conferred by Article 368 will be limited by putting an interpretation on the word "law" in Article 13(2) which will include Constitutional law also. The possibility of the abuse of any power has no relevance in considering the question about the existence of the power itself. The power of amendment is the safety valve which to a large extent provides for stable growth and makes violent revolution more or less unnecessary.

810. The two other supporting minority views were these. Bachawat, J. arrived at these conclusions. No limitation on the amending power can be gathered from the language of Article 368. Therefore, each and every part of the Constitution may be amended under

Article 368. The distinction between the Constitution and the laws is so fundamental that the Constitution is not regarded as a law or a legislative Act. It is because a Constitution Amendment Act can amend the Constitution that it is not a law and Article 368 avoids all reference to law making by Parliament. As soon as a Bill is passed in conformity with Article 368 the Constitution stands amended in accordance with the terms of the Bill.

Amendment or change in certain Articles does not mean necessarily improvement. 811. Ramaswami, J. expressed these views. The definition of law in Article 13(3) does include in terms a Constitutional amendment though it includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage. The language of Article 368 is perfectly general and empowers Parliament to amend the Constitution without any exception whatever. If it had been intended by the Constitution makers that the fundamental right guaranteed under Part III should be completely outside the scope of Article 368 it is reasonable to assume that they would have made an express provision to that effect. The expression "fundamental" does not lift the fundamental rights above the Constitution itself. In a matter of Constitutional amendment it is not permissible to assume that there will be abuse of power and then utilise it as a test for finding out the scope of amending power.

812. The majority view in Golak Nath case was that an amendment of the Constitution pursuant to Article 368 is law within the meaning of Article 13(2), and, therefore, an amendment of the Constitution abridging fundamental rights will be void. The majority view was on the basis that there was conflict between Article 13(2) and Article 368 and this basis was the result of the nature and quality of fundamental rights in the scheme of the Constitution.

813. It is, therefore, to be seen at the threshold as to whether there is any conflict between Article 13(2) and Article 368, namely, whether amendment of Constitution is law within the meaning of law in Article 13(2). Article 368 provides in clear and unambiguous terms that an amendment bill after compliance with the procedure stated therein and upon the President giving assent to such bill the Constitution shall stand amended in accordance with the terms of the bill. This Constitutional mandate does not admit or provide any scope for any conflict with any other Article of the Constitution. This is the fundamental law. No other Article of the Constitution has limited its scope. The moment the President gives his assent to an amendment bill the amendment becomes a part of the Constitution. There cannot be a law before the assent of the President. Therefore, the validity of any such supposed law cannot arise. An amendment of the Constitution becomes a part of the fundamental law. The legality of an amendment is no more open to attack than of the Constitution itself. The opening part of amended Article 368, viz., "An Amendment of

this Constitution may be initiated" and its concluding part before the proviso, viz., "The Constitution shall stand amended" show clearly that the whole Constitution can be amended and no part of the Constitution is excluded from the amendment. Herein lies the vital distinction between the Constitution and the ordinary law.

814. The distinction lies in the criterion of validity. The validity of an ordinary law can be questioned. When it is questioned it must be justified by reference to a higher law. In the case of the Constitution the validity is inherent and lies within itself. The validity of Constitutional law cannot be justified by reference to another higher law. Every legal rule or norm owes its validity to some higher legal rule or norm. The Constitution is the basic norm. The Constitution generates its own validity. It is valid because it exists. The Constitution is binding because it is the Constitution. Any other law is binding only if and in so far as it is in conformity with the Constitution. The validity of the Constitution lies in the social fact of its acceptance by the community. The Constitutional rules are themselves the basic rules of the legal system. The Constitution prevails over any other form of law not because of any provision to that effect either in the Constitution or elsewhere but because of the underlying assumption to that effect by the community. If Parliament passes a law under any of the items in the Union List abridging a fundamental right and also provides in that law itself that it shall not be invalid notwithstanding anything in Article 13 or Part III of the Constitution, yet the law made by Parliament will be invalid to the extent of its inconsistency with Part III of the Constitution. It will be invalid because Article 13 occurs in the Constitution which is supreme. The impugned Act cannot enact that it will be valid notwithstanding the Constitution.

815. The real distinction is that Constitutional law is the source of all legal validity and is itself always valid. Ordinary law on the other hand must derive its validity from a higher legal source, which is ultimately the Constitution. Law in Article 13(2) of the Constitution could only mean that law which needs validity from a higher source and which can and ought to be regarded as invalid when it comes in conflict with higher law. It cannot possibly include a law which is self validating and which is never invalid. The definition of law in Article 13 enumerates more or less exhaustively all forms of law

which need validation from higher source and which are invalid when they are in conflict with the Constitution. The definition does not mention Constitutional amendment. It is because an amendment being the Constitution itself can never be invalid. An amendment is made if the procedure is complied with. Once the procedure is complied with it is a part of the Constitution,

816. The expression "law" has been used in several Articles in Part III of the Constitution. These are Articles 17, 19 Clauses (2) to (6), 21, 22, 25, 26, 31, 33, 34 and 35. To illustrate, Article 17 states that untouchability is abolished and its practice in any form is forbidden. Article 17 also states that the enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law. The word "law" in Article 17 does not mean the Constitution. The Constitution leaves the matter of enforcement and punishment to law.

817. The foundation of the majority view in Golak Nath case that Article 13(2) takes in Constitutional law within its purview is that an amendment is a legislative process and is an exercise of legislative power. The majority relied on the decision in *McCawley v. The King* (1920) A.C. 691 and the *Bribery Commissioner v. Pedrick Ranasinghe* 1965 A.C. 172 in support of the view that there is no distinction between ordinary legislation and Constitutional amendment. The basis of the unanimous decision in *Shankari Prasad case* was on the distinction between legislative power and the constituent power. Therefore, the majority view in *Golak Nath case* overruled the view in *Shankari Prasad case*. Article 13(2) expressly declares that law taking away or abridging the rights conferred by Part III shall be void. This principle embodies the doctrine of ultra vires in a written Constitution.

The observation of Kania, C.J. in *A.K. Gopalan v. The State of Madras* 1950 S.C.R. 88 that Article 13(2) was introduced ex majore cautela because even if Article 13 were not there any law abridging or taking away fundamental rights would be void to the extent of contravention or repugnancy with fundamental rights in Part III refers to the doctrine of ultra vires which is a necessary implication of our Constitution. Therefore, there is no distinction between Article 13(2) which expressly affirms the doctrine of ultra vires and the necessary implication of the doctrine of ultra vires which has been applied to every part of our Constitution. If the express doctrine of ultra vires prevented an

amendment of
Part III of the Constitution contrary to its terms, equally an amendment of
other parts of
the Constitution contrary to their terms would be prevented by the implied
doctrine of
ultra vires. The result would be that an amendment of the Constitution which
contravened
the terms of the existing Constitution would be void. This would result in
absurdity. That
is why Article 368 expressly provides for the amendment of the Constitution.
818. Mr. Palkhivala on behalf of the petitioner submitted that Constitution
amendment
was law, within Article 13(2) and was void to the extent to which it contravened
the
fundamental rights and Article 368 did not prevail over or override Article 13
for these
reasons. Reference was made to the form of oath in the Third Schedule which uses
the
words "Constitution as by law established". This is said to mean that our
Constitution
was originally established by law and, therefore, every amendment thereto was
likewise
to be established by law. Article 13(1) is also said to cover Constitutional law
because
though Article 395 repealed the Indian Independence Act, 1947 and the Government
of
India Act 1935 the Constitutional laws of the Indian Princely States or some
other
Constitutional laws of British India were in existence. Therefore, the word
"Law" in
Article 13(2) will also include Constitutional law. The word "law" in Article
13(2) will in
its ordinary sense embrace Constitutional law, and there is no reason for
reading the word
"law", in a restricted sense to confine it to ordinary laws. The real question
is not whethe
r
there are any words of limitation in Articles 368 but whether there are any
words of
limitation in Article 13(2). It was amplified to mean if a limitation has to be
read in eith
er
of the two Articles 368 and 13(2) there is no reason why it should be read in
such a way
as to enable parliament to take away or abridge fundamental rights.
819. In Article 368 the word "law" is not used at all. Consequently the language
of
Article 368 raises no question about the applicability of Article 13(2). It is
inconceivable
that Constitutional laws of Indian Princely States or Constitutional laws of
British India
exist as Constitutional laws after the coming into existence of our
Constitution. Our
Constitution is the only fundamental law. All other laws which continue under
our
Constitution are ordinary laws. The fundamental error in including amendment of
the
Constitution in law under Article 13(2) is by overlooking the vital difference
between the

constituent and the legislative powers and in wrongly equating these powers. The definition of "State" in Article 12 includes Parliament. Part V of the Constitution contains provisions relating to the powers of the three organs of the Union Government. Chapter II of Part V relates to the legislative power of Parliament. Under Article 79 Parliament is the Union Legislature provided for by the Constitution. Therefore, law in Article 13(2) must mean a law of Parliament functioning under Chapter II of Part V. It cannot mean the Constitution itself or an amendment of the Constitution. The reason is that the Constitution with its amendment is the supreme authority and the three organs of the State derive their powers from this supreme authority.

820. The word "law" when used in relation to Constitutional law which is fundamental law and ordinary law is not a mere homonym. If the word "law" here is not a mere homonym then it is a mistake to think that all the instances to which it is applied must possess either a single quality or a single set of qualities in common. There is some general test or criterion whereby the rules of the fundamental law or the rules of the system of ordinary laws are tested and identified. When the word "law" is spoken in connection with Constitutional law it cannot have the same meaning as ordinary law. It is not arbitrary to use the word "law" in relation to Constitutional law in spite of its difference from ordinary law.

821. Mr. Palkhivala contended that Constitutional laws of Princely States and of British India prior to our Constitution survived as laws in force under Article 372. Article 372 became necessary to make a provision similar to Section 292 of the Government of India Act, 1935 following the repeal of the 1935 Act and the Indian Independence Act, 1947. The purpose of Article 372 is to negative the possibility of any existing law in India being held to be no longer in force by reason of the repeal of the law authorising its enactment. A saving clause of the type of Article 372 is put in to avoid challenge to laws made under the repealed Constitution. The total volume of law in the then British India had the legal authority up to 14 August 1947 by reason of the Government of India Act 1935. The Government of India Act 1935 with adaptations and the Indian Independence Act 1947 preserved the authority of those laws upto 25 January 1950. In so far as it is indisputable that the Government of India Act, 1935 and the Indian Independence Act, 1947 were repealed, the repeal of those Acts was repeal of the Constitutional law represented by those Acts. By our Constitution there was a repeal of all other Constitutional

laws

operating in our country. There was repeal of "Constitution" in Princely States. 822. A distinction arises between the provisions of a Constitution which are described as

Constitutional law and provisions of a statute dealing with a statute which is treated to

have Constitutional aspects. An example of the latter type is a statute which provides for

the judicature. Mr. Seervai rightly said that the two distinct senses of Constitutional law

are mixed up in the contention of Mr. Palkhivala. In the first sense, Constitutional law is

applicable to a provision of the Constitution, and in the second sense, to a law enacted

under the Constitution dealing with certain classes of subject matter. Laws of the second

class fluctuate. An amendment of the Constitution becomes a part of the Constitution

itself. Mr. Seervail rightly contended that in order to show that law in Article 13(2)

includes amendment of the Constitution it is also necessary to show that the expression

"laws in force" in Article 13(1) includes Constitution amendment or the Constitution

itself It is impossible to accept the submission that the word "law" in Article 13(2)

includes the Constitution. The Constitution itself cannot include the Constitution. It is th

e

Constitution which continues the laws in force. Therefore, law in Article 13 is law other

than the Constitution and a fortiori it is other than amendment to the Constitution.

823. In non-British territory on the Constitution coming into force the Constitution of

Princely States lost its character as Constitutional law in the strict sense. It is in that

strict

sense that Wanchoo, J. rightly said in Golak Nath case that on our Constitution coming

into existence no other Constitutional law survived. Article 393 of our Constitution says

that the Constitution may be called the "Constitution of India". The Preamble recites that

the People in the Constituent Assembly gave this Constitution meaning thereby the

Constitution of India. Therefore, the people gave themselves no other Constitution. All

other laws whatever their previous status as strict Constitutional law became subordinate

laws subject to the provisions of our Constitution and this position is clear from the

language of Article 372.

824. In a broad sense law may include the Constitution and the law enacted by the

legislature. There is however a clear demarcation between ordinary law in exercise of

legislative power and Constitutional law which is made in exercise of constituent power.

Therefore, a power to amend the Constitution is different from the power to amend ordinary law. It was said by Mr. Palkhivala that legislative power is power to make law and constituent power is the power to make or amend Constitutional law and since law in its ordinary sense, includes Constitutional law the legislative power is the genus of which the constituent power is the species. The difference between legislative and constituent power in a flexible or uncontrolled Constitution is conceptual depending upon the subject matter. A Dog Act in England is prima facie made in exercise of legislative power. The Bill of Rights was made in the exercise of constituent power as modifying the existing Constitutional arrangement But this conceptual difference does not produce different legal consequences, since the provisions of a Dog Act inconsistent with the earlier provisions of the Bill of Rights would repeal those provisions pro tanto. In a rigid or controlled Constitution the distinction between legislative power and constituent power is not only conceptual but material and vital in introducing legal consequences. In a controlled Constitution it is not correct to say that legislative power is the genus of which constituent power is the species. The question immediately arises as to what the differentia is which distinguishes that species from other species of the same genus. It would be correct to say that the law making power is the genus of which legislative power and constituent power are the species. The differentia is found in the different procedure prescribed for the exercise of constituent power as distinguished from that prescribed for making ordinary laws. The distinction between legislative power and constituent power is vital in a rigid or controlled Constitution, because it is that distinction which brings in the doctrine that a law ultra vires the Constitution is void, since the Constitution is the touchstone of validity and that no provision of the Constitution can be ultra vires.

825. The legislatures constituted under our Constitution have the power to enact laws on the topics indicated in Lists I to III in the Seventh Schedule or embodied specifically in certain provisions of the Constitution. The power to enact laws carries with it the power to amend or repeal them. But these powers of legislatures do not include any power to amend the Constitution, because it is the Constituent Assembly which enacted the Constitution and the status given by Article 368 to Parliament and the State legislatures,

is the status of a Constituent Assembly. The distinction between the power to amend the Constitution and the ordinary power to enact laws is fundamental to all federal Constitution. When Parliament is engaged in the amending process it is not legislating. It is exercising a particular power which is sui generis bestowed upon it by the amending clause in the Constitution. Thus an amendment of the Constitution under Article 368 is constituent law and not law within the meaning of Article 13(2) and law as defined in Article 13(3)(a).

826. The procedure that Bill for amendment of the Constitution has to be introduced in either House of Parliament and passed by both Houses does not alter the status of Parliament to amend the Constitution as a Constituent Assembly and does not assimilate it to that of the Union legislature. At this stage it may be stated that in Shankari Prasad case it was said that law in general sense may include the Constitution and the procedure of amendment is assimilated to ordinary legislative procedure. Assimilation of procedure does not make both the procedure same. Nor are the two separate powers to be lost sight of. The Constituent Assembly which was summoned on 19 December, 1946 to frame a Constitution was also invested after independence with legislative power. It framed the Constitution as the Constituent Assembly. It enacted ordinary laws as legislature. Under Article V of the American Constitution the Congress functions not as a legislature but as a Constituent Assembly. In Australia when a Bill for amendment has to be passed by Commonwealth Parliament and then has to be submitted to the verdict of the electorate the process is not ordinary legislative process of the Commonwealth Parliament. In our Constitution when the amendment falls within the proviso to Article 368 it requires that the amendment must be ratified by at least one half of the State legislatures and the process is radically different from ordinary legislative procedure. The Union legislature acting under Chapter II of Part V has no connection with the State legislatures. Therefore, when amendment is affected under the proviso to Article 368 Parliament does not act as a Union legislature. The feature that in the passage of the bill for amendment of the Constitution the House of Parliament has to adopt the procedure for ordinary legislation has little bearing. If the intention of the framers of the Constitution was to leave to the Union legislature the power to effect amendments of the Constitution it would have been sufficient to insert a provision in Chapter II of Part V in that behalf without enacting a separate part and inserting a provision therein for amendment of the Constitution.

827. Under Clause (e) of Article 368 the Article itself can be amended. Therefore, an amendment of Article 368 providing that provisions in Part III can be amended

will be

Constitutional. If it was intended by Article 13(2) to exclude Part III altogether from the operation of Article 368 Clause (e) would not have been enacted. The Constituent Assembly thus enacted Article 368 so that the power to amend should not be too rigid nor too flexible. Clause (s) of Article 368 requires an amendment to be ratified by not less than half the number of States. The title of Part XX and the opening words of Article 368 show that a provision is being made for "amendment of this Constitution" which in its ordinary sense means every part of the Constitution. This would include Article 368 itself. There is no limitation imposed upon or deception made to the amendments which can be made. It is not permissible to add to Article 368 words of limitation which are not there.

828. The initiative for an amendment of the Constitution is with Parliament and not with the States. A bill for amendment is to be introduced in either House of Parliament. Again, a bill must be passed by each House by not less than two thirds of the members present and voting, the requisite quorum in each House being a majority of its total membership.

In cases coming under the proviso the amendment must be ratified by the legislatures of not less than half the number of States. Ordinary legislative process is very different; A bill initiating a law may be passed by majority of members present and voting at a sitting of each House and at a joint sitting of House, the quorum for the meeting of either House being one tenth of the total members of the House.

829. The legislative procedure is prescribed in Articles 107 to 111 read with Article 100.

Article 100 states "save as otherwise provided in the Constitution all questions at any sitting of either House or joint sitting shall be determined by a majority of votes of the members present and voting". Though Article 368 falls into two parts of the Article is one integral whole as is clear from the words "the amendment shall also require to be ratified". The first part of Article 368 requires that a bill must be passed in each House

(1) by majority of the total membership of that House and (2) by a majority of not less than two thirds of the members of that House present and voting. These provisions rule out a joint sitting of either House under Article 108 to resolve the disagreement between the two Houses. Again the majority required to pass a bill in each House is not a majority of members of that House present and voting as in Article 100 but a majority of the total membership of each House and a majority of not less than two thirds of the

members of that House present and voting. These provisions are not only important safeguards when amending the Constitution, but also distinguishing features of Constituent power as opposed to legislative power. Under the first part of unamended Article 368 when a bill is passed by requisite majority of each House the bill must be presented for the President's assent.

830. Parliament's power to enact laws is not dependent on State legislature, nor can it be frustrated by a majority of State legislatures. The provisions in the proviso to Article 368 for ratification by the legislatures of the State constitute a radical departure from the ordinary legislative process of Parliament, State legislative process of ratification cannot possibly be equated with ordinary legislative process. If the bill is not ratified the bill fails. If it is ratified it is to be presented to the President for his assent. If the President assents the procedure prescribed by Article 368 comes to an end and the consequence prescribed comes into operation that the Constitution shall stand amended in accordance with the bill. But the result is not law, but a part of the Constitution and no court can pronounce any part of the Constitution to be invalid.

831. The exercise of the power of ratification by the State legislatures is constituent power and not ordinary law making power. It cannot be said that Article 368 confers

constituent power under its proviso but not under the main part. If the procedure has been followed the invalidity of an amendment cannot arise.

832. The provisions in Articles 4, 169, paragraph 7(2) of the Fifth Schedule and paragraph 21(2) of the Sixth Schedule were referred to for the purpose of showing that the word "law" is used in those provisions relating to amendments to the Constitution. It is, therefore, said that similar result will follow in the case of all amendments. These four

provisions confer on Parliament limited power of amendment. There are two features common to all these provisions. First, they confer on Parliament a power to make a law which inter alia provides for the specific class of amendments. Second, each of these provisions states that "no such law as aforesaid shall be deemed to be an amendment of the Constitution for the purpose of Article 368". The power to amend under any of these four provisions is a specific power for specific amendments and not a legislative power contained in the Legislative List or Residuary Legislative List.

833. The amendment under Article 4 follows a law providing for the formation of new States and alteration of areas, boundaries and names of existing States. It is obligatory on Parliament to make amendment of Schedules 1 and 4 and it is necessary to make amendments which are supplemental, incidental and consequential. In making such a law in so far as it affects the State but not Union territory a special procedure has to be followed.

834. Under Article 169 which provides for the abolition or creation of a State legislative Council Parliament has power to make a necessary law on a resolution being passed by the State Legislative Assembly for such abolition or creation by a majority of the membership of the Assembly and by majority of not less than two thirds of the members present and voting. It Parliament makes such a law that law must make the necessary amendments to the Constitution.

835. Schedules 5 and 6 provide for the administration of the Scheduled and Tribal areas which are governed by Part X and not by Part XI by which the Union and States are governed. The Schedules provide a mode of governance of those areas which is radically different from the Government of the States and the Union. Part X of the Constitution unlike Part XI is not "subject to the provisions of this Constitution". Paragraph 7 of Schedule 5 and paragraph 21 of Schedule 6 confer on Parliament a power to amend the schedules by law but no special procedure is prescribed for making such a law.

836. No question relating to those four provisions, however arises in the present case. In Article 368 the word "law" is not based at all. These four provisions for amendment deal with matters in respect of which it was considered desirable not to impose requirements of Article 368, and, therefore, it became necessary expressly to provide that such amendments shall not be deemed to be amendments of the Constitution for the purpose of Article 368. These four provisions indicate the distinction between the constituent power and the legislative power. If the power of amendment was located in the residuary Entry No. 97 in the Union List it would not have been necessary to grant that power of amendment again in these four provisions. These four provisions indicate that the Constitution makers intended to confer on Parliament power to make amendments in the provisions of the Constitution and having provided for a particular procedure to be followed in respect of matters covered by those four provisions it conferred a general

power on Parliament to make an amendment to the other Articles after complying with the requirements of Article 368.

837. The majority view in Golak Nath case said that Parliament could call a Constituent

Assembly either directly under the residuary power or pass a law under the Residuary

Entry to call a Constituent Assembly for amendment of fundamental rights. Of the two

views forming the majority one view did not express any opinion as to whether such a

Constituent Assembly could take away or abridge fundamental rights but the other view

expressed the opinion that such a Constituent Assembly could abridge fundamental rights. The majority view in Golak Nath case was that Parliament is a constituted body

and not a constituent body and a constituted body cannot abridge or take away fundamental rights. The majority view indicates that a constituent power was required to

amend the fundamental rights.

838. The majority view has totally ignored the aspect that constituent power is located in

Article 368, and, therefore, amendment under the Article is not a law within the meaning

of Article 13(2). If Parliament is a constituted body as was said by the majority view in

Golak Nath case it would be difficult to hold that such a body could bring about a

Constituent Assembly. The well-known principle that what cannot be done directly cannot be achieved indirectly will establish the basic infirmity in that majority view. If

fundamental rights can be abridged by Parliament calling a Constituent Assembly under

the Residuary Entry such Constituent Assembly will be a body different from Parliament

and will frame its own rules of business and Article 368 cannot have any application.

That will have a strange and startling result.

839. In the scheme of the Constitution containing Article 368 a Constituent Assembly

will be called extra Constitutional means and not one under the Constitution. A Constitution can be amended only in accordance with the process laid down in the Constitution. No other method is Constitutionally possible than that indicated in the

provision for amendment of the Constitution. Once the Constitution has vested the power

to amend in the bodies mentioned therein that is the only body for amending the Constitution. The people who gave the Constitution have expressed how it is to be

changed.

840. The distinction between constituent and legislative power is brought out by the

feature in a rigid Constitution that the amendment is by a different procedure than that by

which ordinary laws may be altered. The amending power is, therefore, said to be a recreation of the Constituent Assembly every time Parliament amends re-creation in

accordance with Article 368.

841. The two decisions in *McCawley v. The King* 1920 A.C. 691 and *The Bribery Commissioner v. Pedrick Ranasinghe* 1965 A.C. 172 on which the majority view in *Golak Nath* case relied to hold that amendment to the Constitution is an ordinary legislative process do not support that conclusion. The difference between flexible or

uncontrolled and rigid or controlled Constitutions in regard to amendment is that there

may be special methods of amendment in rigid or controlled Constitution. In a rigid

Constitution amendment is not by exercise of ordinary legislative power. The power to

amend is, therefore, described in a rigid Constitution as constituent power because of the

nature of the power. In a flexible Constitution the procedure for amendment is the same

as that of making ordinary law. A Constitution being uncontrolled the

distinction between

legislative and constituent powers gets obliterated because any law repugnant to the

Constitution pro tanto repeals a Constitution as was held in *McCawley* case.

Dicey in his

Law of the Constitution (10th Ed.) illustrates the view by his opinion that if the *Dentists*

Act said anything contrary to the Bill of Rights which can be described as Constitutional

document the *Dentists* Act would prevail. In a flexible or unwritten Constitution the word

Constitutional law is imprecise as it is used in respect of subject matter of law, e.g. a la

w

dealing with the legislature. In a rigid or written Constitution whatever is in the

Constitution would be the law of the Constitution.

842. In *McCawley* case the validity of the appointment of *McCawley* as a Judge of the

Supreme Court of Queensland was challenged as void on the allegation that

Section 6

Sub-section (6) of the Industrial Arbitration Act of 1916 was contrary to the provisions of

the Constitution of Queensland 1867. The Industrial Arbitration Act of 1916 by Section 6

Sub-section (6) authorised the Governor to appoint any Judge of the Court of Industrial

Arbitration to be a Judge of the Supreme Court of Queensland and provided that a Judge

so appointed shall have the jurisdiction of both offices and shall hold office as a Judge of

the Supreme Court during good behaviour. The sub-section further provided that Judge of

the Court of Industrial Arbitration shall hold office for seven years. The Governor in

Council by commission reciting Section 6 Sub-section (6) appointed *McCawley* who was

a Judge and the President of the Court of Industrial Arbitration to be a Judge

of the Supreme Court during good behaviour. By Sections 15 and 16 of the Constitution of 1867 the period during which Judges of the Supreme Court were to hold office was during good behaviour. The contention was that the appointment of McCawley under the Industrial Arbitration Act 1916 for a limited period of seven years was invalid since the Act was inconsistent with the Constitution Act 1867 and further that the Act of 1916 could not repeal or modify the provisions of the Constitution Act.

843. The Privy Council held that the Legislature of Queensland had power both under the Colonial Laws Validity Act 1865 Section 5 and apart therefrom under Clauses 2 and 22 of the Order-in-Council of 1859, Section 7 of the Act 18 & 19 Vict. c. 54 and Sections 2 and 9 of the Constitution Act of 1867 to authorise the appointment of a Judge of the Supreme Court for a limited period. Section 7 of the Act 18 & 19 Vict. c. 54 intended an order in Council to make provision for the government of the Colony and for the establishment of a legislature. The Order-in-Council 1859 by Clause 2 gave full power to the legislature of the Colony to make further provision in that behalf. The Order-in-Council of 1859 by Clause 22 gave the legislature full power and authority from time to time to make laws altering or repealing all or any of the provisions of this Order in the same manner as any other laws for the good Government of the colony.

844. Section 5 of the Colonial Laws Validity Act gave the legislature full power to alter the Constitution.

845. Section 2 of the Constitution Act of 1867 gave the legislature power to make laws for the peace, welfare and good government of the Colony. Section 9 of the Constitution required a two thirds majority of the legislative Council and Legislative Assembly as a condition precedent of the validity of legislation altering the Constitution of the Legislative Council. Section 6 Sub-section (6) which authorised an appointment as a Judge of the Supreme Court only during the period during which the person appointed was a Judge of the Court of Industrial Arbitration was found to be valid legislation. It was found that the Constitution of Queensland was as flexible as distinct from rigid Constitution. Power to alter the Constitution by ordinary law was also said to exist both in virtue of the Colonial Laws Validity Act, 1865 Section 5 and independently of that Act in virtue of Clause 22 of the Order in Council 1859 and Sections 2 and 9 of the

Constitution Act of 1867.

846. The decision in McCawley case shows that unless there is a special procedure prescribed for amending any part of the Constitution the Constitution is uncontrolled and can be amended by the manner prescribed for enacting an ordinary law and therefore a subsequent law inconsistent with the Constitution would pro tanto repeal the Constitution. The decision also established that a Constitution largely or generally uncontrolled may contain one or more provisions which prescribe a different procedure for amending the provisions of the Constitution. If this is prescribed the procedure for amendment must be strictly followed.

847. The legislature of Queensland was found to be master of its own household except in so far as its powers were restricted in special cases. No such restriction was establishe

d in the case before the Privy Council. The legislature had plenary power there. The legislature was not required to follow any particular procedure or to comply with any specified conditions before it made any law inconsistent with any of the provisions of Constitutional document.

848. The contention of the respondent in McCawley case was that the Constitution of Queensland was controlled and that it could not be altered merely by enacting legislation inconsistent with its Articles but that it could be altered by an Act which in plain and unmistakable intention of the legislature to alter consequently gave effect to that intentio

n by operative provisions. The Judicial Committee thought this Constitution would amount to a Constitution which was neither controlled nor uncontrolled. It was not controlled because the future generation could by a merely formal Act correct it at pleasure. It was said to be not uncontrolled because the framers prescribed to their successors a particular mode by which they are allowed to effect Constitutional changes. Section 22 of the Order in Council conferred power and authority in legislature from time to time to make laws altering or repealing all or any of the provisions of the Order in Council in the same manner as any other laws for the good government of the country. The Constitution Act of 1867 was contended to enact certain fundamental organic provisions of such a nature as to render the Constitution controlled. It was found impossible to point to any document or instruction giving or imposing on the Constitution of Queensland such a quality. The

decision in McCawley case related to uncontrolled Constitution which gave the legislature full power to make laws except on one subject and, therefore, a law made by the legislature under such a Constitution could pro tanto conflict with and repeal the Constitution. That is not our Constitution.

849. In Ranasinghe case the validity of the appointment of Bribery Tribunal was challenged. The Supreme Court of Ceylon took the view that the Bribery Tribunal was not appointed by the Judicial Service Commission in accordance with the provisions of Section 55 of the Ceylon Constitution Order in Council. It was, therefore, not lawfully appointed. It was common ground that the appointment of the Bribery Tribunal was not in accordance with Section 55 of the Ceylon Constitution Order in Council, 1946. Section 55 vested in the Judicial Service Commissioner the appointment, dismissal and disciplinary control of Judicial Officers, viz., Judges of lesser rank. The removal of Judges of the Supreme Court could be by the Governor General on an address of the Senate and the House of Representatives.

850. Section 29 of the Ceylon (Constitution) Order in Council provided in Sub-sections

(1), (2), (3) and (4) as follows:

29(1) Subject to the provisions of this Order, Parliament shall have power to make laws for the peace, order and good government of the Island.

(2) No such law shall-(a) prohibit or restrict the free exercise of any religion;

(3) Any law made in contravention of Sub-section (2) of this section shall, to the extent of such contravention, be void.

(4) In the exercise of its powers under this section Parliament may amend or repeal any of the provisions of this Order, or of any other Order of Her Majesty in Council in its application to the Island:

Provided that no Bill for the amendment or repeal of any of the provisions of this Order shall be presented for the Royal Assent unless it has endorsed on it a certificate under the hand of the Speaker that the number of votes cast in favour thereof in the House of Representatives amounted to not less than two-thirds of the whole number of Members of the House (including those not present).

Every certificate of the Speaker under this sub-section shall be conclusive for all purposes and shall not be questioned in any court of law.

851. The Judicial Committee found that there was a conflict between Section 55 of the Ceylon Constitution Order and Section 41 of the Bribery Amendment Act. The Privy Council found that Section 29(4) of the order was attracted but the requirements of Section 29(4) had not been complied with and, therefore, the appointment of the Bribery Tribunal was invalid. The certificate of the Speaker under the proviso to Section 29(4) of the Ceylon Constitution Order was an essential part of the legislative process. There was no such certificate in the case of the legislation under which the appointment of the impugned Tribunal was made. The Judicial Committee said that a legislature has no power to ignore the conditions of law making that are imposed by the regulating instrument. This restriction exists independently of the question whether the legislature is sovereign as the legislature of Ceylon or whether the Constitution is uncontrolled as happened in McCawley case with regard to the Constitution of Queensland.

852. The Judicial Committee said "A Constitution can, indeed, be altered or amended by the legislature, if the regulating instrument so provides and if the terms of those provisions are complied with; and the alteration or amendment may include the change or abolition of these provisions. But the proposition which is not acceptable is that a legislature, once established, has some inherent power derived from the mere fact of its establishment to make a valid law by the resolution of a bare majority which its own constituent instrument has said shall not be valid law unless made by a different type of majority or by a different legislative process".

853. It was contended that just as the legislature of the Colony of Queensland had power by mere majority vote to pass an Act that was inconsistent with the provisions of the existing Constitution of that Colony as to the tenure of Judicial Office so the legislature of Ceylon had no less a power to depart from the requirements of a section such as Section 55 of the Ceylon Constitution, notwithstanding the wording of Sections 18 and 29(4). Section 18 in effect says that a legislation can be passed by a majority of votes subject to the provisions in Section 29(4) of the Constitution. The Judicial Committee said that in McCawley case the legislature had full power to make laws by a majority except upon one subject that was not in question and the legislation was held to be valid because it was treated as pro tanto an alternation of the Constitution which was neither fundamental in the sense of being beyond change nor so constituted as to require any

special process to pass a law upon the topic dealt with. The word "fundamental" in the sense of "being beyond change" refers to express limitations as to power or manner and form of change. These words do not mean as Mr. Palkhivala contended that there are fundamental features of the Constitution which cannot be amended.

854. The legislature purported to pass a law which being in conflict with Section 55 of the Order in Council must be treated if it is to be valid, as an implied alteration of the Constitutional provisions about the appointment of judicial officers. Such alterations could only be made by laws which complied with the special legislative procedure laid down in Section 29(4). The provisions in Section 29(4) were found not to confer on the Ceylon legislature the general power to legislature so as to amend the Constitution by ordinary majority resolution which the Queensland legislature was found to have under Section 2 of the Queensland Constitution Act

855. Ranasinghe case shows that Parliament which by its own Act imposed procedural conditions upon the legislative process is no more limited or non-sovereign than a legislature which has such conditions imposed on it by the Constitutional instrument. A Constitutional instrument which places procedural restraints upon the forms of law making places the legislature under a compulsion to obey them. In McCawley case it was said that the Colonial Legislature with plenary powers could treat the Constitutional document which defined its powers as if it were a Dog Act This proposition as a result of Ranasinghe case is narrowed to the extent that where provisions for procedural special majority are laid down in the Constitutional document they cannot be treated as a provision in the Dog Act might be.

856. These decisions indicate the distinction between procedural and substantive limitations on the legislative process. In Ranasinghe case the issue was one of personal liberty in the sense that the respondent claimed the right not to be imprisoned except by a valid law. No question was raised about the right of religion protected by Sections 29(2) and (3) of the Ceylon Constitution. It was also not the respondent's case there that any provision was unamendable. It would be unusual for the Privy Council to say by way of an obiter dictum that a provision was not amendable contrary to the respondent's submission. Though the Privy Council did not use the words "legislative and constituent" in distinguishing ordinary law from law amending the Constitution, the Privy Council in referring to the Ceylon Constitution instrument showed that the familiar distinction is the basis of the judgment.

857. The Privy Council is dealing with Section 29 took note of the special heading under which Section 29 appears in the Constitution. That special heading is "legislative power and procedure". The opening words of Section 29 are that subject to the provisions of this order Parliament shall have powers to make laws. These are similar to the opening words in Article 245 of our Constitution. Section 18 of the Ceylon Constitution prescribes the ordinary legislative procedure for making laws by a bare majority unless otherwise provided for by the Constitution, which is to be found in Section 29(4) of the Ceylon Constitution. Our Constitution in Article 100 makes an identical provision for ordinary legislative procedure. Section 29(2) confers rights of freedom of religion and Section 29(3) states that no laws shall be made prohibiting or restricting such freedom. Part III of our Constitution contains among other fundamental rights, rights to freedom of religion. Section 29(3) expressly makes laws in contravention of Section 29(2) void to the extent of contravention. Article 13(2) of our Constitution expressly makes law which takes away or abridges fundamental rights void to the extent of the contravention. Section 29(4) of the Ceylon Constitution dealing with the amendment of the Constitution does not expressly make void a law amending the Constitution.

858. It follows from McCawley case and Ranasinghe case that a legislature has no power to ignore the conditions of law making imposed upon it which regulate its power to make law. The Ceylon legislature had no general power to legislate so as to amend its general power by ordinary majority resolution such as Queensland legislature was found to have under Section 2 of the Queensland Constitution. Peace, order and good government in Section 29(1) of the Ceylon Constitution is not the same as amendment contemplated in Section 29(4) of the Ceylon Constitution. In Ranasinghe case the Judicial Committee referred to the social compact. The compact is this. The inhabitants of Ceylon accepted the Ceylon Constitution on the footing that the various rights conferred, liabilities imposed and duties prescribed under the law cannot be altered in the ordinary course of legislation by a bare majority. But if all these were to be changed then such a change could only be made under the strongest safeguard of the amending process which in the case of Ceylon was not less than two-third of the absolute membership. These rights are the solemn compact. These valuable rights are conferred on the people. Under

ordinary

law by ordinary majority they cannot be taken away.

859. The absence of an express provision in Section 29(4) of the Ceylon Constitution that

an amendment of the Constitution in contravention of the terms of that sub-section shall

be void need not support the conclusion that such an amendment was valid.

Section 29(1)

of the Ceylon Constitution is expressed to be "subject to the provisions of this Order" and

any power under Section 29(4) is expressly subject to the proviso there. The Privy

Council held that the opening words of Section 29 introduced into the Constitution of

Ceylon the necessarily implied doctrine of ultra vires. The proposition will apply directly

to the same opening words of our Article 245. The Privy Council accepted the distinction

made in McCawley case between controlled and uncontrolled Constitutions by emphasising the observation in McCawley case with reference to Section 9 of the Queensland Constitution. The description of Section 29(2) of the Ceylon Constitution as

an entrenched provision means that it can be amended but only by special procedure in

Section 29(4). That is the meaning of the word "entrenched". This meaning alone is

consistent with the clear language of the amending power and also with the decision.

Section 29(4) does not limit the sovereignty of the Ceylon legislature because the

legislature can always pass the amendment after getting two-thirds majority and the

certificate.

860. Counsel for the respondent in Ranasinghe case stated that there was no limitation

except the procedure and even that limitation could be removed by amendment complying with Sub-section (4). The Privy Council affirmed that position. There is

nothing to prevent by appropriate amendment a deletion of Section 29(4) of the Ceylon

Constitution which would then empower Parliament to achieve the power to amend by an

ordinary majority. Section 29(1) is not legislative power alone but a composite power

when read along with Section 29(4) in the context of the Ceylon Constitution. It includes

both legislative and constituent power. Sub-sections (2) and (3) of Section 29 are not the

grant of power but limitation on power. Its terms show that limitation is at any rate on the

legislative power of enacting laws contrary to Sub-sections (2) and (3) of Section 29. If

Section 29(1) is a composite legislative and constituent power and Sub-section (2) and

(3) are a restraint on legislative power the constituent power under Sub-section (4)

remains unaffected. The sequiter is that Section 29(4) is consistent only with the view

that so far as amendment of Sub-sections (2) and (3) is concerned amendment is permitted

and there is no limitation on constituent power under Section 29(4). The Privy Council

took the widest view of the amending power. In fact the narrower view was not argued.

861. Our Constitution in Article 13(2) by its express declaration with reference to law and the State widely defined has no higher efficacy in rendering a law in contravention of

its terms void than the opening words of Article 245 have in rendering a law void in

contravention of term mentioned therein. Therefore, in treating Article 13(2) as having

that effect in regard to Constitutional amendment the majority judgment in Golak Nath

case was inept. In rejecting the distinction between legislative and constituent powers the

leading majority view in Golak Nath case was induced by the absence of the use of the

labels but the same concepts were clearly indicated by the Privy Council by wholly

describing the characteristic features of legislative and constituent powers.

862. If Article 368 had begun with a non-obstante clause it could not have been said that

amendment under Article 368 would be law within the meaning of Article 13(2). The

Attorney General rightly said that there is no non-obstante clause in Article 368 because

of the quality of amending power and because the amending power is a constituent power

and not ordinary legislative power. This is the position of the amending clause in a

written Constitution. When the power under Article 368 is exercised Parliament acts as a

recreation of Constituent Assembly. Therefore, such power cannot be restricted by or

widened by any other provision. As soon as an amendment is made it becomes a part of

the Constitution. An amendment prevails over the Article or Articles amended. The fact

that Article 368 confers constituent powers is apparent from the special conditions

prescribed in the Article. Those conditions are different from ordinary law making

process. Article 368 puts restraints on the ordinary law making process and thus confers

constituent power. The Constituent Assembly was fully aware that if any limitation was

to be put on the amending power the limitation would have to be expressly provided for.

Article 305 of the Draft Constitution provided reservation of seats for certain sections of

people in the legislature for 10 years. This reservation was not accepted by the Constituent Assembly. This shows that if the Drafting Committee or the

Constituent

Assembly wanted to exclude fundamental rights from the operation of Article 368 corresponding to Article 304 in the Draft Constitution they could have expressly done so.

863. In Ghulam Sarwar v. Union of India (1967 2 S.C.R. 271 it was said there was a

distinction between deprivation of fundamental rights by force of a

Constitutional provision itself and such deprivation by an order made by President in exercise of a power conferred on him under Constitutional provision. The dissenting view in Ghulam Sarwar case was that an order of the President was not a law within the meaning of Article 13(2). In Mohd. Yakub v. State of Jammu & Kashmir (1968) 2 S.C.R. 227 the majority view of the Constitution Bench was that an order of the President under Article 359 was not law within the meaning of Article 13(2). There is no distinction between Article 358 and Article 359(1). Article 358 by its own force suspends the fundamental rights guaranteed by Article 19. Article 359(1) on the other hand does not suspend any fundamental rights of its own force but it gives force to order by the President declaring suspension of the enforcement of any fundamental right during the period of emergency. In Mohd. Yakub case it was said that it could not mean that an order under Article 359(1) suspending the enforcement of a particular fundamental right had still to be tested under the very fundamental right which it suspended. Mohd. Yakub case establishes that the expression "law" in Article 13(2) is not all embracing in spite of the exclusive definition of law in Article 13(3)(a).

864. The word "law" appears in various Articles of our Constitution but not in Article 368. The reason is that the power under Article 368 is not a power to make ordinary laws under the Constitution but is the constituent power. There could be no law within the meaning of Article 13(2) at any stage before the amendment became a part of the Constitution under Article 368. There is no hiatus between an amendment being a law and thereafter a part of the Constitution. Immediately upon the passage of the Bill for the amendment the Constitution stands amended.

865. The historical background of Article 13(2) throws some light on the question as to whether Article 13(2) prevails over Article 368. On 17 March, 1947 the Constitutional Advisor Sir B.N. Rau had addressed a letter to the members of Central and Provincial legislatures. A questionnaire was annexed to that letter. Question No. 27 was "What provisions should be made regarding amendments to the Constitution". A note was appended to that question which will be found in Shiva Rao Framing of India's Constitution referred to as Shiva Rao Vol. II pp. 448-451. The methods of amendment of Constitution in the United Kingdom, Canada, Australia, United States of America, Switzerland and Ireland were elucidated in that note. The note also drew attention that the fact that in various Constitution express limitations were put on amending certain provisions of the Constitution. The portion of the note relating to the Constitution of

Australia indicated such limitations.

866. The draft report of the sub-Committee on fundamental rights dated 3 April 1947

contained an annexure which dealt with fundamental rights. See Shiva Rao Vol. II p. 137

seq. Clause 2 of the annexure was as follows:

Any law or usage in force within the territories of the Union immediately before the commencement of this Constitution and any law which may hereafter be made by the State inconsistent with the provisions of this Chapter/Constitution shall be void to the extent of such inconsistency.

867. The Constitutional Adviser suggested that the word "Constitution" was preferable to

the word "chapter" because the entire Constitution was to prevail over law.

868. On 23 April, 1947 the Advisory Committee on Fundamental Rights presented an interim report addressed to the President of the Constituent Assembly containing an

annexure providing for justiciable fundamental rights. See Shiva Rao Vol. II pp. 294-296

seq. Clause 2 of the Annexure to that report was as follows:

All existing laws, notification, regulations, customs or usages in force within the territories of the Union inconsistent with the rights guaranteed under this part of the Constitution shall stand abrogated to the extent of such inconsistency nor shall the Union or any unit may make any law taking away or abridging any such right.

869. Clause 2 of the annexure to the interim report was discussed in the Constituent

Assembly on 29 April, 1947. Shri K. Santhanam moved an amendment to Clause 2. The

amendment was as follows : In Clause 2 for the words "nor shall the Union or any unit

make any law taking away or abridging any such right" the following be substituted:

"Nor shall any such right be taken away or abridged except by an amendment of the

Constitution". The amendment was accepted as will appear in Constituent Assembly Debates Vol. III p. 416.

870. In October, 1947 the Draft Constitution was prepared by the Constitutional Advisor.

Clause 9(2) of the said Draft Constitution which later on corresponded to Article 13(2) of

our Constitution was as follows:

Nothing in this Constitution shall be taken to empower the State to make any law which curtails or taking away any of the rights conferred by Chapter II of this Part except by way of amendment of this Constitution under Section 232 and any law made in contravention of this sub-section shall, to the extent of the Contravention, be void.

871. It will be seen that Clause 9(2) in the Draft Constitution included the qualification

"except by way of amendment of the Constitution under Section 232". Clause 232 in the

Draft Constitution prepared by the Constitutional Advisor became Article 304 in the

Constitution prepared by the Drafting Committee and eventually became Article 368 of

our Constitution. In Shiva Rao, Vol. III p. 325 it appears that the Drafting Committee on

30 October, 1947 at a meeting gave a note forming the minutes of that meeting that

Clause 9(2) should be revised as follows:

The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this subsection shall, to the extent of the contravention, be void.

872. No reason is recorded in these minutes as to why the resolution adopted by the

Constituent Assembly by passing Shri Santhanamâ™s amendment was disregarded. No indication was given in the forwarding letter of Dr. Ambedkar in the Note appended

thereto as to why the amendment of Shri Santhanam which had been accepted by the Constituent Assembly was deleted. Nor does the Draft Constitution indicate either by sidelines or in any other manner that the decision of the Constituent Assembly had been disregarded.

873. This history of the formation and framing of Article 13(2) shows that the intention

of the Constituent Assembly was that Article 13(2) does not control the Article relating

to the amending of the Constitution. It must be assumed that the Drafting Committee

consisting of eminent men considered that an express exclusion of the amending Article

from the operation of the clause corresponding to Article 13(2) was unnecessary and the

fear that that Article would cover the amending Article was groundless. It also appears

that no discussion took place after the Draft Constitution had been presented to the

Constituent Assembly by Dr. Ambedkar on the deletion or disregard of Shri Santhanamâ™s

amendment. The history of Article 13(2) shows that the Constituent Assembly clearly

found that it did not apply to an amendment of the Constitution.

874. The distinction between constituent and legislative power in a written Constitution

is of enormous magnitude. No provision of the Constitution can be declared void because

the Constitution is the touchstone of validity. There is no touchstone of validity outside

the Constitution. Every provision in a controlled Constitution is essential or so thought by

the framers because of the protection of being amendable only in accordance with the Constitution. Every Article has that protection. The historical background of Article 13(2) indicates that the Constitution-makers dealt separately with legislative power by providing for the same in Part XI and entrusted the constituent power to authorities mentioned in Article 368 and that authority has the same power as the Constituent Assembly because it has not put any fetter upon it. The draft Article 305 which provided for a limitation as to time for amendment of certain matters was eventually deleted. If the framers of the Constitution wanted to forbid something they would say so. 875. The vitality of the constituent power not only indicates that the Constitution is in the words of Maitland the *suprema potestas* but also the fact that the amending power is put in a separate Article and Part of the Constitution establishing that it deals with a topic other than legislative power and the power is meant to be exhaustive leaving nothing uncovered. The very fact that amending power is not put in any legislative power or is not attached to a subject which is the subject matter of legislative power leaving aside the four sets of provisions, namely, Articles 4, 169, paragraph 7 Schedule 5 and paragraph 21 Schedule 6 containing specific power of amendment shows that that amending power was meant to be exhaustive and plenary. If a power of amendment without any express limitation was given it was because a legal Constitutional way of bringing a change in the Constitution was desirable or necessary. Otherwise there would be no legal way of effecting the change. It cannot be attributed to the framers of the Constitution that they intended that the Constitution or any part of it could be changed by unconstitutional or illegal methods. 876. If an amendment of the Constitution is made subject to Article 13(2) the necessary conclusion then is that no amendment of the Constitution is possible. The opening words of Article 245 which deals with legislative power indicate that any law made under Article 246(1) read with List I of the Seventh Schedule is subject to the limitations on legislative power imposed by all the Articles in the Constitution. These limitations cannot be altered or amended in exercise of legislative power, if the power of amendment is said to be located in the Residuary Entry 97 in List I. The history of residuary power in the Government of India Act, 1935 whose scheme was adopted in the Constitution shows that the topic of amendment was not only present to the mind of the Constituent

Assembly but also that the Constituent power could not reside in the residuary power.

877. The conclusions on the question as to whether Article 13(2) overrides Article 368

are these. Article 13(2) relates to laws under the Constitution. Laws under the Constitution are governed by Article 13 (2). Article 368 relates to power and procedure

of amendment of the Constitution. Upon amendment of the Constitution the Constitution

shall stand amended. The Constitution is self validating and self executing.

Article 13(2)

does not override Article 368. Article 13(2) is not a fundamental right. The Constitution

is the touchstone. The constituent power is sui generis. The majority view in Golak Nath

case that Article 13(2) prevails over Article 368 was on the basis that there was no

distinction between constituent and legislative power and an amendment of the Constitution was law and that such law attracted the opening words of Article 245 which

in its turn attracted the provisions of Article 13(2). Parliament took notice of the two

conflicting views which had been taken of the unamended Article 368, took notice of the

fact that the preponderating judicial opinion, namely, the decisions in Shankari Prasad

case Sajjan Singh case and the minority views of five learned Judges in Golak Nath case

were in favour of the view that Article 368 contained the power of amendment and that

power was the constituent power belonging to Parliament Wanchoo, J. rightly said in

Golak Nath case that the power under Article 368 is a constituent power to change the

fundamental law, that is to say, the Constitution and is distinct from ordinary legislative

power. So long as this distinction is kept in mind Parliament will have power under

Article 368 to amend the Constitution and what Parliament does under Article 368 is not

ordinary law making which is subject to Article 13(2) or any other Article of the

Constitution. This view of Wanchoo, J. was adopted by Parliament in the

24th Amendment Act which made explicit that under Article 368 Parliament has the constituent power to amend this Constitution.

878. In order to appreciate and assess Mr. Palkhivala's other contention of implied and

inherent limitations on the amending power, it is necessary to find out the necessity and

importance of the amending power to arrive at the true meaning of the expression "amendment".

879. Mr. Palkhivala made these submissions. The word "amendment" means on the one

hand not the power to alter or destroy the essential features and on the other there are

inherent and implied limitations on the power of amendment. It is imperative to consider the consequences of the plea of limited power and also of the plea of limitless power. The test of the true width of a power is not how probable it is that it may be exercised, but what can possibly be done under it. The hope and expectation that it will never be used is not relevant. Reliance is placed on the observations in Maxwell on the Interpretation of Statutes, 12th Ed. (1969) pp. 103-106 that it is important to consider the effects or consequences which would result from it, for they often point out the real meaning of the words, before adopting any proposed construction of a passage susceptible of more than one meaning. The reasonableness of the consequences which follow from a particular construction on the one hand and the unreasonable result on the other are the two alternatives in the quest for the true intention of Parliament. Crawford Construction of Statutes (1940 Ed.) pp. 286-290 was referred to for the proposition that where the statute is ambiguous or susceptible to more than one meaning, the construction which tends to make the statute unreasonable should be avoided. Uncertainty, friction or confusion on a construction is to be avoided because preference is to be given to the smooth working of the statute. The Court adopts which is just reasonable and sensible rather than that which is none of these things. It is not to be presumed that the legislature intended the legislation to produce inequitable results. Usurpation of power contrary to the Constitution is to be avoided.

880. Reliance was placed by Mr. Palkhivala on American Jurisprudence 2d. Vol. 16 Article 59 at pp. 231-232, Article 72 at p. 251, Article 287 at pp. 270-71 and Article 88 at pp. 273-74 in support of these propositions. First, questions of Constitutional construction are in the main governed by the same general principles which control in ascertaining the meaning of all written instruments particularly statutes. External aids or arbitrary rules applied to the construction of a Constitution are of uncertain value and should be used with hesitation and circumspection. Second, Constitutions are general and many of the essentials with which Constitutions treat are impliedly controlled or dealt with by them and implication plays a very important part in Constitutional construction. What is implied is as much a part of the instrument as what is expressed. Third, a Court may look to the history of the times and examine the state of things existing when the Constitution was framed and adopted. The Court should look to the nature and object of the

particular powers, duties and rights in question with all the light and aids of the contemporary history. Fourth, proceedings of conventions and debates are of limited value as explaining doubtful phrases. Similarly, the opinions of the individual members are seldom considered as of material value.

881. Mr. Palkhivala said that the word "amend" may have three meanings. First, it may mean to improve or better to remove an error, the quality of improvement being considered from the stand point of the basic philosophy underlying the Constitution. Second, it may mean to make changes which may not fall within the first meaning but which do not alter or destroy any of the basic essential or any of the essential features of the Constitution. Third, it may mean to make any changes in the Constitution including changes falling outside the second meaning. The first meaning was preferred. The second was said to be a possible construction. The third was ruled out.

882. The crux of the matter is the meaning of the word "amendment" The Oxford Dictionary meaning of the word is to make professed improvements in a measure before Parliament; formally, to alter in detail, though practically it may be to alter its principle, so as to thwart it. The Oxford Dictionary meanings are also alteration of a bill before Parliament; a clause, paragraph, or words proposed to be substituted for others, or to be inserted in a bill (the result of the adoption of which may even be to defeat the measure).

In Words and Phrases Permanent Edition, Volume 3 the meaning of the word "amend" and "amendment" are change or alteration. Amendment involves an alteration or change, as by addition, taking away or modification. A broad definition of the word "amendment" will include any alteration or change. The word "amendment" when used in connection with the Constitution may refer to the addition of a provision on a new independent subject, complete in itself and wholly disconnected from other provisions, or to some particular article or clause, and is then used to indicate an addition to, the striking out, or some change in that particular article or clause.

883. The contention that the word "amendment" in Article 368 should bear a limited meaning in view of the expression "amend by way of addition, variation or repeal any of the provisions of this Schedule" occurring in paragraphs 7 and 21 in Schedules 5 and 6, is

unsound for the following reasons.

884. First, the power of amendment conferred by the four provisions, namely, Article 4 read with Articles 2 and 3, Article 169, paragraphs 7 and 21 in Schedules 5 and 6 is a limited power. It is limited to specific subjects. The exercise of the power of amendment under those four provisions, if treated by Articles themselves, is an uncontrolled power since the power can be exercised by an ordinary law. But as a part of the Constitution the power is a subordinate power because these Articles themselves are subject to the amending provisions of Article 368. Article 368 is the only provision of the Constitution which provides for the amendment of this Constitution which means the Constitution of India and every part hereto. It may be mentioned that in construing Article 368 the title of the part "Amendment of the Constitution" is an important aid to construction. The marginal note which speaks of the procedure of amendment is not complete by itself because the procedure when followed results in the product, namely, an amendment of the Constitution which is not only a matter of procedure.

885. Second, these four provisions which are in the same terms, namely, "no such law shall be deemed to be an amendment of this Constitution for the purpose of Article 368" show that but for these terms the amendment would have fallen within Article 368 and was being taken out of it. This is an important consideration particularly in connection with Schedules 5 and 6 which provide that Parliament may, from time to time by law, amend by way of addition, variation or repeal any of the provisions of this Schedule. These provisions show that an amendment by way of addition, variation or repeal will also fall within the amendment of the Constitution provided for in Article 368 but is being taken out of Article 368. This express exclusion contains intrinsic evidence that the meaning of the word "amendment" in Article 368 includes amendment by way of addition, alteration or repeal.

886. Third, paragraphs 7 and 21 in Schedules 5 and 6 which provide that Parliament may from time to time by law, amend by way of addition, variation or repeal indicate the necessity of amendments from time to time. The expression "by way of" does not enlarge the meaning of the word "amendment" but clarifies. The expression "by way of" shows that the words addition, variation or repeal are substitutes of the word "amendment" and are forms of intention. The whole Schedule cannot be repealed either by paragraph 7 or

by paragraph 21, because Article 244 provides for the administration of Scheduled Areas and tribal areas on the application of the two respective Schedules. The words "from time to time" also indicate that because of subject matter amendments may be from time to time. The history behind the two Schedules originates in Section 91 and 92 of the Government of India Act, 1935 dealing with excluded areas and partially excluded areas.

887. Fourth, reference was made to Section 9(1)(c) of the India Independence Act 1947

which empowered the Governor General to make omissions from, additions to and adaptations and modification to the Government of India Act, 1935. The Government of

India Third Amendment Act 1949 amended Section 291 of the 1935 Act and empowered the Governor General to make such amendments as he considers necessary whether by

way of addition, modification or repeal. It was, therefore, said that when our Constitution

did not use the expression "by way of addition, modification or repeal" the word "amendment" in Article 368 will have a narrower meaning. The expression "amendment"

has been used in several Articles of the Constitution. These are Articles 4(1) and (2),

108(4), 109(3), and 4, 111, 114(2), 169(2), 196(2), 198(3) and (4), 200, 201, 204(2),

207(1), (2), 240(2), 274(1), 304(b) and 349. In every case amendment is to be by way of

variation, addition or repeal. Again, different expression have been used in other Articles.

In Article 35(b) the words are alter, repeal. In Article 243(1) the words are repeal or

amend. In Article 252(2), the expression is amend or repeal. In Article 254(2) proviso the

words are add to, amending, variation or repeal. In Article 320(4) the words are such

modifications whether by way of repeal or amendment. In Article 372(1) the words are

altered or repealed or amended. In Article 372(2) the words are such adaptations and

modifications by way of repeal or amendment. In Article 392(1) the expression is such

adaptations by way of modification, addition or commission. Again, in Article 241(2) the

words are modification or exceptions. In Article 364 the words used are exceptions or

modifications. In Article 370(1)(d) and (3) the words are modifications and exceptions.

Again, in Schedule 5 paragraph 5(1) and Schedule 6 paragraphs 12(a), (b), 19(1) (a) the

word used are exceptions or modifications. Modifications in Article 370(1)(d) must be

given the widest meaning in the context of a Constitution and in that sense it includes an

amendment and it cannot be limited to such modifications as do not make any radical

transformation.

888. The several Constitution Amendment Acts show that amendments to the

Constitution are made by way of addition, substitution, repeal. The Attorney General is right in his submission that the expression "amendment of this Constitution" has a clear substantive meaning in the context of a written Constitution and it means that any part of the Constitution can be amended by changing the same either by variation, addition of repeal.

889. The words "Amendment of this Constitution may be initiated" and the words "Constitution shall stand amended in accordance with the terms of the Bill" in Article 368

indicate that the word "amendment" is used in an unambiguous and clear manner. The

Attorney General said that our Constitution is not the first nor is the last one to use the

word "amendment". The American Constitution in 1787 used the word "amend".

Several

Constitutions of other countries have used the word "amend". The word "amend" is used

in a Constitution to mean any kind of change. In some Constitutions the words alteration

or revision have been used in place of the word amend or along with the word amendment. Some times alteration and revision of the Constitution are also spoken of as

amendment of the Constitution.

890. Constitutional provisions are presumed to have been carefully and deliberately

framed. The words alterations or amendments, the words amendments or revisions, the

words revision and alteration are used together to indicate that these words have the same

meaning in relation to amendment and change in Constitution.

891. The meaning and scope of amending power is in the object and necessity for amendment in a written Constitution.

892. The various amendments which have already been carried out to our Constitution

indicate that provisions have been added, or varied or substituted. The Attorney General

gave two correct reasons for the object and necessity of the power of amendment in a

written Constitution. First, the object and necessity of amendment in a written Constitution means that the necessity is for changing the Constitution in an orderly

manner, for otherwise the Constitution can be changed only by an extra Constitutional

method or by revolution, Second, the very object of amendment is to make changes in the

fundamental law or organic law to make fundamental changes in the Constitution, to

change the fundamental or the basic principles in the Constitution. Otherwise there will

be no necessity to give that importance to the high amending power to avoid revolution.

893. The object of amendment is to see that the Constitution is preserved.

Rebellion or

revolution is an illegal channel of giving expression to change. The "consent of the

governed" is that each generation has a right to establish its own law. Conditions change.

Men Change, Opportunities for corresponding change in political institutions and principles of Government therefore arise. An unamendable Constitution was the French

Constitution which by an amendment to the Constitution adopted in 1884 declared that

the National Assembly shall never entertain a proposal for abolition of the republican

form of Government. The United States Constitution provided that no amendment could

be made prior to 1808 affecting the First and Fourth Clauses of Section 9 of Article 1

relative to the prohibition of the importation of slaves, and that no State without its

consent shall be deprived of equal suffrage in the Senate. These are examples of limiting

the sovereign power of the people to change the Constitution.

894. An unamendable Constitution is said to be the worst tyranny of time.

Jefferson said

in 1789 that each generation has a right to determine a law under which it lives. The earth

belongs in usufruct to the living; the dead have neither powers nor rights over it. The

machinery of amendment is like a safety valve. It should not be used with too great

facility nor should be too difficult. That will explode and erode the Constitution.

895. Most Constitutions are rigid in the sense that they are amendable only by a different

process than that by which ordinary laws may be altered. Thus they distinguish clearly

between the constituent power and the legislative power, each being exerciseable by

different organs according to different processes. Chief Justice Marshall said that the

opponents of change want changes just as much as any one else. They want however to

determine what the changes shall be.

896. Amendment is a form of growth of the Constitution inasmuch as amendment means

fundamental changes. The Constitution devises special organs or special methods to

amend or change the fundamental principles that create the Government. The methods of

amendment may be by ordinary law making body as in Great Britain or by the ordinary

law making body with special procedure or unusual majority or by special organs of

government created for the purpose such as Constitutional convention or by the electorate

in the form of referendum or of initiating a referendum. In case a written Constitution

makes no provision for amendment it is usually held that the national law making body

by ordinary procedure may amend the Constitution. If a Constitution provides the method

of amendment that method alone is legal. Any other method of amendment would be a

revolution. The deliberative and restrictive processes and procedure ensure a change in

the Constitution in an orderly fashion in order to give the expression to social necessity

and to give permanence to the Constitution.

897. The people expressed in the Preamble to our Constitution gave the Constitution

including the power to amend the Constitution to the bodies mentioned in Article 368.

These bodies represent the people. The method to amend any part of the Constitution as

provided for in Article 368 must be followed. Any other method as for example convening Constituent Assembly or Referendum will be extra Constitutional or revolutionary. In our Constitution Article 368 restricts only the procedure or the manner

and form required for amendment but not the kind or the character of the amendment that

may be made. There are no implied limitations to the amending power. The Attorney

General summed up pithily that the Constitution Acts not only for the people but on the people.

898. The Attorney General relied on several American decisions in support of these

propositions. First, the word "amendment" does not mean improvement. The view in *Livermore v. Waite* 102 Cal. 118 of a single learned Judge that amendment means improvement was not accepted in *Edwards v. Lessor* South Western Reporter Vol. 33, p.

1130. Second, ratification by people of States would be void when a federal amendment

proposed by Congress is required to be ratified by the legislatures of the States. *Ex-parte*

Dillon Federal Reporter No. 262 p. 563. The legislature is a mere agency for ratification

of a proposed amendment. *Ex-parte Dillon* did not accept the view of the learned single

Judges in *Livermore v. Waite* that amendment means only improvement. Third, the argument that the word "amendment" carries its own limitations regarding fundamental

principles or power of State or control of the conduct of the individuals by devising a

method of referendum by State legislatures is adding a new method of amendment. This

is not permissible. *Feigenspan v. Bodine* 264 Federal Reporter 186. The only method of

amendment is that prescribed by the Constitution. The theory of referendum by State

legislatures is not valid. Fourth, the assumption that ratification by State legislatures wi

ll

voice the will of the people is against the prescribed method of amendment and grant of

authority by the people to Congress in the manner laid down in Article V of the American

Constitution. It is not the function of Courts or legislative bodies to alter the method

which the Constitution has fixed. Ratification is not an act of legislation. It derives its

authority from the Constitution. *Hawke v. Smith* 253 U.S. 221; *Dillon v. Gloss* 256 U.S.

358, *Leser v. Garnett* 258 U.S. 130. Fifth, the power of amendment extends to every part of the Constitution. In amending the Constitution the General Assembly acts in the character and capacity of a convention expressing the supreme will or the sovereign people and is unlimited in its power save by the Constitution. Ex-parte Mrs. D.C. Kerby American Law Reports Annotated, Vol. 36, p. 1451. Sixth, the argument that amendments which touch rights of the people must be by convention is rejected by Supreme Court in American Article V of the American Constitution is clear in statement and meaning and contains no ambiguity. Where the intention is clear there is no room for construction. *Rhode Island v. Palmer* 253 U.S. 350; *U.S. v. Sprague* 282 U.S. 716. Seventh, principles of the Constitution can be changed under Article V *Schneiderman v. United States of America* 320 U.S. 118. Eight, the Constitution provides the method of alteration. While the procedure for amending the Constitution is restricted here is no restraint on the kind of amendment that may be made. *Whitehall v. Elkins* 389 U.S. 54.

899. Except for special methods of amendment in a rigid or controlled Constitution although the methods may vary in different Constitutions and except for express limitations, if any, in rigid or controlled Constitutions, the meaning and scope of the amending power is the same in both the flexible and rigid forms.

900. The flexible Constitution is one under which every law of every description can be legally changed with the same ease and in the same manner by one and the same body. Laws in a flexible Constitution are called Constitutional because they refer to subjects supposed to affect the fundamental institutions of the State, and not because they are legally more sacred or difficult to change than other laws.

901. A rigid Constitution is one under which certain laws generally known as Constitutional or fundamental laws cannot be changed in the same manner as ordinary laws. The rigidity of the Constitution consists in the absence of any right of the legislatures when acting in its ordinary capacity to modify or repeal definite laws termed Constitutional or fundamental. In a rigid Constitution the term "Constitution" means a particular enactment belonging to the Articles of the Constitution which cannot be legally changed with the same ease and in the same manner as ordinary laws.

902. The special machinery for Constitutional amendment is the limitation of the power of the legislature by greater law than by the law of the ordinary legislation. The Constituent Assembly knowing that it will disperse and leave the actual business of

legislation to another body, attempts to bring into the Constitution that it promulgates as many guides to future action as possible. It attempts to arrange for the "recreation of a constituent assembly" whenever such matters are in future to be considered, even though that assembly be nothing more than the ordinary legislature acting under certain restrictions. There may be some elements of the Constitution which the constituent assembly wants to remain unalterable. These elements are to be distinguished from the rest. The Fifth Clause in the United States Constitution is that no State without its own consent shall be deprived of its equal suffrage in the Senate. The Attorney General rightly said that just as there are no implied limitation in flexible Constitutions similarly there are no implied limitations in a rigid Constitution. The difference is only in the method of amendment. Amendment can be made by ordinary legislature under certain restrictions, or by people through referendum or by majority of all the units of a federal State or by a special convention.

903 In a rigid Constitution the legislatures by reason of their well matured long and deliberately formed opinion represent the will of the undoubted majority. But even such will can be thwarted in the amendment of the organic law by the will of the minority. In case where the requisite majority is not obtained by the minority thwarting an amendment, there is just as much danger to the State from revolution and violence as there is from what is said to be the caprice of the majority. The safeguards against radical changes[™] thus represent a better way and a natural way of securing deliberation, maturity and clear consciousness of purpose without antagonising the actual source of power in the democratic state.

904. The term "amendment" connotes a definite and formal process of Constitutional change. The force of tradition and custom and the judicial interpretation may all affect the organic structure of the State. These processes of change are the evolution of Constitution.

905. The background in which Article 368 was enacted by the Constituent Assembly has

an important aspect on the meaning and scope of the power of amendment.

906. On 12 November, 1946 Sir B.N. Rau Constitutional Adviser prepared a brochure

containing Constitution of the British Commonwealth Countries and the Constitutions of

other countries. Different countries having different modes of amendments were referred

to. In the same volume the fundamental rights under 13 heads were extracted from

selected countries like U.S.A., Switzerland, Germany, Russia, Ireland, Canada, Australia.

Two features follow from that list. First, there is no absolute standard as to what constitutes fundamental right. There is no such thing as agreed fundamental rights of the world. Second, fundamental rights which are accepted in our Constitution are not superior to fundamental rights in other Constitutions nor can it be said that the

fundamental rights are superior to Directive Principles in our Constitution.

907. On 17 March, 1947 a questionnaire was circulated under the subject as to what

provisions should be made regarding the amendment of the Constitution. The draft clause

of amendment to the Constitution prepared by the Constitutional Adviser at that time

indicates that an amendment may be initiated in either House of the Union Parliament

and when the proposed amendment is passed in each House by a majority of not less than

two thirds of the total number of members of that House and is ratified by the legislatures

of not less than two thirds of the units of the Union, excluding the Chief Commissionersâ™

Provinces, it shall be presented to the President for his assent; and upon such assent being

given the amendment shall come into operation. There were two explanations to that clause.

908. On 29 April, 1947 Shri Santhanamâ™s amendment to the draft clause was accepted.

The amendment was "that this clause also if necessary may be amended in the same way

as any other clause in the Constitution". In June, 1947 the drafting of the amending clause

started. Originally it was Numbered 232. Eventually, Articles 304 and 305 came into

existence in place of draft Article 232. The first draft of the amendment clause was given

by Sir B.N. Rau in March, 1947. By June, 1947 and thereafter he recommended the procedure favoured by Sir Alladi Krishnaswami Ayyar and Sir Gopalswami Ayyangar, namely, passage by two thirds majority in Parliament and ratification by like majority of

Provincial legislatures. On 21 February, 1948 the draft Constitution was ready. Draft

Articles 304 and 305 related to amendment Article 305 provided for reservation of seats

for minorities for ten years unless continued in operation by an amendment of the

Constitution.

909. The following features emerge. First, the Constituent Assembly made no distinction

between essential and non-essential features. Secondly, no one in the Constituent

Assembly said that fundamental rights could not be amended. The framers of the

Constitution did not have any debate on that. Thirdly, even in the First Constitution Amendment debate no one doubted change or amendment of fundamental rights. At no stage it appeared that fundamental rights are absolute. While a Constitution should be made sound and basic it should be flexible and for a period it should be possible to make necessary changes with relative facility.

910. Certain amendments to Article 304 were proposed. One proposed amendment No. 118 was that amendment was to be passed in two Houses by a clear majority of the total membership of each House. Another proposed amendment No. 210 was that for a period of three years from the commencement of the Constitution, any amendment certified by the President to be not one of substance might be made by a simple majority. This alsoTM stated that it would include any formal amendment recommended by a majority of the Judges of the Supreme Court on the ground of removing difficulties in the administration of the Constitution or for the purpose of carrying out the Constitution in public interest.

The third proposed amendment No. 212 was that no amendment which is calculated to infringe or restrict or diminish the scope of any individual rights, any rights of a person or persons with respect to property or otherwise, shall be permissible and any amendment which is or is likely to have such an effect shall be void and ultra vires of any legislatur e.

It is noteworthy that this amendment was withdrawn. See Constituent Assembly Debates Vol. IX p. 1665.

911. In the first category the framers devised amendment by Parliament by a simple majority. These are Articles 2 and 4 which deal with States. As far as creation or reConstitution of States is concerned, it is left to Parliament to achieve that by a simple majority. Again, draft Article 148A which eventually became Article 169 dealing with Upper Chambers in the States gave Parliament power to abolish the Upper Chambers or to create new Second Chambers. Schedules 5 and 6 were left to be amended by Parliament by simple majority. The second category of amendment requires two thirds majority. It is in that connection that the statement of Dr. Ambedkar "If the future Parliament wishes to amend any particular Article which is not mentioned in Part III or Article 304 all that is necessary for them is to have the two thirds majority then they can amend it" was invoked by Mr. Palkhivala to support his submission that Part III was unamendable. That is totally misreading the speech. The speech shows that some Articles

would be amendable by bare majority, others would require two thirds majority and the third category would require two thirds majority plus ratification by the States.

912. Proceedings in the Constituent Assembly show that the whole Constitution was taken in broad prospective and the amendments fell under three categories providing for simple majority, or two thirds; majority or two thirds majority and ratification by the States. These different procedures were laid down to avoid rigidity.

913. The Constitution First Amendment Act which added Article 15 (4), substituted words in Articles 19(2) and Article 19(6), inserted Article 31A indicates interesting features. The two criticisms at that time were as to what was the hurry and secondly that the Government was trying to take more power to itself. The answers are that a Constitution which is responsive to the people's will and their ideas and which can be varied here and there, will command respect and people will not fight against change.

Otherwise, if people feel that it is unchangeable and cannot be touched, the only thing to be done by those who wish to change it is to try to break it. That is a dangerous thing and a bad thing.

914. In this background there is no doubt about the meaning and scope of Article 368.

The Attorney General rightly said that if there be any doubt contemporaneous practical exposition of the Constitution is too strong and obstinate to be shaken or controlled. In

Mopherson v. Blacker 146 U.S. 1 it is said that where plain and clear words occur there is

no difficulty but where there is doubt and ambiguity contemporaneous and practical

exposition is a great weight. In The Automobile Transport (Rajasthan) Ltd. v. The State

of Rajasthan and Ors. (1963) 1 S.C.R. 491 this Court took notice of the feature that

Constitution makers had deep knowledge of Constitutions and Constitutional problems of

other countries.

915. Mr. Seervai relying on British Coal Corporation v. King (1935) A.C. 500 submitted

that in interpreting a constituent or organic statute that construction most beneficial to t

he

widest possible amplitude of powers must be adopted. A strict construction applicable to

penal or taxing statute will be subversive of the real intention of Parliament if applied to

an Act passed to ensure peace, order and good government. Largest meaning is given to

the allocated specific power. If there are no limitations on the power it is the whole

power. Grant of power of amendment cannot be cut down except by express or implied limitations. The conclusion is that the meaning of the word amendment is wide and not restricted.

916. The contention of Mr. Palkhivala on behalf of the petitioner is that under Article 368 as it stood prior to the amendment there were implied and inherent limitations on the power of amendment. It was said that the word "amendment" would preclude the power to alter or destroy the essential features and the basic elements and the fundamental principles of the Constitution. This contention was amplified as follows. The Constitution is given by the people unto themselves. The power to decide upon amendment is given to the 5 year Parliament which is a creature of the Constitution. Article 368 does not start with the non-obstante clause. Article 368 uses the word "amendment" simpliciter. Less significant amendment powers in others parts of the Constitution use the words "add, alter, repeal or vary" in addition to the word "amendment", as will appear in Articles 31B, 25(b), 252(2), 372, 372A(2), paragraph 7 Schedule 5, paragraph 21 Schedule 6. Article 368 talks of an amendment of this Constitution and does not extend the amending power to "all or any of the provisions of this Constitution". On a wide construction of the word "amendment" all fundamental rights can be taken away by the requisite majority whereas much less significant matters require the concurrence of at least half the States under the proviso to that Article.

917. The basic human freedom are all of the most fundamental importance to all the States and all the citizens. Article 32 is no less important to the citizens of States than Article 226. The Preamble is not a part or provision of the Constitution. Therefore, the Preamble cannot be amended under Article 368. The nature and the contents of the Preamble are such that it is incapable of being amended. If the Preamble is unalterable it necessarily follows that those features of the Constitution which are necessary to give effect to the Preamble are unalterable. Fundamental rights are intended to give effect to the Preamble. They cannot, therefore, be abridged or taken away. The provisions of Article 368 themselves can be amended under that very Article. If the word "amendment" is read in the widest sense Parliament will have the power to get rid of the requisite majority required by Article 368 and make any Constitutional amendments possible by bare majority, Parliament can provide that hereafter the Constitution shall be

unamendable. Parliament can reduce India to a status which is neither sovereign nor democratic nor republic and where the basic human rights are conspicuous by their absence.

918. Mr. Palkhivala submits that the principle of inherent or implied limitations on power to amend the controlled Constitution stems from three basic features. First, the ultimate legal sovereignty resides in the people. Second, Parliament is only a creature of the Constitution. Third, power to amend the Constitution or destroy the essential features of the Constitution is an application of ultimate legal sovereignty.

919. Mr. Palkhivala enumerated 12 essential features. These were as follows :

(1) The supremacy of the Constitution. (2) The sovereignty of India. (3) The integrity of the country. (4) The democratic way of life. (5) The republican form of Government. (6) The guarantee of basic human rights elaborated in Part III of the Constitution. (7) A secular State. (8) A free and independent judiciary. (9) The dual structure of the Union and the States. (10) The balance between the legislature, the executive and the judiciary. (11) a Parliamentary form of Government as distinct from the presidential form of Government.

(12) Article 368 can be amended but cannot be amended to empower Parliament to alter or destroy any of the essential features of the Constitution, make the Constitution literally or practically unamendable, make it generally amendable by a bare majority in Parliament, confer the power of amendment either expressly or in effect on the State Legislatures and delete the proviso and deprive the States of the power of ratification which is today available to them in certain broad areas.

920. The Constitution 24th Amendment Act was impeached by Mr. Palkhivala on three grounds. First, by substituting the words "amend by way of addition, variation or repeal"

in place of the word "amendment" in Article 368 the power was widened. Second, the

24th Amendment made explicit that when Parliament makes a Constitutional amendment

under Article 368 it acts in exercise of constituent power. Third, it had provided by

amendment in Articles 13 and 368 that the power in Article 13(2) against abridging or

taking away of the fundamental rights shall not apply to any amendment under Article

368. The Constitution 24th Amendment Act is, therefore, to be construed as empowering

Parliament to exercise full constituent power of the people and to vest in Parliament the

ultimate legal sovereignty of the people as authorising Parliament to alter or destroy all o

r any of the essential features, basic elements and fundamental principles of the Constitution. Likewise, Parliament is construed by the Constitution 24th Amendment Act

to be authorised to damage or destroy the essence of all or any of the fundamental rights.

Therefore, the amendment must be illegal and invalid.

921. In the alternative it was submitted on behalf of the petitioner that if the Constitution

n

24th Amendment is valid it can be only on a reading down of the amended provisions of

Article 13 and 368 which reading would preserve the original inherent and implied

limitations. Even after the Constitution 24th Amendment Act Parliament will have no

power to alter or destroy the essential features of the Constitution and secondly,

fundamental rights are among the essential features of the Constitution and, therefore, the

essence of any of the fundamental rights cannot be altered or destroyed or damaged even

when they are sought to be abridged.

922. The Attorney General stressed the background in which Article 368 was enacted by

the Constituent Assembly to show that any limitation on the amending power was never

in controversy. The only controversy was regarding the degree of flexibility of an

amendment of all the provisions of the Constitution. Our Constitution has adopted three

methods of amendment of the Constitution. Certain provisions of the Constitution may be

amended by a simple majority in Parliament. Others may be amended by two-thirds majority. The third category relates to provisions where amendments must be

ratified by one half of the States. This scheme strikes a good balance by protecting the rights of the

States while leaving the remainder of the Constitution easy to amend. Of the three ways

of amending the Constitution two are laid down in Article 368 itself and the third is

provided for in about 24 other Articles.

923. The Constitutional Adviser incorporated in his draft Constitution prepared by him in

October, 1947 a recommendation contained in the supplementary Report of the Union

Constitution Committee. Following the recommendation of the Advisory Committee he

included a proviso that the provisions in the Constitution relating to the reservation of

seats for the Muslims, the Scheduled Castes, the Scheduled Tribes, the Indian Christians

and the Sikhs, either in the Federal Parliament or in any Provincial Legislature, should

not be amended before the expiry of ten years from the commencement of the Constitution.

924. The Drafting Committee in February, 1948 considered the provisions for amendment. It made three material changes in the provisions made by the

Constitution

Adviser. First, the Committee framed a self contained and independent Article regarding

the reservation of seats in the legislatures for minorities. These provisions could not be amended for a period of ten years and would then cease to have effect unless continued in operation by an amendment of the Constitution. The second proposed change gave a limited power of initiating Constitutional amendments to the State legislatures. This power related to two matters. These were the methods of choosing Governors and the establishment or abolition of Legislative Councils in the States. The third amendment suggested was that changes in any of the legislative lists (not merely federal List) should receive ratification of at least one half of the Provincial legislatures and one third of the legislatures of Indian States.

925. The entire history of the power of amendment of the Constitution shows first that the Draft Constitution eliminates the elaborate and difficult procedures such as a decision by convention or a referendum. The powers of amendments are left with the legislatures of the Union and the States. Secondly, it is only for amendments of specific matters that the ratification by the State legislatures is required. All other Articles are left to be amended by Parliament with only limitation of majority of not less than a two-thirds of the members of each House present and voting and the majority of the total membership of each House. Thirdly, the provisions for amendment of the Constitution were made simple and not difficult when comparison is made with the American and the Australian Constitutions.

926. The theory of inherent and implied limitations on the amending power is based on the assumption of a narrow and restricted meaning of the word amendment to suggest that the basic features or the essential features and the democratic republican character of the Constitution cannot be damaged and destroyed. Emphasis is laid on the Preamble of the Constitution to suggest that inherent and implied limitations all spring from the Preamble. The Preamble is said not to be a part of the Constitution. The Preamble is said to be unalterable. Therefore, it is contended that other provisions which gave effect to the Preamble cannot be amended.

927. Reliance is placed on the decision of this Court in *Berubari case* (1960) 3 S.C.R. 250

in support of the proposition that the Preamble is not a part of the Constitution. The conclusion drawn is that no amendment of the Constitution inconsistent with the Preamble can be made. The Preamble is said to be an implied limitation on the power of amendment. This Court in *Berubari* case said that the Preamble has never been regarded as the source of any substantive power, because such powers are expressly granted in the body of the Constitution. This Court said "what is true about the powers is equally true about prohibitions and limitations". In *Berubari* case it was suggested that the Preamble to the Constitution postulated that like a democratic republican form of the Government the entire territory of India was beyond the reach of Parliament and could not be affected either by ordinary legislation or even by Constitutional amendment. The Preamble was invoked to cut down the power to cede territory either by ordinary law or by amendment of the Constitution. This Court said that the Preamble is, in the words of Story "a key to open the minds of the makers, but nevertheless the Preamble could not be said to postulate a limitation on one of the very important attributes of sovereignty". This Court rejected the theory that the Preamble can impose serious limitations on the essential attribute of sovereignty. The suggested limitation that the Preamble affirmed the inviolability of the territory of India so that the power of amendment should be implied limited to exclude the ceding territory, is negatived by this decision.

928. The petitioner's contention that the Preamble is not a part of the Constitution is nullified by the petitioner's reference to and reliance on the Preamble as the source of all inherent limitations. The *Berubari* case held that Article I could be amended under Article 368 and a part of the territory of India could be ceded by such amendment. The Preamble did not limit the power to cede territory by-amendment of Article I.

929. In the *Berubari* case there is an observation that the Preamble is not a part of the Constitution. The Preamble was taken up by the Constituent Assembly at the end as it had to be in conformity with the Constitution. The Preamble was debated and voted upon and the motion "The Preamble stand part of the Constitution" was adopted. Therefore, Mr. Seervai rightly contended that the Preamble is an integral part of the status. The Preamble can be repealed (See Craies on Statute 6th Ed. page 200 seq. and Halsbury Laws of England, 3rd Ed. Vol. 36 p. 370).

930. In *Gopalan* case (1950) S.C.R. 88 an argument was advanced on the Preamble that the people gave themselves guaranteeing to the citizens fundamental rights, and,

therefore, the provisions of Part III must be construed as being paramount to the legislative will as otherwise the fundamental rights to life and personal liberty would have no protection against legislative action. Patanjali Sastri, J., said that the high purpose and spirit of the Preamble as well as the Constitutional significance of a declaration of Fundamental Rights should be borne in mind. The language of the provisions, it was said there, could not be stretched in disregard of the cardinal rule of interpretation of any enactment, Constitution or other, that its spirit no less than its intendment should be collected primarily from the natural meaning of the words used.

The words "procedure established by law" in Article 21 must be taken to refer to a procedure which had a statutory origin. The word "law" was said not to mean the immutable and universal principle of natural justice. The reasoning given by Patanjali Sastri, J. was "no procedure is known or can be said to have been established by such vague and uncertain concepts as the imputable and universal principles of natural justice". This Court in Gopalan case refused to read due process as an implication of the Constitution.

931. In the Kerala Education Bill 1957 case (1959) S.C.R. 995 Das, C.J. referred to the Preamble and said "to implement and fortify the supreme purpose set forth in the Preamble, Part III of our Constitution has provided for us certain fundamental rights". In the same case, Das, C.J. said "so long as the Constitution stands as it is and is not altered,

it is inconceivably the duty of this Court to uphold the fundamental rights and thereby honour our sacred obligation to the minority community who are of our own". This observation shows that fundamental rights can be amended and the Preamble does not stand in the way.

932. In *Bheshwar Nath v. The C.I.T. Delhi* (1955) Supp. 1 S.C.R. 528 Bhagwati, J.

referred to the Preamble in discussing the question of waiver of fundamental right and

compared our Preamble to the Preamble to the United States Constitution. The Preamble

to the American Constitution is without the Bill of Rights and the Bill of Rights which

became part of the United States Constitution substantially altered its character and

broadly speaking, differed in no way, in principle, from our fundamental rights.

933. The Preamble is properly resorted to where doubts or ambiguities arise upon the

words of the enacting part. If the enacting words are clear and unambiguous, there is little

room for interpretation, except the cases leading to an obvious absurdity, or to a direct overthrow of the intention expressed in the Preamble. This is the view of Story. The Preamble can never be resorted to enlarge the powers confided to the general government

The Preamble can expound the nature, extent and application of the powers actually conferred by the Constitution and not substantively create them.

934. The decision of this Court in Gopalan case, the Coal Bearing Areas Act case (1962)

1 S.C.R. 44, and State of Rajasthan v. Leela Jain (1965) 1 S.C.R. 276 are that if the

language of the enactment is clear the Preamble cannot nullify or cut down the enactment. The Judicial Committee in The Secretary of State for India in Council v.

Maharajah of Bobbili I.L.R. 43 Mad. 529 said that the legislature may well intend that the

enacting part should extend beyond the apparent ambit of the Preamble or the immediate

mischief. See also Attorney General v. Prince Ernest Augustus of Haneyar 1957 A.C.

436. The American decision in Henning Jacobson v. Commonwealth of Massachusetts 197 U.S. 11 indicates that power is not conferred by the Preamble but must be found in the Constitution.

935. The Preamble may be relevant in the case of an ambiguity in an enactment in a

statute. A statute does not contain an amending power for the simple reason that the

statute can be amended under legislative power. The Attorney General rightly said that

the Preamble in a Constitution refers to the frame of the Constitution at the time of the

Preamble, and, therefore, it can possibly have no relevance to the constituent power in the

future, when that Constitution itself can be changed. The position would be the same so

far as the Preamble is concerned whether the constituent power is exercised by the

amending body provided for by the people themselves in the Constitution or by referendum if so provided for in the Constitution. The Attorney General supported his

submission by relying on the views of Canaway and Wynes on the similar interpretation

of Section 128 of the Australian Constitution.

936. Canaway in the Failure of Federalism in Australia in discussing Section 128 of the

Australian Constitution under the heading "Alteration of the Constitution" expresses the

view that the section must be read as a substantive grant of power to alter the Constitution

and that the negative form of the section in no way detracts from the amplitude of that

power. Canaway further says that it is not permissible to refer to the Preamble in

connection with the effect of Section 128 and if nevertheless such reference is made there

is nothing adverse to the conclusion that there is full power of amendment. The Preamble recites a preliminary agreement to unite in one indissoluble Federal Commonwealth.

Section 128 of the Australian Constitution forms an integral part of the Constitution. As

from the time of the agreement it must have been contemplated that the Constitution

should be alterable to the full extent of power conferred by that section.

Therefore, the

word "alter" in Section 128 of the Australian Constitution is not restricted by any

reference to the Preamble.

937. Wynes in Legislative, Executive and. Judicial Powers in Australia 4th Ed. at pp.

505-506 expresses the view that apart from the rule which excludes the Preamble generally from consideration in statutory interpretation it is clear that, when all is said

and done, the Preamble at the most is only a recital of a present intention. The insertion

of an express reference to an amendment in the Constitution itself is said to operate as a

qualification upon the mere recital of the reasons for its creation.

938. At the second reading of the Draft Constitution in the Constituent Assembly a

resolution was adopted that the Preamble do form part of our Constitution. The Preamble

is a part of the Constitution. On 26 November, 1949 certain Articles of the Constitution

were brought into force. Article 393 did come into force on 26 November, 1949.

Therefore, the Preamble did not come into force on 26 November, 1949. As regards general laws the position is that the Preamble has been treated as part of the statute.

939. Clear Constitutional provisions are imperative both on the legislatures and the

Courts. Where a Constitutional provision is comprehensive in scope and leaves no room

for interpretation the Court is without power to amend, add to or detract from a Constitutional provision or to create exceptions thereof by implication (See Corpus Juris

Secundum Vol. 16 p. 65). Where the people express themselves in careful and measured

terms in framing the Constitution and they leave as little as possible to implications,

amendments or changes in the existing order or conditions cannot be left to inserting

implications by reference to the Preamble which is an expression of the intention at the

time of the framing of the Constitution. Therefore, the power to amend the Constitution is

not restricted and controlled by the Preamble.

940. The contention that essential features are not amendable under Article 368 as it

stood before the Constitution 24th Amendment Act is not only reading negative

restrictions on the express power of amendment but is also putting the clock back. One of the salutary principles of construction of a statute is to be found in R.V. Burah 3 A.C. 889. It was a case to determine whether the prescribed limitations of a colonial legislature had been exceeded. The Judicial Committee said that a duty must be performed by looking to the terms of the instrument by which affirmatively legislative powers are created, and by which, negatively, they are restricted. "If what has been done is legislation within the general scope of the affirmative words which give power, and if it violates no express condition or restriction by which that power is limited, it is not for any court of justice to enquire further or to enlarge constructively those conditions and restrictions". The maxim *Expressum facit cessare taciturn* was similarly applied in Webb v. Outrim 1907 A.C. 89. The theory of implied and inherent limitations can be best described as a subtle attempt to annihilate the affirmative power of amendment. Lord Halsbury in Fielding v. Thomas 1896 A.C. 600 said that if the legislature had full power to make laws it was difficult to see how the power was taken away. The power is always sufficient for the purpose. Lord Dunedin in Whiteman v. Sadler 1910 A.C. 514 said "express enactment shuts the door to further implication". 941. It was said that the essential features could be amended by way of improvement but could not be damaged or destroyed. It was said India could not be converted into a totalitarian dictatorship. The entire approach of the petitioner to the power of amendment contained in Article 368 ignores the fact that the object of the Constitution is to provide for the organs of State like the judicature, legislature and the executive for the governance of the country. Apart from the essential functions of defence against external aggression and of maintenance of internal order a modern State is organised to secure the welfare of the people. India is a sovereign democratic republic which means that Parliament and State legislatures are elected on adult universal suffrage. The country is governed by the Cabinet system of government with ministries responsible to the House of the People and to the Legislative Assemblies respectively. In a democracy the determination of policies to be pursued can only be determined by a majority vote cast at election and then by a majority of the elected representatives in the legislature. Holmes, J., said "In a democracy the people have the right to embody their opinion in law". 942. The argument that if unbridled power were conferred the Constitution could be

subverted or destroyed is not supported by actual experience in India. Mr. Seervai emphasised that since 1951 when Shankari Prasad case recognised unlimited power of amendment till Golak Nath case in 1967 the normal democratic process of the departments of the State functioned as provided by the Constitution. Elections have been held as provided by the Constitution. If any body or organised party were bent upon subverting our free Constitution, then even if there were no power of amendment, Parliament has powers which would enable such destruction to be brought about. Great and wide powers are conferred for the governance of great sovereign countries and such powers cannot be withheld on the ground that they may be used externally or oppressively. Well settled principles of construction in interpreting Constitutions preclude limiting the language of the Constitution by political, juristic or social concepts independently of the language of the Constitution to be interpreted. This Court in *Chand v. State of Uttar Pradesh and Ors.* (1959) Supp. 2 S.C.R. 8 relied on the test laid down in *Queen v. Burah* (1878) 5 I.A. 179 that the terms of the instrument by which affirmatively the powers are created, and by which they are negatively restricted are to be looked into. The Judicial Committee in *Attorney General for Ontario v. Attorney General for Canada* 1912 A.C. 571 tersely stated the legal principles as follows : "If the text is explicit the text is conclusive, alike in what it directs and what it forbids". This is the golden rule of construction of a written Constitution. 943. In *Gopalan case* 1950 S.C.R. 88 this Court was invited to read into the Constitution implications derived from the "spirit of the Constitution". Kania, C.J. said that to strike down the law on an assumed principle of construction would be "to place in the hands of the judiciary powers too great and too indefinite either for its own security or the protection of private rights". Kania, C.J. also said that a large and liberal interpretation should be given to the Constitution. That does not mean that a Court is free to stretch or pervert the language of the Constitution in the interest of any legal or Constitutional theory. This Court in *Keshavan Madhavan Menon v. The State of Bombay* 1951 S.C.R. 228 rejected the contention that the spirit of the Constitution should be invoked in interpreting the Constitution. In *Benoari Lal Sharma case* 72 I.A. 57, the Privy Council reversed the judgment of the Federal Court observing that questions of jurisprudence or policy were not relevant to the construction of power conferred in an affirmative

language and not restricted in any negative terms.

944. A Constitution is essentially a frame of government laying down governmental powers exercisable by the legislature, executive and the judiciary. Even so other provisions are included in the Constitution of a country which provisions are considered by the framers of that Constitution to have such special importance that those should be included in the Constitution or organic law. Thus all provisions of the Constitution are essential and no distinction can be made between essential and non-essential features from the point of view of amendment unless the makers of the Constitution make it expressly clear in the Constitution itself. The Attorney General rightly said that if the positive power of "amendment of this Constitution" in Article 368 is restricted by raising the walls of essential features or core of essential features, the clear intention of the Constituent Assembly will be nullified and that would make a mockery of the Constitution and that would lead to destruction of the Constitution by paving the way for extra Constitutional or revolutionary changes in the Constitution. The theory of implied and inherent limitations cannot be allowed to act as a boa constrictor to the clear and unambiguous power of amendment.

945. If there is no express prohibition against amendment in Article 368 the omission of any such restriction did not intend to impose any restriction. When certain restrictions are imposed it is not intended that other undefined restrictions should be imposed by implication. The general rule is not to import into statutes words which are not found there. Words are not to be added by implication into the language of a statute unless it is necessary to do so to give the paragraph sense and meaning in its context. If a matter is altogether omitted from statute it is not allowable to insert it by implication. Where the language of an Act is clear and explicit, effect is to be given to it whatever may be the consequences. The words of the statute speak the intention of the legislature. Where the reading of a statute produces an intelligible result there is no ground for reading any words or changing any words according to what may be supposed intention of the legislature. If a statute is passed for the purpose of enabling something to be done but omits to mention in Terms some detail which is of great importance to the proper performance of the work which the statute has in contemplation the courts are at liberty to infer that the statute by implication empowers the details to be carried out. The implication is to empower the authority to do that which is necessary in order

to accomplish the ultimate object.

946. The implication sought to be raised by Mr. Palkhivala is for the purpose of reading negative words into Article 368 to destroy the positive power to amend. The provisions of out Constitution in the light of historical background and special problems of the country will show that no provision can be considered as non-essential. The Constitutionmakers did not think so. The Attorney General rightly contended that no one has the power or authority to say that any single provision is more essential than another or that the amending power under Article 368 does not operate on any provision on the ground of alleged essentiality when Article 368 provides amendment of this Constitution which obviously means the whole Constitution including every provision. In a Constitution different methods of amendment may be laid down depending upon the degree of importance attached to particular parts of the Constitution. Apart from the language of Article 368 the draft Constitution as it emerged through the Constituent Assembly shows that no provision of the Constitution was excepted from the amending power.

947. The provisions for the purpose of amendment were divided into four categories. The first two categories are to be found in Article 368. Certain provisions require ratification by the requisite number of States as are mentioned in the proviso. Other provisions which do not fall within the proviso are amendable by a double majority provided there. The third category consists of Articles 4, 169, 240(1), paragraph 7 Schedule 5, and paragraph 21 Schedule 6. The fourth category consists of provisions which were said by the Attorney General to confer enabling power on Parliament to change the provisions by the expression "unless Parliament otherwise provides" or similar expression. He gave the examples which are Articles 73(2), 100(3), 105(3), 118(2), 120(2), 125, 133(3), 171(2), 189(3), 194(3), 210(2), 241(2), 283(1) and (2), 285(1) and (2), 343(3), 345, 348(1).

948. The character of the provisions which are amendable under the proviso to Article 368 itself shows that petitioner's submission that essential features are unamendable is a baseless vision. Article 54 speaks of the method of election of the President. This may be changed. The manner or scale of representation of the different States in regard to the election of the President may also be changed. The executive power of the Union and the States may be changed. Chapter IV of Part V (the Union Judiciary), Chapter V of Part VI (the High Courts in the States) are also mentioned in Article 368 as liable to be changed. Article 141 may also be changed. Chapter I of Part XI and the Seventh Schedule

(legislative relations between Union and the States) may be changed. The representation of the States in Parliament (Articles 80 and 81) may be changed. The number of representation may be increased or reduced. The method of election of such representatives as Parliament may by law prescribe and the number of the members of the House of the People may be increased or reduced. The method of election to the House of People may be changed. Finally the provisions of Article 368 itself, which is the most important part of the Constitution may be changed.

949. To find out essential or non-essential features is an exercise in imponderables. When the Constitution does not make any distinction between essential and non-essential features it is incomprehensible as to how such a distinction can be made. Again, the question arises as to who will make such a distinction. Both aspects expose the egregious character of inherent and implied limitations as to essential features or core of essential features of the Constitution being unamendable. Who is to judge what the essential features are ? On what touchstone are the essential features to be measured? Is there any yardstick by which it can be gauged ? How much is essential and how much is not essential? How can the essential features or the core of the essential features be determined? If there are no indications in the Constitution as to what the essential features are the task of amendment of the Constitution becomes an unpredictable and indeterminate task. There must be an objective data and standard by which it can be predicated as to what is essential and what is not essential. If Parliament cannot judge these features Parliament cannot, amend the Constitution. If, on the other hand, amendments are carried out by Parliament the petitioner contends that eventually court will find out as to whether the amendment violates or abridges essential features or the core of essential features. In the ultimate analysis it is the Court which will pronounce on the amendment as to whether it is permissible or not. This construction will have the effect of robbing Parliament of the power of amendment and reposing the final power of expressing validity of amendment in the courts.

950. Mr. Palkhivala said that though the essential features could be amended the core of essential features could not be amended. He said that there was no esoteric test to find out what is essential and what is not essential and if no precise definition could be given that was no reason to hold that the essential features and the core of essential features could be amended. It was said that the appreciation of the trained judicial mind is the only way

to find out what essential features are.

951. Mr. Seervai rightly contended that there is no foundation for the analogy that just as Judges test reasonableness in law, similarly the judicial mind will find out the essential features on the test of, reasonableness. Reasonableness in law is treated as an objective criterion because reason inheres in man as rational being. The citizen whose rights are affected applies reason and when he assails a law he possesses a standard by which he can persuade the Court that the law is unreasonable. The legislature which makes a law has the standard of reasonableness and has the further qualification to apply the standard because of familiarity with the needs, desires and the wants of the people whom the legislature represents. As regards the Judge not only does he share the reasonableness of the reasonable man but his trained mind enables him to see certain aspects clearly. The process of judicial review of legislation as laid down by Courts is that the Court will star

t with the presumption that laws enacted are reasonable. The objective standard is reasonableness. That is why in the law of contract reasonable price is to be ascertained by the Courts. In the law of torts the Courts find out what reasonable care is. In the law of property reasonable conduct is found out by the Courts to avoid evil consequences. Reasonableness is to be judged with reference to the right which is restricted when

Article 19 is considered.

952. The American Courts evolved a test of reasonableness by the doctrine of substantive due process which means not that the law is unreasonable but that on political, social and economic grounds the majority of Judges consider that the law ought not be permitted to be made. The crucial point is that in contradistinction to the American Constitution where rights are couched in wide general terms leaving it to the Courts to evolve necessary limitations our Constitution limited it by precise words of limitation as for example in Articles 19 and 21. In Article 21 the Constitution-makers substituted "procedure established by law" for the words "due process of law". The reason for the change was that the procedure established by law was specific. The framers of the Constitution negatived the vague indefinite reasonableness of laws on political, social and economic grounds. In Gopalan case due process was rejected, by clearly limiting the rights acquired

and by eliminating the indefinite due process. The Constitution makers freed judicial review of subjective determination. Due process as a test of invalidity of law was deliberately withheld or denied. Courts are not concerned with the wisdom or policy of legislation. The Courts are equally not concerned with the wisdom and policy of amendments to the Constitution.

953. Reliance was placed by Mr. Palkhivala on *Ridge v. Baldwin* 1964 A.C. 40 where it is said that opinions that natural justice is so vague as to be practically meaningless, are tainted by the perennial fallacy that because something cannot be cut and dried or nicely weighed or measured therefore it does not exist. In the same case it was said that the idea of negligence is equally insusceptible to exact definition, but what a reasonable man would regard as fair procedure in particular circumstances and what he would regard as negligence in particular circumstances are equally capable of serving as tests in law.

Extracting those observations it was said by Mr. Palkhivala that though the border-line between essential features and non-essential features could not be stated or it was not possible to specify exhaustively the amendment which could be invalid on that principle yet there was no reason why the principle of inherent and implied limitations to amend our Constitution should not be accepted. Inherent and implied limitations cannot originate in an oracle when the Constitution does not contain any express prohibition against amending any provision. When Article 368 speaks of changes in the provisions of the Constitution as are set out in Clauses (a) to (d) of the proviso it is manifest that the makers of the Constitution expressed their intention with unerring accuracy that features which can broadly be described as federal features, and from that point of view "Essential features" could be amended. In the face of these express provisions it is impossible to hold that the Constitution does not contemplate an amendment of the so called essential features of the Constitution. The proviso confers that power with relation to the judiciary, the executive and the legislature, none of which could be said to be inessential. Indeed it is difficult to imagine that the Constitution contained any provision which was inessential. It need be hardly said that amendment not only means alteration, addition or repeal of provision but also deletion of some part, partial repeal and addition of a new part.

954. It was said that if our Parliamentary system was changed to a Presidential system it

would be amending the core of our Constitution. But such a change is permissible under Article 368. Whether the people would adopt such an amendment is a different matter and does not fall for consideration here. The core of the federal form of Government in our country is greater power in the Union Parliament than States for preserving the integrity of the country. There can be changes by having a confederation or by conferring greater power on the Centre. Those contentions about unamendability of essential features do not take into consideration that the extent and character of any change in the provisions of the Constitution is to be determined by legislatures as amending bodies under Article 368 and as representatives of the people in a democracy and it is not the function of the Courts to make any such determination.

955. Mr. Palkhivala contends that the Constitution 24th Amendment Act is unconstitutional because Parliament cannot exceed the alleged implied and inherent limitations on the amending power as it stood before the 24th Amendment. The 24th Amendment has substituted the marginal note "Power of Parliament to amend the Constitution and procedure therefor" for the original note "procedure for amendment of the Constitution". This change is due to the fact that according to the leading majority judgment in Golak Nath case the unamended Article dealt only with the procedure for amendment and that the power of amendment was in the residuary power of legislation. The 24th Amendment has declared that the power to amend the Constitution is in Article 368. That was the view of this Court in earlier decisions. That was the minority view in Golak Nath case. By amendment that view has become the Constitutional mandate.

956. The other change as a result of the 24th Amendment is that "Parliament may exercise of its constituent power amend" in place of words "amendment of this Constitution may be initiated". The reasons for this change are to give effect to the decisions of this Court in Shankari Prasad case which in considering the validity of the First Amendment recognised and affirmed the vital distinction between constituent power and legislative power and decided that the word "law" in Article 13(2) applied to the exercise of legislative power and did not apply to an amendment of the Constitution. In Sajjan Singh case the same distinction was upheld by the majority of this Court. In Golak Nath case the majority and the concurring judgment denied the distinction between legislative and constituent power and held that Article 13(2) applied to an amendment of the Constitution under Article 368 because there was no distinction between legislative

and constituent power. As a consequence the leading majority judgment in Golak Nath case held that Parliament could not amend fundamental rights. The dissenting judgments in Golak Nath case upheld the vital distinction between legislative and constituent powers and held that the decision in Shankari Prasad case and the majority decision in Sajjan Singh case were correct and that Parliament had power to amend the fundamental rights since an amendment of the Constitution was not law within the meaning of Article 13(2).

These features give the reason why the expression "Parliament may in the exercise of constituent power" was introduced by the 24th Amendment. Parliament took notice of two conflicting views and the unamended Article 368. Parliament took notice of the preponderating judicial opinion in favour of the view that Article 368 contained the power of amendment and that power was a constituent power. Wanchoo, J. held that the power under Article 368 is constituent power to change the fundamental law, that is to say the Constitution. The constituent power under the Constitution belonged to Parliament because the Constitution gave it. The Amendment made explicit what the judgment in Shankari Prasad case and the majority judgment in Sajjan Singh case and the dissenting judgment in Golak Nath case said, namely that Parliament has the constituent power to amend the Constitution.

957. The unamended Article used the words "An amendment of this Constitution". The

24th Amendment used the words "Parliament may...amend by way of addition, variation or repeal any provision of this Constitution". This has been done because the leading majority judgment in Golak Nath case expressed the view that there is considerable force in the argument that the expression "amendment" in Article 368 has a positive and negative content in exercise of which Parliament cannot destroy the structure of the Constitution but it can only modify the provisions thereof within the framework of the original instrument for its better effect. This observation in Golak Nath case raised a doubt as to the meaning of the word "amendment". The 24th Amendment has expressly clarified that doubt.

958. The leading majority judgment and the concurring judgment in Golak Nath case both held that the fundamental rights could not be amended by Parliament. The leading majority judgment with reference to the meaning of the word "amendment" and without deciding the matter observed that there was great force in the argument that

certain fundamental features e.g. the concept of federalism, the institutions of the President and the Parliamentary executive could not be abolished by amendment. Shankari Prasad case, Sajjan Singh case and the dissenting minority judgment in Golak Nath case took the view that every provision of the Constitution could be amended in exercise of constituent power. As a necessary corollary, the 24th Amendment excludes the operation of Article 13 by amending Article 13 by a new Sub-article (4) that nothing in Article 13 shall apply to any amendment of this Constitution under Article 368. The amendment of Article 13 by an insertion of Sub-article (4) is also reinforced by the opening words introduced in Article 368 by the 24th Amendment, viz., notwithstanding anything contained in this Constitution, which would certainly exclude Article 13.

959. The Constitution 24th Amendment Act raises three aspects. First, does the word "amend" include abrogation or repeal of the whole Constitution? Does amendment mean that there is some feature of the Constitution which cannot be changed. Secondly, what light does the proviso to Article 368 throw on the nature of the amending power and on the doctrine of inherent and implied limitations on the amending power that essential features of the Constitution cannot be damaged or destroyed. Thirdly, does Clause (e) of the proviso to Article 368 enable Parliament and the requisite majority of the States to increase the power of amendment that was conferred by Article 368.

960. Article 368 in the unamended form contained power as well as self executing procedure which if followed by the prescribed authorities would result in an amendment of the Constitution. Both the Attorney General and Mr. Seervai rightly said that the words "Constitution shall stand amended" in Article 368 will exclude a simple repeal that is without substituting anything in place of the repealed Constitution. If the Constitution were totally repealed and a vacuum was created it could not be said that the Constitution stands amended. The Constitution means the mode in which a State is constituted or organised specially as to the location of sovereign power. The Constitution also means the system or body of fundamental principles according to which the nation, State and body politic is constituted and governed. In the case of a written Constitution the Constitution is more fundamental than any particular law and contains a principle with which all legislation must be in harmony. Therefore, an amendment of the Constitution is an amendment of something which provides a system according to which a State or nation is governed. An amendment of the Constitution is to make fundamental changes in the Constitution. Fundamental or basic principles can be changed. There can be radical change in the Constitution like introducing a Presidential system of government

for a

cabinet system or a unitary system for a federal system. But such amendment would in its wake bring all consequential changes for the smooth working of the new system. 961. However radical the change the amendment must provide for the mode in which the

State is constituted or organised. The question which was often put by Mr. Palkhivala

drawing a panorama of a totalitarian State in place of the existing Constitution can be

simply answered by saying that the words "The Constitution shall stand amended" indicate that the Constitution of India is being referred to. The power of amendment is

unlimited so long as the result is an amended Constitution, that is to say, an organic

instrument which provides for the making interpretation and implementation of law.

962. The theory of unamendability of so called essential features is unmeritorious in the

face of express provisions in Article 368 particularly in Clauses (a) to (d) of the proviso.

Clauses (a) to (d) relate to 66 Articles dealing with some of the most important features

of the Constitution. Those Articles relate to the judiciary, the legislature and the

executive. The legislative relations between the Union and the States and the distribution

of legislative power between them are all within the ambit of amendment.

963. The question which was raised by Mr. Palkhivala as to whether under proviso (e) to

the unamended Article 368 the power of amendment could be increased is answered in

the affirmative. The reasons broadly stated are three.

964. First, under Article 368 proviso (e) any limitation on the power of amendment

alleged to be found in any other Article of the Constitution can be removed. The full

magnitude of the power of amendment which would have existed but for the limitation

could be restored and the power of amendment increase. In Golak Nath case the majority

view was that Article 13(2) operated as a limitation on the power of amendment. The

24th Amendment took note of that decision and removed all doubts by amending Article

13(2) and providing a new Sub-article (4) there and also by amending Article 368 to the

effect that Article 13(2) shall not apply to any amendment of the Constitution. If the

express limitation which had been judicially held to constitute a bar to the amendment of

fundamental rights could be removed by amending Article 368 under Clause (e) to the

proviso any other alleged implied limitation can be similarly removed.

965. Secondly, judicial decisions show that by amending the Article conferring the power

of amendment a greater power to amend the Constitution can be obtained than was conferred by the original Article. In Ryan case 1935 Irish Report 170 all the learned

Judges excepting the Chief Justice held that by first amending Section 50 of the Irish Constitution which conferred the power of amendment subject to certain restrictions thereon so as to remove the restrictions contained in that section, the Irish Parliament effectively increased its power in the sense that an amendment could be made which those express restrictions would have prohibited. Again in *Ranasinghe* case 1965 A.C. 172 it was said that a legislature has no power to ignore the conditions of law making that are imposed by the instrument which regulates its power. This restriction created by the instrument exists independently of the question whether the legislature is sovereign or whether the Constitution is uncontrolled. The Judicial Committee held that "such a Constitution can indeed be altered or amended by the legislature if the regulating instrument so provides and if the terms of those provisions are complied with and the alteration or amendment may include the change or abolition of those very provision". Thus a controlled Constitution can be converted into an uncontrolled Constitution vastly increasing the power of amendment.

966. Thirdly, the power to amend the amending Article must include the power to add, alter or repeal any part of that Article and there is no reason why the addition cannot confer a power of amendment which the authorities named in Article 368 did not possess. By the exercise of the amending power provision can be made which can increase the powers of Parliament or increase the powers of the States. Again, by amendment future amendments can be made more difficult. The picture drawn by Mr. Palkhivala that a future amendment would be rendered impossible either by absolutely forbidding amendment or by prescribing an impractically large majority does not present any legal impediment to such an amendment. The safeguard against such action is external. The contingency of any such amendment being proposed and accepted is extremely remote because such an amendment might sow the seeds of revolution which would be the only way to bring about the change in the Constitution. The Solicitor General rightly said that the effect of the amendment is that "it shall stand amended in accordance with the terms of the Bill". The product is not required to be "this Constitution". It will not be identically the old Constitution. It will be a changed or amended Constitution and its resemblance will depend on the extent of the change. More rigid process like referendum or initiative or greater majority or ratification by a larger number of States might be introduced by

amendment.

967. It is important to note that proviso (e) to Article 368, namely, the power to amend

Article 368 is unlike perhaps some Constitutions which were before the Constituent

Assembly when our Constitution was framed. Neither the American nor the Australian

Constitution provided for any power to amend the amending provision itself. The Attorney General rightly contended that this forcefully expresses a clear and deliberate

intention of the Constituent Assembly that apart from providing for a less rigid amending

formula the Constituent Assembly took care to avoid the controversy in America as to

whether express limitation on Article V of the American Constitution itself regarding

equal suffrage of the States in the Senate could be amended or the controversy in

Australia as to whether Section 128 of the Australian Constitution itself could be

amended as there was no express limitation on such amendment. The Constituent Assembly provided in Clause (e) to Article 368 express and specific power of amendment of Article 368 itself.

968. The amplitude of the amending power in our Constitution stands in bold relief in

comparison with Article V of the American Constitution, Section 128 of the Australian

Constitution and Section 50 of the Irish Constitution none of which confers such a power.

Dr. Wynes in his Legislative Powers in Australia 4th Ed. p. 505 expresses the view that

though Section 128 is negative in form but the power of amendment extends to alteration

"of this Constitution" and this power is implied by its terms. Dr. Wynes also states that by

the consent of the States the last part of Section 128 could be amended. This is only to

illustrate as to how other Constitutions are understood by jurists in their countries. Our

Article 368 contains no express limitation on the power of amendment. The provision of

Clause (e) in the proviso to Article 368 is not limited to federal features.

969. The words "amendment of this Constitution" in Section 50 of the Irish Constitution

which formed the subject of decision in Ryan case 1935 Irish Report 170 were read by

Kennedy, C.J. in his dissenting view to mean that if power to amend Section 50 itself was

intended to be given the framers of the Constitution would have said so. Mr. Palkhivala

relied on this dissenting view. Other learned Judges who formed the majority held that

the words "amendment of this Constitution" conferred power to amend that Section 50 as

well. If no intention to amend that section itself is expressed there is nothing which can

be implied was the dissent. Therefore, it would follow even according to the dissent that

no implied limitations on the power of amendment can be read in Section 50 if an express power of amendment has been conferred by the Constitution.

970. Mr. Palkhivala contended that the people reserved the power to themselves to amend the essential features of the Constitution and if any such amendment were to be made it should be referred to the people by referendum. It was said that the Constitution makers did not intend that essential features should be damaged or destroyed even by the people, and therefore, the Constitution did not provide for referendum. The other contention on behalf of the petitioner was that referendum was not provided for because it might have been difficult to have the Constitution accepted on those terms. The second view would not eliminate the introduction of referendum as a method of amendment. If a referendum were introduced by an amendment people would have complete power to deal with essential features. The other question would be as to whether the Preamble and the fundamental rights would be a limitation on the power of the people. On behalf of the petitioner it was said that it was not necessary to decide the questions. Both the Attorney General and Mr. Seervai correctly said that the submissions made on behalf of the petitioner indicated that if essential features could be amended by the people the very fact that the Constituent Assembly did not include referendum as one of the methods of amendment and that the Constitution makers excluded no part of the Constitution from amendment established that the amendment of a written Constitution can be legally done only by the method prescribed by the Constitution. If the method of referendum be adopted for purpose of amendment as suggested by Mr. Palkhivala that would be extra Constitutional or revolutionary. The amending body to amend the Constitution represents the will of the people.

971. Therefore, as long as Article 368 may be amended under proviso (e) any amendment of the Constitution by recourse to referendum would be revolutionary. Mr. Palkhivala on behalf of the petitioner did not rely on the majority decision in Golak Nath case that the fundamental rights could be abridged or taken away only by convening a Constituent Assembly, but based his argument on a theory of legal sovereignty of the people. The Constitution is binding on all the organs of government as well as on the people. The Attorney General rightly submitted that the concept of popular sovereignty is well settled in parliamentary democracy and it means that the people express their will through their

representatives elected by them at the general election as the amending body prescribed by the Constitution.

972. Are fundamental rights unamendable? Mr. Palkhivala contended that apart from

Article 13(2) fundamental rights are based on Universal Declaration of Human Rights

and are natural rights, and, therefore, they are outside the scope of amendment. In *Golak*

Nath case the majority view declined to pronounce any opinion on alleged essential

features other than fundamental rights. The concurring view was that fundamental rights

were unamendable because they were fundamental. Wanchoo, J. for himself and two other learned Judges and Ramaswami, J. rightly rejected the theory of implied limitations. The three reasons given by Wanchoo, J. are these. First, the doctrine of

essential and non-essential features would introduce uncertainty. Secondly, constituent

power of amendment does not admit of any impediment of implied restrictions. Thirdly,

because there is no express limitation there can be no implied limitation.

973. Mr. Seervai correctly contended that there is intrinsic evidence in the provisions of

Part III itself that our Constitution does not adopt the theory that fundamental rights are

natural rights or moral rights which every human being is at all times to have simply

because of the fact that as opposed to other things he is rational and moral. The language

of Article 13(2) shows that these rights are conferred by the people of India under the

Constitution and they are such rights as the people thought fit to be in the organised

society or State which they were creating. These rights did not belong to the people of

India before 26 January 1950 and would not have been claimed by them. Article 19 embodies valuable rights. Rights under Article 19 are limited only to citizens.

Foreigners

are human beings but they are not given fundamental rights because these rights are

conferred only on citizens as citizens.

974. Article 33 enacts that Parliament may by law modify rights conferred by Part III in

their application to Armed Forces. Parliament may restrict or abrogate any of the rights

conferred by Part III so as to ensure the proper discharge of the duties of the Armed

Forces and the maintenance of discipline among them. Therefore, Article 33 shows that

citizens can be denied some of these rights. If these are natural rights these cannot be

abrogated. Article 34 shows that Parliament may by law indemnify any person in respect

of any act done by him in connection with the maintenance or restoration of order in any

area where martial law was in force or validate any sentence passed, punishment inflicted, forfeiture ordered or other act done under martial law in such area.

Article 34

again shows restriction on rights conferred by Part III while martial law is in force in any area. The dominant concept is social good. Where there is no restraint the society fails.

975. Articles 352 and 358 also illustrate as to how while the proclamation of emergency is in operation provisions of Article 19 are suspended during emergency. The framers of the Constitution emphasised the social content of those rights. The basic concept of fundamental right is therefore a social one and it has a social function. These rights are conferred by the Constitution. The nature of restriction on fundamental rights shows that there is nothing natural about those rights. The restrictions contemplated under Article 19(2) with regard to freedom of speech are essential parts of a well organised developed society. One must not look at location of power but one should see how it acts. The restrictions contemplated in Article 19 are basically social and political. Friendly relations with foreign states illustrate the political aspect of restrictions. There are similar restrictions on right to move freely. The protection of Scheduled Tribes is also reasonable in the interest of society. This Court in *Bheshwar Nath v. C.I.T. Delhi* (1959) Supp. 1. S.C.R. 528 said that there are no natural rights under our Constitution and natural rights played no part in the formulation of the provisions therein.

976. Articles 25 and 26 by their opening words show that the right to the freedom of religion is subject to the paramount interest of society and there is no part of the right however important to devotee which cannot and in many cases have not been denied in civilised society.

977. Subba Rao, C.J. in *Golak Nath* case equated fundamental rights with natural or promodial rights. The concurring majority view in *Golak Nath* case, however, said that there is no natural right in property and natural rights embrace the activity outside the status of citizen. Fundamental rights as both the Attorney General and Mr. Seervai rightly contended are given by the Constitution, and, therefore, they can be abridged or taken away by the people themselves acting as an organised society in a State by the representatives of the people by means of the amending process laid down in the Constitution itself. There are many Articles in Part III of our Constitution which cannot in any event be equated with any fundamental right in the sense of natural right. To illustrate Article 17 deals with abolition of untouchability. Article 18 speaks of abolition

of titles. Article 20 deals with protection in respect of conviction for offences. Article 2

3

refers to prohibition of traffic in human beings and forced labour. Article 24 deals with

prohibition of employment of children in factories, etc. Article 27 speaks of freedom as to

liability for taxes levied for promotion of any particular religion. Article 28 contemplates

freedom as to attendance at religious instruction or religious worship in certain

educational institutions. Article 29 deals with protection of interests of minorities. Article

31

(2) prior to the Constitution 25th Amendment Act spoke of payment of just equivalent

for acquisition or requisition of property. Article 31(4) deals with legislation pending at

the commencement of the Constitution. Articles 31(5) and (6) save certain types of laws.

Article 31A saves laws providing for acquisition of estates etc. Article 32 confers right to

move the Supreme Court.

978. The Constitution is the higher law and it attains a form which makes possible the

attribution to it of an entirely new set of validity, the validity of a statute emanating from

the

sovereign people. Invested with statutory form and implemented by judicial review

higher law becomes juristically the most fruitful for people. There is no higher law above

the Constitution.

979. Mr. Palkhivala relied on an Article by Conrad on Limitation of Amendment Procedure and the Constitutional Power. The writer refers to the West German Provincial

Constitution which has expressly excluded basic rights from amendment. If that is so the

question of basic rights being unamendable on the basis of higher law or natural law does

not arise. The conclusion of the writer is that whereas the American courts did not

consider declaring a Constitutional norm void because of a conflict with higher law the

German Jurisprudence broadened the concept of judicial review by recourse to natural

law. The post-war Constitution of West Germany distinguished between superior and

inferior Constitutional norms in so far as certain norms are not subject to amendment

whereas others are.

980. The Attorney General relied on Friedmann Legal Theory 5th Ed. on pp. 350 seq. to

show that there was a revival of natural law theory in contemporary German Legal Philosophy. This theory of natural law springs from the reaction against the excess of the

Nazi regime. The view of Friedmann is that natural law may disguise to pose itself the

conflict between the values which is a problem of constant and painful adjustment between competing interests, purposes and policies. This conflict is resolved by ethical or political evolution which finds place in legislative policies and also on the impact of changing ideas on the growth of law.

981. Fundamental rights are social rights conferred by the Constitution. There is no law above the Constitution. The Constitution does not recognise any type of law as natural law. Natural rights are summed up under the formula which became common during the Puritan Revolution namely life, liberty and property.

982. The theory of evolution of positive norms by supra-positive law as distinguished from superior positive law had important consequences in the post-war revival of natural law in some countries particularly Germany. Most of the German Constitutions from the early 19th Century to the Nazi Regime did not provide for judicial review. Under the Weimar regime, the legislature reigned supreme and legal positivism was brought to an extreme. The re-action after World War II was characterised by decreases of legislative power matched by an increase of judicial power. It is in this context that Conradâ€™s writing on which Mr. Palkhivala relied is to be understood. The entire suggestion is that norms could not only be judged by a superior law namely Constitutional law but by natural law to broaden the scope of judicial review. The acceptance of the doctrine of judicial review has been considered as a progress in Constitutional theory made between Declaration of Independence and the Federal Convention at Philadelphia.

983. On the one hand there is a school of extreme natural law philosophers who claim that a natural order establishes that private capitalism is good and socialism is bad. On the other hand, the more extreme versions of totalitarian legal philosophy deny the basic value of the human personality as such. Outside these extremes, there is a far greater degree of common aspirations. The basic autonomy and dignity of human personality is the moral foundation of the teaching of modern natural law philosophers, like Maritain. It is in this context that our fundamental rights and Directive Principles are to be read as having in the ultimate analysis a common good. The Directive Principles do not

constitute a set of subsidiary principles to fundamental rights of individuals. The Directive Principles embody the set of social principles to shape fundamental rights to grant a freer scope to the large scale welfare activities of the State. Therefore, it will b

e wrong to equate fundamental rights as natural, inalienable, primordial rights which are beyond the reach of the amendment of the Constitution. It is in this context that this Court in *Basheshar Nath v. C.I.T. Delhi* (1959) Supp. 1 S.C.R. 528 said that the doctrine of

natural rights is nothing but a foundation of shifting sand. 984. Mr. Seervai rightly said that if the power of amendment of the Constitution is coextensive with the power of the judiciary to invalidate laws, the democratic process and the co-ordinate nature of the great departments of the State are maintained. The democratic process is maintained because the will of the people to secure the necessary

power to enact laws by amendment of the Constitution is not defeated. The democratic process is also respected because when the judiciary strikes down a law on the ground of lack of power, or on the ground of violating a limitation on power, it is the duty of the legislature to accept that position, but if it is desired to pass the same law by acquiring the

necessary power, an amendment validly enacted enables the legislatures to do so and the democratic will to prevail. This process harmonises with the theory of our Constitution

that the three great departments of the State, the legislature, the judiciary and the executive are co-ordinate and that none is superior to the other. The normal interaction of enactment of law by the legislation, of interpretation by the courts, and of the amendment

of the Constitution by the legislature, go on as they were intended to go on. 985. If the power of amendment does not contain any limitation and if this power is denied by reading into the Constitution inherent limitations to extinguish the validity of

all amendments on the principles of essential features of the Constitution which are

undefined and untermmed, the courts will have to lay down a new Constitution.

986. It is said that the frame of the Government cannot be changed or abrogated by amendment of the Constitution. There is before us no aspect of abrogation of the form of

Government of the changes apprehended by the petitioners like the abrogation of the judiciary or extending the life of Parliament.

987. The problems of the times and the solutions of those problems are considered at the time of framing the Constitution. But those who frame the Constitution also know that

new and unforeseen problems may emerge, that problems once considered important may lose their importance, because priorities have changed; that solutions to problems once considered right and inevitable are shown to be wrong or to require considerable modification; that judicial interpretation may rob certain provisions of their intended effect; that public opinion may shift from one philosophy of government to another. Changes in the Constitution are thus actuated by a sense of duty to the people to help them get what they want out of life. There is no destiny of man in whose service some men can rightfully control others; there are only the desires and performances and ambitions that men actually have. The duty to maximise happiness means that it is easier to give people what they want than to make them want what you can easily give. The framers of the Constitution did not put any limitation on the amending power because the end of a Constitution is the safety, the greatness and well being of the people. Changes in the Constitution serve these great ends and carry out the real purposes of the Constitution.

988. The way in which the doctrine of inherent and implied limitations was invoked by Mr. Palkhivala in interpreting the Constitution was that the test of power under the Constitution must be to ascertain the worst that can be done in exercise of such power. Mr. Palkhivala submitted that if unbridled power of amendment were allowed the basic features of our Constitution, namely, the republican and/or democratic form of government and fundamental Rights could be destroyed and India could be converted into a totalitarian dictatorship. The Court was invited to take into account the consequences of the kind described. Mr. Palkhivala suggested that a wide power of amendment would lead to borrow his words to the liquidation of our Constitution.

989. The Attorney General rightly said that the unambiguous meaning of amendment could not be destroyed to nurse the theory of implied limitations. He also said that the live distinction between power and exercise of power is subject to popular will and popular control. The theory of implied and inherent limitation was a repudiation of democratic process. The Attorney General and Mr. Seervai also rightly said that the approach of the petitioner to the power of amendment contained in Article 368 of the Constitution ignores the fact that the object of the Constitution is to provide for departments of States like the judiciary, the legislature and the executive for the governance of a country. Apart from the essential functions of defence against external

aggression and of maintenance of internal order a modern State is organised to secure the welfare of the people. Parliament and State legislatures are elected on adult universal suffrage. The country is governed by the Cabinet system of Government with ministries responsible to the Houses of Parliament and to the Legislative Assemblies.

990. In a democracy the determination of the right policies to be pursued can only be determined by a majority vote cast at election and then by a majority of the elected representatives in the legislature. Democracy proceeds on the faith in the capacity to elect their representatives, and faith in the representatives to represent the people. The argument that the Constitution of India could be subverted or destroyed might have hortative appeal but it is not supportable by the actual experience in our country or in any country. The two basic postulates in democracy are faith in human reason and faith in Human nature. There is no higher faith than faith in democratic process. Democracy on adult suffrage is a great experiment in our country. The roots of our democracy are in the country and faith in the common man. That is how Mr. Seervai said that between 1951 when this Court recognised in *Sankari Prasad* case unlimited power of amendment till *Golak Nath* decision in 1967 the normal democratic process in our country functioned as provided by the Constitution.

991. The principle underlying the theory of taking consequences into account is best expressed in *Vacher & Sons v. London Society of Compositors* 1913 A.C. 107, where it was said that if any particular construction in construing the words of a statute was susceptible to more than one meaning, it was legitimate to consider the consequences which would result from any particular construction. The reason is that there are many things which the legislation is presumed not to have intended to bring about and therefore a construction which would not lead to any of these things should be preferred to one which would lead to one or more of them.

992. The doctrine of consequences has no application in construing a grant of power conferred by a Constitution. In considering a grant of power the largest meaning should be given to the words at the power in order to effectuate it fully. The two exceptions to this rule are these. First, in order to reconcile powers exclusively conferred on different legislatures, a narrower meaning can be given to one of the powers in order that both may operate as fully as is possible. (See *C.P. & Berar* case 1938 F.C.R. 18 and

Province of

Madras v. Governor General 72 I.A. 93). Second, technical terms must be given their

technical meaning even though it is narrower than the ordinary or popular meaning. The

State of Madras v. Gannon Dunkerley & Co. (Madras) Ltd. 1959 S.C.R. 379. In our Constitution powers are divided between federation and the States. An attempt must be

made to find the power in some entry or other because it must be assumed that no power

was intended to be left out.

993. The theory of consequences is misconstrued if it is taken to mean that considerations

of policy, wisdom and social or economic policies are included in the theory of consequences. In Vacher case it was said that the judicial tribunal, has nothing to do with

the policy of any Act and the only duty of the Court is to expound the language of the Act

in accordance with the settled rules of construction. In Attorney General for Ontario v.

Attorney General for Dominions 1912 A.C. 571 the Privy Council refused to read an

implication in the Constitution of Canada that there was no power to refer a matter for the

advisory opinion of the highest Court because advisory opinions were prejudicial to the

correct administration of justice and were embarrassing to Judges themselves who pronounced them, for humanly speaking it would be difficult for them to hear a case on

merits if they have already expressed an opinion. The Privy Council rejected this

argument and said that so far as it was a matter of wisdom and policy it was for the

determination of Parliament. In Bank of Toronto v. Lambe (1887) 12 A.C. 575 the Privy

Council was invited to hold that the legislature of a province could not levy a tax on

capital stock of the Bank, for that power might be exercised to destroy the Bank altogether. The Privy Council observed that if on a true construction of Section 92 of the

British North America Act the power fell within the section, it would be wrong to deny

its existence because by some possibility it might be abused.

994. The absurdity of the test of the worst that can be done in exercise of power is

demonstrated by the judgment of Chief Justice Taft in Grossman 69 L.Ed. 527 where it

was said that if those who were in separate control of each of the three branches of

Government were bent upon defeating the action of the other, normal operations of

Government would come to a halt and could be paralysed. Normal operations of the Government assume that all three branches must co-operate if Government is to go on.

Where the meaning is plain the Court must give effect to it even if it considers that such a

meaning would produce unreasonable result. In the Bihar Land Reforms case 1952 S.C.R. 889 Mahajan, J. said that agrarian laws enacted by the legislature and protected by

Articles 31(3) and (4) provided compensation which might appear to the Court unjust and

inequitable. But the Court gave effect to Articles 31(3) and (4) because the results were

intended and the remedy for the injustice lay with the legislature and not with the Court.

The construction to avoid absurdity must be used with great caution.

995. In Grundt case 1948 Ch. 145 it was said in choosing between two possible meanings

of ambiguous words, the absurdity or the nonabsurdity of one conclusion as compared

with another might be of assistance and in any event was not to be applied as to result in

twisting the language into a meaning which it could not bear.

996. The Attorney General rightly submitted that if power is conferred which is in clear

and unambiguous language and does not admit of more than one construction there can

be no scope for narrowing the clear meaning and width of the power by considering the

consequences of the exercise of the power and by so reading down the power. The question is not what may be supposed to be intended but what has been said. See Ross v.

Illison 1930 A.C. 1. The Supreme Court in Damselle Howard v. Illinois Central Rail

Road Co. 207 U.S. 463 said that you cannot destroy in order to save or save in order to

destroy. The real import is that a new law cannot be made by construction. The question

is one of intention. A meaning cannot be different which it cannot reasonably bear or will

be inconsistent with the intention. The very basis of Parliamentary democracy is that the

exercise of power is always subject to the popular will and popular control. The petitioner's theory of implied and inherent limitations is a repudiation of this democratic

process. The underlying theory of democratic government is "the right of a majority to

embody their opinion in law subject to the limitations imposed by the Constitution", per

Holmes, J. in Lochner v. New York 198 U.S. 45. In our Constitution Article 368 contains

no express limitation on the amendment of any provision of the Constitution.

997. Mr. Palkhivala relied on the amending provisions in the Constitution of America,

Canada, Australia, Ireland and Ceylon and also decisions on the power of amendment in

those countries in support of his submissions that a restricted meaning should be

attributed to the word "amendment" and implied and inherent limitations should be read

into the meaning and power of amendment.

998. Mr. Palkhivala also relied on the opinion of Cooley in a Treatise on the Constitutional Limitations at pages 36-37 that "a written Constitution is in every instance

a limitation upon the powers of government in the hands of agents; for there never was a written republican Constitution which delegated to functionaries all the latent powers which lie dormant in every nation, and are boundless in extent, and incapable of definition". This view of Cooley is not relevant to the amending power in Article V of the American Constitution. This view relates to the legislative power that a written Constitution is a limitation upon the powers of the Government, namely, the legislature, the executive and the judiciary.

999. The other views of Cooley in Constitutional Limitations at pages 341-343, 345-348, 351-354 are these. First except where the Constitution has imposed limitations upon the legislative power it must be considered as practically absolute, whether it operates according to natural justice or not in any particular case. Second, in the absence of Constitutional restraint the legislative department of a State Government has exclusive and ample power and its utterance is the public policy of the State upon that subject, and the Courts are without power to read into the Constitution a restraint of the legislature with respect thereto. Third, if the Courts are not at liberty to declare statutes void because of their apparent injustice or impolicy, neither can they do so because they appear to the minds of the Judges to violate fundamental principles of republican Government, unless it shall be found that those principles are placed beyond legislative encroachment by the Constitution. The principles of republican government are not a set of inflexible rules, vital and active in the Constitution, though unexpressed, but they are subject to variation and modification from motives of policy and public necessity. Fourth, the Courts are not at liberty to declare an act void, because in their opinion it is opposed to a spirit supposed to pervade the Constitution, but not expressed in words.

1000. Mr. Palkhivala relied on the views of George Skinner published in 18 Michigan Law Review (1919-1920) pages 21-225 to build the theory of implied and inherent limitations. The views extracted are these. The power given by the Constitution cannot be construed to authorise a destruction of other powers in the same instrument. The essential form and character of the Government, being determined by the location and distribution of power, cannot be changed, only the exercise of governmental functions can be regulated. A somewhat different view of Skinner in the same Law Review is that it is not

likely that the Supreme Court would put any limitations upon the power of Congress to propose amendments and in construing the Fifth Article it would be unwilling to say

Congress had proposed an amendment which it did not deem necessary. The discretion is left entirely with Congress.

1001. The other view on which Mr. Palkhivala relied is of William L. Marbury published

in 33 Harvard Law Review (1919-1920) at pp. 223-235. The views which Mr. Palkhivala

extracted are that it may be safely premised that the power to amend the Constitution was

not intended to include the power to destroy it. Marbury relies on *Livermore v. Waite* 102

Cal. 118 where it is stated that the term "amendment" implies such an addition or change

within the lines of the original instrument as will effect an improvement, or better carry

out the purpose for which it was framed.

1002. There are other views of Marbury on which the Attorney General relied and which

were not extracted by Mr. Palkhivala. Those views are that after excluding from the

scope of its amending power in Article V of the American Constitution such amendments

as take away legislative powers of the State there is still left a very broad field for its

operation. All sorts of amendments might be adopted which would change the framework

of the federal Government, the thing which the Constitution was created to establish,

which would change the distribution of power among the various departments of the

Government, place additional limitations upon them, or abolish old guarantees of civil

liberty and establish new ones.

1003. The Attorney General also relied on the view of Frierson published in 33 Harvard

Law Review pp. 659-666 as a reply to Marbury. Frierson's view is that the security for

the States was provided for by the provision for the necessity of ratification by three-fourths of the States. The Constitution committed to Congress and not to the Courts the

duty of determining what amendments were necessary. The rights of the States would

certainly be safer in the hands of three-fourths of the States themselves. This is

considered by the framers of the Constitution to ensure integrity of States.

1004. The Attorney General also relied on the view of McGovney published in Vol. 20

Columbia Law Review. McGovney points out a distinction between a political society or

State on the one hand and governmental organs on the other to appreciate that Constitutional limitations are against governmental organs. The writer's view

is that an individual has no legal rights against a sovereign organised political society except what

the society gives. The doctrine of national sovereignty means that people who made the existing distribution of powers between the federal and the State Governments may alter it. Amendment is left to legislatures because as a matter of convenience the legislatures generally express the will of the people. In the Constitution the people prescribe the manner in which they shall amend the Constitution. McGovney states that an amendment of a particular statute means usually it is a change germane to the subject matter of that statute. Any change in the Government of the nation is germane to the Constitution. Any change altering the dispositions of power would therefore be germane to the purposes of the instrument. McGovney's view is that it is clear that no limitation on the amending power can be found in this notion of necessity for germaneness.

1005. The Attorney General also relied on an Article "On the views of W.F. Dodd published in 30 Yale Law Journal p. 321 seq. and of H.W. Taft, published in 16 Virginia Law Review p. 647 seq. The view of Dodd is this. There are no implied limitations on the amending power. The Supreme Court in the National Prohibition cases rejected the arguments presented in favour of implied limitations. To narrow down the meaning of amendment or to adopt implied limitations would not only narrow down the use of the amending power but would also leave the question of amending power in each case to judicial decision without the guidance of any legal principle. Taft's view is that by reason of the Tenth Amendment which provided that the powers not delegated to the United States by the Constitution nor prohibited by it to the States are reserved to the States respectively or to the people, the amending power in Article V of the American Constitution was not limited by the Tenth Amendment

1006. The question which has arisen on the Fifth Article of the American Constitution is whether there are implied limitations upon the power to amend. The two express limitations were these. First, no amendment which may be made prior to 1808 shall in any manner effect the First and the Fourth clauses in the Ninth Section of the First Article. That Limitation became exhausted by passage of time. The second express limitation is that no State without its consent shall be deprived of its equal suffrage in the Senate. The express limitation is to safeguard the equal representation of the smaller States in the Senate. The limitation can only be changed by unanimous consent of the States.

1007. The 18th Amendment was vigorously attacked in the National Prohibition Cases on the ground that it overstepped alleged implied limitations on the Constitution amending power. The arguments advanced were these. First, the 18th Amendment which introduced prohibition was not in fact an amendment for an amendment is an alteration or improvement of that which is already contained in the Constitution and the term is not intended to include any addition of entirely new grants of power. Secondly, the amendment was not an amendment within the meaning of the Constitution because it is in its nature legislation and that an amendment of the Constitution can only affect the powers of government and cannot act directly upon the rights of individuals. Third, that the Constitution in all its parts looks to an indestructible nation composed of indestructible States. The power of amendment was given for the purpose of making alterations and improvements and any attempt to change the fundamental basis of the Union is beyond the power delegated by the Fifth Article. The decision in the National Prohibition Cases is that there is no limit on the power to amend the Constitution except that State may not without its consent be deprived of its equal suffrage in the Senate.

1008. In *Rhode Island v. Palmer* 253 U.S. 350 the 18th Amendment was challenged to be not within the purview of Article V. The judgment in *Rhode Island* case was that the amendment was valid. In *Rhode Island* case the grounds of attack were that the amendment was legislative in character and an invasion of natural rights and an encroachment on the fundamental principles of dual sovereignty but the contentions were overruled.

1009. In *Hawke v. Smith* 253 U.S. 221 a question arose as to whether the action of the General Assembly of Ohio ratifying the 18th Amendment known as National Prohibition could be referred to the electors of the State under the provisions of the State Constitution. It was held that these provisions of the State were inconsistent with the Constitution of the United States. The decision of the Court was unanimous. The two methods of ratification prescribed by Article V of the Constitution are by action of the legislatures of the three-fourths of the States or conventions in the like number of States. The determination of the method of ratification is the exercise of a national power specifically granted by the Constitution. That power is conferred upon Congress. Article V was held to be plain and to admit of no doubt in its interpretation. The choice of means of ratification was wisely withheld from conflicting action in the several States.

1010. Again, in *Lesser v. Garnett* 258 U.S. 130 there was a suit to strike out

the names of women from the register of voters on the ground that the State Constitution limited suffrage to men and that the 19th Amendment to the Federal Constitution was not validly adopted. The 19th Amendment stated that right of citizens to vote shall not be denied on account of sex. It was contended that the amending power did not extend to that situation. The Supreme Court there rejected that contention. The Supreme Court said that the function of a State legislature in ratifying the proposed amendment to the federal Constitution like the function of Congress in proposing the amendment is a federal function derived from the federal Constitution; and it transcends any limitations sought to be imposed by the people of a State.

1011. In *United States v. Sprague* 282 U.S. 716 a contention was advanced that the 10th Amendment recognised a distinction between powers reserved to the States and powers reserved to the people and that State legislatures were competent to delegate only the former to the National Government; delegation of the latter required action of the people through conventions in the several states. The 18th Amendment being of the latter character, the ratification by State legislatures was contended to be invalid. The Supreme Court rejected the argument. It found the language of Article V too clear to admit of reading any exceptions into it by implication.

1012. The decisions in *Rhode Island v. Palmer* 253 U.S. 350, *Hawke v. Smith* 253 U.S. 221, *Leser v. Garnett* 258 U.S. 130 and *United States v. Sprague* 282 U.S. 716 are all authorities for the proposition that there is no implied limitation on the power to amend. The 18th Amendment was challenged on the ground that ordinary legislation could not be embodied in a Constitutional amendment and that Congress cannot Constitutionally propose any amendment which involves the exercise or relinquishment of the sovereign powers of a State. The 19th Amendment was attacked on the narrower ground that a State which had not ratified the amendment would be deprived of its equal suffrage in the Senate because its representatives in that body would be persons not of its choosing. The Supreme Court brushed aside these arguments as wholly unworthy of serious attention and held both the amendments valid.

1013. Mr. Palkhivala contended the word "amendment" in Article 368 would take its colour from the words "change in the provisions" occurring in the proviso. The American decisions illustrate how the Supreme Court consistently rejected the attempts to limit the

meanings of the word "amend" in Article V of their Constitution because of the reference to ratification by legislatures or conventions. Where words are read in their context there is no question of implication for context means parts that precede or follow any particular passage or text and fix its meaning.

1014. The rule of *nosciitur a sociis* means that where two or more words which are susceptible of analogous meaning are coupled together, they are understood to be used in their cognate sense. They take their colour from each other, the meaning of the more

general being restricted to a sense analogous to that of the less general.

1015. This rule has been found to have no application to Article V of the American

Constitution because conventions and legislatures are both deliberative bodies and if an

amendment can be submitted either to the legislatures of States or to conventions at the

absolute discretion of the Congress, it is difficult to say that the character of the

amendment is in any way affected by the machinery by which the amendment is to be

ratified. In Rhode Island case the contention that an amendment of the Constitution

should be ratified by conventions and not by legislatures was rejected. In Sprague case

the contention that matters affecting the liberty of citizens could only be ratified by

conventions was not accepted and the Supreme Court refused to read any implication into

Article V of the American Constitution. The Supreme Court said that in spite of the clear

phraseology of Article V, the Court was asked to insert into it a limitation on the

discretion conferred on it by the Congress. The Supreme Court did not accept any implied limitation. Where the intention is clear there is no room for

construction and no

excuse for interpolation or addition. In *Feigenspan v. Bodine* 264 F. 186 it has been said

when the people delegated the power of amendment to their representatives the power of

amendment cannot be excluded in any way other than prescribed nor by any instrumentality other than there designated.

1016. Mr. Palkhivala relied on some Canadian decisions the Initiative and Referendum

case 1919 A.C. 935, *Switzmen v. Elbling* 1957 Canada Law Reports 285, *Rex v. Hess* (1949) 4 Dominion Law Report 199; and *Saumur v. City of Quebec and Attorney General of Quebec* (1953) 4 D.L.R. 641 and *Chabot v. School Commissioners of Lamorandiere and Attorney General for Quebec* (1958) 12 D.L.R. 796, in support of three propositions. First, unlimited legislative jurisdiction of the Dominion Parliament in

Canada is under inherent limitation by reason of the preamble to the British North

America Act which states that the Constitution is similar in principle to the United

Kingdom. Second, the Dominion legislature cannot detract from the basic rights

of freedom of speech and political association which are available in the United Kingdom. Third, rights which find their source in natural law cannot be taken away by positive law.

1017. In the Initiative and Referendum case the Judicial Committee said that Section 92 of the British North America Act entrusted legislative power in a province to its legislature and to that legislature only. A power of legislation enjoyed by a provincial legislature in Canada can while preserving its own capacity intact seek the assistance of subordinate agencies as in *Hodge v. Queen* 9 App. Cas. 117 the legislature of Ontario was held to be entitled to entrust to the Board of Commissioners authority to enact regulations. It does not follow that such a legislature can create and endow with its own capacity a legislative power. The Initiative and Referendum case decided that in the absence of clear and unmistakable language the power which the Crown possessed through a person directly representing the Crown could not be abrogated. The Lieutenant Governor under the British North America Act referred to as the B.N.A. Act was an integral part of the legislature. The Initiative and Referendum Act was found to be one which wholly excluded the Lieutenant Governor from legislative authority. The only powers of veto and disallowance preserved by the Initiative and Referendum Act were related to acts of legislative Assembly as distinguished from Bills. Therefore the powers of veto and disallowance referred to could only be those of the Governor General under Section 90 of the B.N.A. Act and not the powers of the Lieutenant Governor which are at an end when a Bill has become an Act. Section 11 of the Act provided that when a proposal for repeal of some law has been approved by majority of the electors voting that law is automatically to be deemed repealed, at the end of 30 days after the publication in the Gazette. Thus the Lieutenant Governor appears to be wholly excluded from the legislative authority. The Initiative and Referendum decision related to an Act of the legislature and secondly to the Act being ultra vires the provisions of the B.N.A. Act. This is not at all, relevant to the amending power of a Constitution. The Act was found to be invalid because the machinery which it provided for making the Laws was contrary to the machinery set up by the B.N.A. Act. The impugned Act rendered the Lieutenant Governor powerless to prevent a law which had been submitted to voters from becoming an actual law if approved by the voters. The impugned Act set up a legislature different from that constituted by the B.N.A. Act and this the legislature had no power to do.

1018. The other Canadian decisions are based on three views. The first view is based on the preamble to the B.N.A. Act that the Provinces expressed their desire to be federally united into one Dominion, with a Constitution similar to that of the United Kingdom. The corollary extracted from the preamble is that neither Parliament nor Provincial legislatures may infringe on the traditional liberties because of the Preamble to the

B.N.A. Act and a reference to British Constitutional History. The second view expressed in the decisions is that the basic liberties are guaranteed by implication in certain sections

of the B.N.A. Act. Section 17 establishes a Parliament for Canada. Section 50 provides that no House of Commons shall continue longer than five years. These sections are read

by the Canadian decisions to mean that freedom of speech and freedom of political association should continue. The third view is that some rights find their source in natural

law which cannot be taken away by positive law.

1019. The first view found expression in Switzman case. There was an Act respecting communistic propaganda. The majority Judges found that the subject matter was not

within the powers assigned to the Province by Section 92 of the B.N.A. Act. They further held that the Act constituted unjustifiable interference with freedom of speech and

expression essential under the democratic form of government established in Canada. The Canada Elections Act, the B.N.A. Act provided for election of Parliament every five

years, meeting of Parliament once a year. It was contended that it was implicit in all legislations the right of candidates to criticise, debate and discuss political, economic and

social principles.

1020. Hess case raised a question of jurisdiction of the Court to grant bail. Under Section

1025A of the Criminal Code a person was detained in custody. Section 1025A provided

that an accused might be detained in custody without bail pending an appeal to the Attorney General.

1021. The Saumur case related to a municipal bye-law requiring permission for distribution of books and tracts in the city streets. The Saumur case relied on the

observations of Duff, C.J. in Re Albert Legislation 1938 S.C.R. 100 that the right of free public discussion on public affairs is the breath of life for parliamentary institutions.

1022. In Chabot case public schools in the Province of Quebec were operated by School

Commissioners elected by tax payers of whom the religious majority were

Catholics. A

dissident tax payer raised the question as to whether dissidents might establish their own

schools or they might send them to a school of a neighbouring municipality and thereupon become exempt from paying tax. The majority held that certain regulations

passed by the Catholic Committee were intra vires because they must be construed as

confined to Catholic children.

1023. The Canadian decision show first that certain Judges relying on the Preamble to the

B.N.A. Act that the Canadian Constitution is to be similar in principle to that of the

United Kingdom raised the vires of some of the legislations affecting freedom of speech.

Secondly, the Canadian Constitution was given by the British Parliament and if the

Judges who used such dicta referred to that part of the Preamble they were emphasising

that the rights of the Canadian people were similar to those in England.

Thirdly, it has to

be remembered that the Canadian Constitution has been developed through usage and

conventions.

1024. None of these decisions relates to amendment of the Constitution. None of these

decisions indicates that there is any inherent limitation on the amendment of the

Constitution. The Preamble to the B.N.A. Act shows that the Canadian Constitution

enjoined observance of fundamental principles in British Constitutional practice. The

growth of the Canadian Constitution was through such usage and convention. Our Constitution is of a sovereign independent republican country. Our Constitution does not

draw sustenance from any other Constitution. Our Constitution does not breathe through

conventions and principles of foreign countries.

1025. There are no explicit guaranteed liberties in the British North America Act. In

Canada the Constitutional issue in civil liberties legislation is simply whether the

particular supersession or enlargement is competent to the Dominion or the Province as

the case may be. Apart from the phrase "civil rights in the Province" in Section 92(13)

there is no language in Sections 91 and 92 which even remotely expresses civil liberties

values.

1026. The Canadian Bill of Rights assented to in 1960 in Section 2 states that every law

of Canada shall unless it is expressly declared by an Act of Parliament of Canada that it

shall operate notwithstanding the Canadian Bill, of Rights be so construed and applied as

not to abrogate, or infringe or authorise abrogation abridgement or infringement of any of

the rights of freedom recognised and declared. The view of Laskin in Canadian Constitutional Law (3rd Edition) (1969) is that in terms of legislative power the political liberties represent independent Constitutional values which are exclusively in federal

keeping. Since the enactment of the Canadian Bill of Rights the question has hardly any substantive effect because the Canadian Parliament can make a declaration in terms of

Section 2 of the Bill of Rights that a law abrogating a freedom in the Bill of Rights is operative.

1027. Mr. Palkhivala relied on the Australian decisions in Taylor v. Attorney General of Queensland 23 C.L.R. 457 and Victoria v. Commonwealth 45 Australian Law Journal 251 in support of the proposition that there is inherent and implied limitation on the power of amendment.

1028. In Taylor case the Parliamentary Bills Referendum Act of 1908 was challenged.

The Parliament Bills Referendum Act provided that when a Bill passed by the Legislative

Assembly in two successive sessions has in the same two sessions been rejected by the

Legislative Council, it may be submitted by referendum to the electors, and, if affirmed

by them, shall be presented to the Governor for His Majesty's assent, and upon receiving

such assent the Bill shall become an Act of Parliament in the same manner as if passed by

both Houses of Parliament, and notwithstanding any law to the contrary. The Australian

States Constitution Act, 1907 provided that it shall not be necessary to reserve, for the

signification of His Majesty's pleasure thereon, any Bill passed by the legislatures of any

of the States if the Governor has previously received instructions from His Majesty to

assent and does assent accordingly to the Bill.

1029. In 1915 the Legislative Assembly of Queensland passed a Bill to amend the Constitution of Queensland by abolishing the Legislative Council. The Bill was passed

by the Legislative Assembly. The Legislative Council rejected the Bill. The Legislative

Assembly again passed the Bill The Legislative Council again rejected the Bill. The

Governor in accordance with the Parliamentary Bills Referendum Act 1908 issued regulations providing for the taking of the Referendum polls. It was argued that the

Constitution ought to have been first amended.

1030. The questions for the opinion of the Court were : (1) Is the Constitution Act,

Amendment Act of 1908 a valid and effective Act of Parliament? (2) Is the Parliamentary

Bills Referendum Act of 1908 a valid and effective Act of Parliament ? (3) Is there power

to abolish the Legislative Council of Queensland by an Act passed in accordance with the

provisions of the Parliamentary Bills Referendum Act of 1908 ? (4) Was the Referendum valid ?

1031. The Colonial Laws Validity Act 1865 in Section 5 conferred full power on every representative legislature to make laws respecting the Constitution, powers and procedures of such legislature; provided that such laws shall have been passed in such manner and form as may from time to time be required by any Act of Parliament, letters patent, Order in Council, or colonial laws for the time being in force in the said colony.

The Parliamentary Bills Referendum Act was held to be an Act respecting the powers of the legislature. Section 5 of the Colonial Laws Validity Act provided the authority for the legislation.

1032. Mr. Palkhivala extracted three propositions from the Taylor case. First, probably the power to make laws respecting the Constitution, power and procedure of such legislature does not extend to authorise the elimination of the representative character of the legislature within the meaning of the Act p. 468 per Barton, J. Second, probably the representative character of the legislature is a basic condition of the power relied on, and is preserved by the word "such" in the collocation of words in the Constitution "of such legislature" p. 474 per Issacs, J. Third, when power is given to a Colonial legislature to alter the Constitution of the legislature that must be read subject to the fundamental conception that consistently with the very nature of the Constitution as an Empire, the Crown is not included in the ambit of such power p. 474 per Issacs, J.

1033. The decision in Taylor case was to the effect that the Acts did not alter the representative character of the legislature as defined in Section 1 of the Colonial Laws Validity Act, 1865, nor did they affect the position of the Crown. The first two propositions on which Mr. Palkhivala relied, namely, the observations of Barton and Issacs, JJ. p. 468 and p. 474 were both prefaced by the word "probably" which amply shows that the observations are obiter. The question whether the representative character of the legislature could be changed or whether the Crown could be eliminated did not call for decision. The other learned Judges Gavan Duffy and Rich, JJ. said "It may perhaps be that the legislature must always remain a representative legislature as defined by the statute, but it is unnecessary in the present case to determine whether that is so or not".

1034. Issacs, J. held in that case that the word "legislature" did not include the Crown

because Section 7 of the Colonial Laws Validity Act used the expression "legislature" followed by the words "or by persons or bodies of persons for the time being acting as such legislature" to show that the legislature was exclusive of the Crown. The assent of the Queen or the Governor was thus regarded as an additional factor. Therefore, Issacs, J. said that when a power is given to the Colonial legislature to alter the Constitution that must be read subject to the fundamental conception, that the Crown is not included in the ambit of such power. Those observations are made in the context of the provisions of the Colonial Laws Validity Act where a "colony" as defined to include all of Her Majesty's possessions abroad". The observations therefore mean that when power to alter the Constitution was conferred upon a colony which is a part of Her Majesty's possessions abroad it is reasonable to assume that such power did not include power to eliminate the Queen as a part of a colonial legislature.

1035. The representative character of the legislature does not involve any theory of implied limitation on the power of amendment. Such legislature as was emphasised by Issacs, J. shows that the limitation on the power of amendment flowed from express language of Section 5 of the Colonial Laws Validity Act and was not dependent upon any implication.

1036. In the State of Victoria case the validity of the Pay-Roll Tax Act, 1941 was impugned on the ground that it was beyond the legislative competence of the Commonwealth. The Pay Roll Tax Assessment Act 1941-69 made the Crown liable to pay tax on the wages payable to named categories of employees of the State of Victoria. The Commonwealth Parliament, in the exercise of its power under Section 51(ii) of the Constitution to make laws with respect to taxation, but so as not to discriminate between States or parts of State was held competent to include the Crown in right of a State in the operation of a law imposing tax or providing for the assessment of a tax. The inclusion of the Crown in right of a State in the definition of "employed" in Section 3(1) of the PayRoll Tax Assessment Act 1941-1969 thus making the Crown in right of a State liable to pay the tax in respect of wages paid to employees including employees of departments engaged in strictly governmental functions was also held to be a valid exercise of the power of the Commonwealth under Section 51 of the Constitution. Section 114 of the Constitution enacts ban on the imposition by the Commonwealth of a tax on property of a State. This ban was not offended. A law which in substances takes a State or its

powers

or functions of government as its subject matter is invalid because it cannot be supported

upon any grant of legislative power, but there is no implied limitation on Commonwealth

legislative power under the Constitution arising from the federal nature of the Constitution. There was no necessary implication restraining the Commonwealth from

making a law according to the view of three learned Judges. Four other learned Judges

held that there is an implied limitation as lack of Commonwealth legislative power but

the Act did not offend such limitation.

1037. The limitation which was suggested to be accepted was that a Commonwealth law

was bad if it discriminated against States in the sense that it imposed some special burden

or disability upon them so that it might be described as a law aimed at their restriction or control.

1038. In the Australian case *Barwick*, C.J. stated that the basic principles of construction

of the Australian Constitution were definitely enunciated in the *Amalgamated Society of*

Engineers v. Adelaide Steamship Co. Ltd. (1920) 28 C.L.R. 129 which

unequivocally

rejected the doctrine that there was an implied prohibition in the Constitution against the

exercise in relation to a State of a legislative power of the Commonwealth in accordance

with the ordinary rules of Constitution.

1039. Mr. Palkhivala relied on some Irish cases in support of theory of implied and

inherent limitations.

1040. In *Ryan* case 1935 Irish Report 170 the validity of amendment of Article 50 of the

Irish Constitution which came into existence in 1922 fell for consideration. Article 50

provided that within 8 years from the commencement of the Constitution amendments to

the Constitution were to be made by ordinary legislation. After the expiry of 8 years

amendments were to be made by referendum. The other provision in Article 50 was that

amendment "shall be subject to the provisions of Article 47" of the Constitution. Article

47 made provisions for the suspension in certain events of any Bill for a period of 90

days and for the submission of any bill so suspended to referendum if demand should be

made. By an Amendment Act in 1928 reference to the provisions of Article 47 was repealed. In 1929 before the expiry of 8 years there was an amendment of the

Constitution whereby the period of 8 years was changed to 16 years. Both the amendments were upheld. Amendment were challenged on two grounds : First, that

many

Articles of the Constitution are so fundamental as to be-incapable of alteration. Second,

Article 50 does not authorise any change in these fundamental Articles. 1041. The decision of the Judicial Committee in *Moore and Ors. v. Attorney General for the Irish Free State* and *Ors.* 1935 A.C. 484 throws a flood of light on the question of amendment of the amending power in a written Constitution. The Treaty and the Constituent Act scheduled to the Irish Free Constitution Act, 1922 being parts of an Imperial Act formed parts of the statute law of the United Kingdom. The first clause of the Treaty provided that Ireland shall have the same Constitutional status in the community of nations known as the British Empire as the Dominion of Canada, Commonwealth of Australia, the Dominion of New Zealand, and the Union of South Africa with a Parliament having force to make laws for the peace, order and good government of Ireland and an Executive responsible to that Parliament and shall be styled and known as the Irish Free State. The second clause of the Treaty provided that the law practice and Constitutional usage governing the relationship of the Crown or the representative of the Crown and of the Imperial Parliament to the Dominion of Canada shall govern their relationship to the Irish Free State. Of the Articles of the Constitution

, Article 12 created a legislature known as the Oireachtas and the sole and exclusive power of making laws for the peace, order and good government of the Irish Free State was vested in the Oireachtas.

1042. Article 50 provided that amendments of the Constitution within the terms of the Scheduled Treaty might be made by the Oireachtas. Article 66 provided that the Supreme Court of the Irish Free State would have appellate jurisdiction from all decisions of the High Court and the decision of the Supreme Court would be final and conclusive. The proviso to that Article stated that nothing in the Constitution shall impair the right of an

y person to petition His Majesty for special leave to appeal from the Supreme Court to His Majesty in Council. The proviso to Article 66 was inserted to give effect to Article 2 of the Treaty and hence under Article 50 of the Constitution it was argued that the proviso to Article 66 could not be amended in the way it was sought to amend it by abolishing the right of appeal. Article 50 contained another limitation that amendments within the terms of the Treaty might be made. Clause 2 of the Treaty provided that relations with the Imperial Parliament should be the same as the Canadian. By Amendment Act No. 6 of 1933 the words "within the terms of the Treaty" were deleted from Article 50. Thereafter Amendment Act No. 22 of 1933 was passed abrogating right of appeal to the Privy

Council.

1043. The Judicial Committee in Moore case noticed that "Mr. Wilfrid Greene for the petitioners rightly conceded that Amendment Act No. 16 of 1929 which substituted for the 8 years specified in Article 50 as the period during which amendment might be made

without a referendum a period of 16 years was regular and that the validity of the subsequent amendments could not be attacked on the ground that they had not been submitted to the people by referendum.

1044. It was argued by Mr. Greene in that case that the Constituent Assembly having accomplished its work went out of existence leaving no successor and no body in authority capable of amending the Constituent Act. The argument was in effect that the

Constitution was a semi rigid Constitution that is one capable of being amended in detail

in the different Articles according to their terms, but not susceptible of any alteration so

far as concerns the Constituent Act, unless perhaps by the calling together of a new

Constitution assembly by the people of Ireland. The decision of the Supreme Court of

Ireland in Ryan case was referred to by the Judicial Committee. The Judicial Committee

held that the Oireachtas had power to repeal or amend the Constitution Act and in

repealing or amending of parts of an imperial Statute, namely, the Irish Free State

Constitution Act, 1922 what the Oireachtas did must be deemed to have been done in the

Way in which alone it could legally be done, that is by virtue of the powers given by the

statute. The abolition of appeals to Privy Council was a valid amendment.

1045. The decision in Liyanage v. Queen (1967) 1 A.C. 259 was also relied on by Mr.

Palkhivala for the theory of implied and inherent limitations. The Criminal Law Amendment Act passed by the Parliament of Ceylon in 1962 contained substantial modifications of the Criminal Procedure Code. There was ex post facto legislation of

detention for 60 days of any person suspected of having committed an offence against the

State by widening the class of offences for which trial without jury by three judges

nominated by the Minister of Justice would be ordered. An arrest without warrant for

waging war against the Queen became permissible and new minimum penalties for that

offence were prescribed and for conspiring to wage war against the Queen and overawe

the government by criminal force, and by widening the scope of that offence. The Act

also provided for the admission in evidence of certain confessions and statements to the police inadmissible under the Evidence Code. The Act was expressed to be retrospective to cover an abortive coup d'état on 27 January, 1962 in which Liyanage and others took part, and was to cease to be operative after the conclusion of all legal proceedings connected with or incidental to any offence against the State committed on or about the date of the commencement of the Act, whichever was later. The second Criminal Law Amendment Act of 1962 (No. 31 of 1962) substituted the Chief Justice for the Minister of Justice as the person to nominate the three Judges but left unaffected other provisions for the former Act.

1046. The Supreme Court of Ceylon convicted the appellants and sentenced them to 10 years rigorous imprisonment the minimum prescribed by the Criminal Law Act 1 of 1962.

1047. The Privy Council, held the legislation to be ultra vires on two grounds. The Acts could not be challenged on the ground that they were contrary to fundamental principles of Justice. The Colonial Laws Validity Act 1865 which provided that colonial laws should be void to the extent of repugnancy to an Act of the United Kingdom, and should not be void on the ground of repugnancy to the law of England did not leave in existence a fetter or repugnancy to some vague and unspecified law of natural justice. The Ceylon Independence Act 1947 conferred on the Ceylon Parliament full legislative powers of a sovereign independent State. The Acts were declared to be bad because they involved a usurpation and infringement, by the legislature of judicial powers inconsistent with the written Constitution of Ceylon. The silence of the Constitution as to the vesting of judicial power was inconsistent with any intention that it should pass to or be shared by the executive or the legislature. The ratio of the decision is that the legislature could not usurp judicial power. There is an observation at page 289 of the report that Section 29(1) of the Ceylon Constitution confers power on Parliament to pass legislation which does not enable a law to usurp the judicial power of the judicature. The Judicial Committee answered the question which was posed as to what the position would be if Parliament sought to procure such a result by first amending the Constitution by a two-thirds majority by stating that such a situation did not arise there and if any Act was passed

without recourse to Section 29(4) of the Ceylon Constitution it would be ultra vires. The Judicial Committee found that under Section 29(4) of the Ceylon Constitution there could be an amendment only by complying with the proviso, which would be the manner and form and would not be a limitation on the width of the power. The Ceylon case is not an authority for the proposition of implied and inherent limitation on the amending power.

1048. In Liyanage case the Privy Council rejected the contention that powers of the Ceylon Legislation should be cut down by reference to the vague and uncertain expression "fundamental principles of British Law". In deciding whether the Constitution of Ceylon provided for a separation between the legislature and the judiciary the Privy Council did not refer to consequences at all, but referred to the fact that the provisions relating to the legislature and the judicature were found in two separate parts of the Constitution. The provisions for appointment of the subordinate judiciary by a Commission consisting exclusively of Judges with a prohibition against any legislator being a member thereof and the further provision that any attempt to influence the decision was a criminal offence were held by the Judicial Committee to show that the judiciary was intended to be kept separate from the legislature and the executive. This conclusion was based on a pure construction of the provisions of the Act. The reference to consequences was in a different context. The Privy Council recognised that the impugned law dealt with a grave exceptional situation and were prepared to assume that the legislature believed that it had power to enact it.

1049. Again in Kariappar case 1968 A.C. 717 the Judicial Committee considered a Ceylon Act which was inconsistent with the Ceylon Constitution. The Act imposed civic disabilities for 7 years on person to whom the Act applied and provided for the vacation of the seat as a Member of Parliament. The words amend or repeal in Section 29(4) of the Ceylon Constitution were read by the Judicial Committee to cover an amendment or repeal by inconsistent act. The plain words amend or repeal did not admit ambiguity.

1050. To introduce into our Constitution the doctrine of implied and inherent limitations on the meaning of the word "amendment" by upholding the power to amend the essential features but not the core on the theory that only people can change by referendum is to rewrite the Constitution. The decisions in Ranasinghe case 1965 A.C. 172 and Kariappar case 1968 A.C. 717 are authorities for two propositions. First, that in the exercise of the power of amendment a controlled Constitution can be converted into an uncontrolled one. Second, the word "amendment" means alteration. In Ibralebbe case 1964 A.C. 900 the Judicial Committee said that if the Ceylon legislature abrogated the appeal to the

Privy Council it would be an amendment of its judicial structure.

1051. The decision in Mangal Singh v. Union of India (1967) 2 S.C.R. 109 has been

relied on by Mr. Palkhivala in support of the proposition that the power of amendment is

subject to implied limitation. Article 4 of the Constitution which was interpreted in

Mangal Singh case has to be read with Articles 2 and 3. Article 4 contains a limited

power of amendment, limited to amend Schedules 1 and 4 as may be necessary to give

effect to a law mentioned in Articles 2 and 3 and of making supplemental, incidental and

consequential provisions. Shah, J. in Mangal Singh case said that power with which

Parliament is invested by Articles 2 and 3 is a power to admit, establish or form new

States or to admit, establish or admit new States which conform to the democratic pattern

envisaged by the Constitution and is not a power to override the Constitutional scheme. It

is manifest that when a new State is created in accordance with Articles 2 and 3 the

amendment under Article 4 will be followed up as necessary to give effect to the same.

Such an amendment does not override the Constitutional scheme. It is an amending power of a limited nature and is supplemental, incidental or consequential to the

admission, establishment or formation of a State as contemplated by the Constitution.

This decision does not say that there are implied limitations to the amending power.

1052. The petitioner challenges the legality and the validity of the Constitution (25th)

Amendment Act.

1053. The Constitution (25th) Amendment Act has first amended Article 31(2), second

added Article 31 (2B) and third introduced Article 31C. Article 31(2) is amended in two

respects. First, it substituted the word "amount" for the word "compensation" for property

acquired or requisitioned. Second, it is provided that the acquisition or requisition law

shall not be called in question on the ground that whole or any part of the amount is to be

given otherwise than in cash. Article 31 (2B) has been inserted to the effect that nothing

in Sub-clause (f) of Clause (1) of Article 19 shall effect any such law as is referred to in

Clause (2).

1054. Article 31C states that notwithstanding anything contained in Article 13 no law

giving effect to the policy of the State towards securing the principles specified in Clause

(b) or Clause (c) of Article 39 shall be deemed to be void on the ground that it is

inconsistent with or takes away or abridges any of the rights conferred by Article 14 or

Article 19 or Article 31 and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy. It is provided that where such law is made by the legislature of a State the provisions of this Article shall not apply thereto unless such law having been reserved for the consideration of the President has received his assent.

1055. The basic controversy is really regarding the right to property and the acquisition of property by the State. The Constitution of India was intended to achieve political liberty on the one hand and economic and social, liberty on the other for all citizens of India. The Directive Principles in the Constitution are also fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws. That is Article 37. It can be achieved by making changes in the economic and social structure of the society.

1056. The resolutions of the Congress in 1929, 1931, 1945 and the objective resolution of 22 January, 1947 and the resolution of All-India Congress Working Committee in 1947 are not only a remembrance of things past. In 1929 the Congress resolution was that it was essential to make revolutionary changes in the economic and social structure of the society and to remove the gross inequalities. It was also resolved that political freedom must include the economic freedom of the starving millions. In such economic and social programme the State is to own or control the key industries and services, mineral resources, railways, waterways, shipping and other means of public transport. In 1945 the Working Committee said that the concentration of wealth and power in the hands of individuals and groups was to be prevented. Social control of the mineral resources and of the principal methods of production and distribution in land, industry and in other departments of national activity would be necessary to develop the country into cooperative commonwealth. In the case of industries which in their nature must be run on a large scale and on centralised basis, it was felt that they should belong to the community and they should be so organised that the workers become not only co-sharers in the profits but also increasingly associated with the management and administration of the industry. Land and all other means of production as well as distribution and exchange must belong to and be regulated by the community in its own interest. The framers of the Constitution wanted a social structure which would avoid the acquisitive economy of

private capitalism and the regimentation of a totalitarian State.
1057. In this background the Constitution was created with the object of effecting social revolution. The core of the commitment to the social revolution lies in Part III and Part IV of the Constitution. They are described to be "conscience of the Constitution". The object of Part III was to "liberate the power of man equally for distribution to the common good". The State would have to bear the responsibility for the welfare of citizens. The Directive Principles are a declaration of economic independence so that our country men would have economic as well as political control of the country.
1058. The centre of the fundamental rights is said by Mr. Palkhivala to be Articles 14, 19 and 31. It is right to property. But the Directive Principles are also fundamental. They can be effective if they are to prevail over fundamental rights of a few in order to subserve the common good and not to allow economic system to result to the common detriment. It is the duty of the State to promote common good. If the motives for co-operating with others consist in the mere desire to promote their private good they would be treating their fellowmen as means only and not also an end. The notion of common good was needed to explain away the difference between the principles of reasonable self love and benevolence. The distribution of material resources is to subserve the common good. The ownership and control of the material resources is to subserve common good. The economic system is to work in such a manner that there is no concentration of wealth to the common detriment. Again, the economic system is to work in such a manner that the means of production are not used to the common detriment.
1059. The declaration of human rights on which Mr. Palkhivala relied for the unamendability of fundamental rights is rightly said by the Attorney General to be no impediment to the power of amendment nor to support the petitioner's contention regarding the inviolability of the right to property. For the purpose of promoting the general welfare in a democratic State the Directive Principles were said by the Attorney General to be fundamental in achieving rights of men and economic and social rights for human dignity. Every citizen asserts enjoyment for fundamental rights under the Constitution. It becomes the corresponding duty of every citizen to give effect to fundamental rights of all citizens, dignity of all citizens, by allowing the State to achieve the Directive Principles. The duty of the State is not limited to the protection of individual interest but extends to acts for the achievement of the general welfare in all cases where it can safely act and the only limitations on the governmental

actions are dictated by the experience of the needs of time. A fundamental right may be regarded as fundamental by one generation. It may be considered to be inconvenient limitation upon legislative power by another generation. Popular sovereignty means that the interest which prevails must be the interest of the mass of men. If rights are built upon property those who have no property will have no rights. That is why the State has to balance interest of the individual with the interest of the society. Industrial democracy is the necessary complement to political democracy. The State has to serve its members by organising an avenue of consumption. This can be done by socialisation of those elements in the common welfare which are integral to the well being of the community.

1060. The petitioner's challenge to the amendment on Article 31(2) is as follows. The right to property is one of the essential features of the Constitution. It is the hand maid to various other fundamental rights. The right to freedom of the Press under Article 19(1)(a) is meaningless if the publisher could be deprived of his printing plant and the building in which it is housed without compensation. The fundamental right under Article 19(1)(c) to form trade unions will be denuded of its true content if the property of a trade union could be acquired by the State without compensation. The right to practise any profession or carry on any occupation, trade or business under Article 19(1)(g) will be the right to do forced labour for the State if the net savings from the fruits of a citizen's personal exertion are liable to be acquired by the State without compensation. The freedom of religion in Article 26 will lose a great deal of its efficacy if the institutions maintained by a community for its religious and charitable purposes could be acquired without compensation. The implication of the proviso to Article 31(2) is that the State may fix such an amount for acquisition of the property as may abridge or abrogate any of the other fundamental rights. Exercise of fundamental rights would be affected by the deprivation of property without compensation in the legal sense and the only exception to this power of the State is the case of educational institution dealt with in the proviso. Article 31(2) as a result of the Constitution (25th) Amendment Act will empower the

State to fix an amount on a basis which need not be disclosed even to the members of the legislature and which may have no relation to the property sought to be acquired. The amount is not to satisfy any of the principles of compensation. It need not be paid in cash and it will yet not be considered to be a ground of challenge to the validity of law. Article

31(2) has nothing to do with estate, zamindari, land reforms or agrarian reforms which are specifically dealt with by Article 31A.

1061. The right to acquire, hold and dispose of property under Article 19(1)(f) is subject

under Article 19(5) to reasonable restrictions in the interests of the general public. If

Article 19(5) permits such reasonable restrictions it is said by the petitioner that the only

object of making Article 19(1)(f) inapplicable by Article 31(2B) is to enable acquisition and requisition laws to contain restrictions or provisions which are unreasonable and not

in the public interest. Reliance was placed by Mr. Palkhivala on the Bank Nationalisation case (1970) 3 S.C.R. 530 and the observations at p. 577 that if Article 19(1)(f) applied to

acquisition or requisition, law which permitted a property to be taken without the owner being heard where the rules of natural justice would require the owner to be heard, would

be void as offending Article 19(1)(f). Extracting that observation it is said that the

amount fixed without giving him a hearing or amending the Land Acquisition Act to provide that any man's land or house can be acquired without notice to the owner to show

cause or to prove what amount should be fairly paid to him for the property acquired will damage the essence or core of fundamental right to property.

1062. After the substitution of the neutral expression "amount" for "compensation" in Article 31(2) by the Constitution (25th) Amendment Act the Article still binds the

legislature to provide for the giving to the owner a sum of money either in cash or otherwise. The legislature may either lay down principles for the determination of the

amount or may itself fix the amount. Before the amendment the interpretation of Article 31(2) was that the law was bound to provide for the payment of compensation in the

sense of equivalent in value of the property acquired. This was the interpretation given in the Bank Nationalisation case even after the Constitution 24th Amendment Act, which

said that the adequacy of compensation could not be challenged. The Constitution 25th

Amendment Act states that the law no longer need provide for the giving of equivalent in value of the acquired property. The quantum of the amount is directly fixed by the law and the principles for its quantification are matters for legislative judgment. Specification of principles means laying down general guiding rules applicable to all persons or transactions covered thereby. In fixing the amount the legislature will act on the general nature of the legislative power. The principle may be specified. The principle which may be acted upon by the legislature in fixing the amount may include considerations of social justice as against the equivalent in value of the property acquired. Considerations of social justice will include the relevant Directive Principles particularly in Article 39(b) and (c). These principles are to subserve the common good and to prevent common detriment. The question of adequacy has been excluded from Article 31(2) by the Constitution Fourth Amendment Act. It cannot be said that the legislature would be under the necessity of providing a standard to measure an adequacy with reference to fixing the amount. The Constitution does not allow judicial review of a law on the ground of adequacy of the amount and the manner as to how such amount is to be given otherwise than in cash.

1063. If the word "compensation" as it stood prior to the amendment of Article 31(2) must mean equivalent value in cash it is said by the Solicitor General that the concentration of wealth will remain unchanged and justice social, economic, and political amplified in Articles 39, 41, 42, 43, 45, 46 and 47 will be thwarted. The fulfilment of the Directive Principles is in a sense more fundamental than the mere right to property. Readjustment in the social order may not be practicable in a smooth manner unless the Directive Principles are effectively implemented. The emergence of a new social order is a challenge to present day civilisation. If nations wanted independence and supremacy in the latter half of the 19th century and the first half of the 20th century individual dignity, individual freedom, individual status in a well organised and well planned society are opening the frontiers since the mid-century. In this background the 25th Amendment protects the law in one respect, namely, that amount payable to the owner is no longer to be measured by the standard of equivalent in value of the acquired property. The quantum cannot be a matter for judicial review. Ever since the Fourth Amendment the adequacy of compensation is excluded by the Constitution. The reason is that the Constitution declares in clear terms that adequacy is not justiciable and therefore, it

cannot be made justiciable in an indirect manner by holding that the same subject matter which is expressly barred is contained implicitly in some other provision and is, therefore, open to examination.

1064. Just as principles which were irrelevant to compensation were invalid prior to the Constitution 25th Amendment it was said that if any principles are adopted which are irrelevant to the concept of amount as a legal concept or as having a norm the law would be invalid because the amount would be purely at the will or at the discretion of the State. Therefore, it was said that when the law fixes the amount it might indicate the principles on which the amount had been arrived at or the Court might enquire into on which the amount had been fixed. Any contrary view according to the petitioner would mean that under Article 31(2) state would have authority to specify principles which could be arbitrary or specify the amount which could be arbitrary.

1065. It was also said that as a result of the proviso to Article 31(2) after the 25th Amendment the law providing for compulsory acquisition of property of an educational institution established by a minority referred to in Article 31(1) the State was to ensure that the amount fixed or determined was such as would not restrict or abrogate the right guaranteed under that clause. The amount would have to be higher than the amount which would be sufficient not to damage the essence of that right. But under Article 31(2) after the 25th Amendment where the proviso did not apply it was said that the core or essence of the fundamental rights would be damaged or destroyed.

1066. The word "amount" in Article 31(2) after the 25th Amendment is to be read in the entire collocation of words. No law shall be called in question in any Court on the ground that the amount so fixed or determined is inadequate or the whole or part of it or any part of such amount is given in cash. In Article 31(2) the use of the word "amount" in conjunction with payment in cash shows that a sum of money is being spoken of. Amount

is a sum meaning a quantity or amount of money, or, in other words, amount means a sum of money.

1067. Article 31(2) prior to as well as after the 25th Amendment indicates two alternatives to the legislatures either to specify the principles for determination of the amount or to fix the amount or "compensation" prior to the amendment. In fixing the amount or compensation the legislature is not required to set out in the law the principles on which compensation had been fixed in the unamended clause or the amount is fixed in

the amended clause.

1068. Article 19(1)(f) provides that all citizens shall have the right to hold, acquire or dispose of property whereas Article 31(2) deals with law by which the property is acquired. Such law acquiring property directly extinguishes the right to hold or dispose of property acquired. Article 19(1)(f) is excluded from Article 31(2) in order to make Article 31(2) self contained. The right to hold property cannot coexist with the right of the State to acquire property. That is why Article 31(2) is to be read with Article 31A,

31B and 31C, all the Articles being under the heading "Right to Property".

1069. It has been held by this Court in F.N. Rana case (1964) 5 S.C.R. 294 that Land

Acquisition Act does not give the right of quasi-judicial procedure or the requirements of

natural justice as Section 5A of that Act has been held to be administrative. It has also

been held by this Court that a Requisition Act which did not give a right of representation

before an order for requisition was made did not violate Article 19(1)(f). (See S.N. Nandi

v. State of West Bengal A.I.R. 1971 SC 961).

1070. The other part of the 25th Amendment which is challenged by the petitioner is

Article 31C. Article 31C is said by Mr. Palkhivala to destroy several essential features of

the Constitution for these reasons. First, there is a distinction between cases where the

fundamental rights are amended and laws which would have been void before the 25th

Amendment are permitted to be validly passed and cases where the fundamental rights

remain unamended but the laws which are void as offending those rights are validated by

a legal fiction that they shall not be deemed to be void. The law is in the first case

Constitutional in reality whereas in the second case the law is unconstitutional in reality

but is deemed by a fiction of law not to be void with the result that laws which violate the

Constitution are validated and there is a repudiation of the Constitution. If Article 31C is

valid it would be permissible to Parliament to amend the Constitution so as to declare all

laws to be valid which are passed by Parliament or State legislatures in excess of

legislative competence or which violate basic human rights enshrined in Part III or the

freedom of inter-State Trade in Article 301. Article 31C gives a blank charter to

Parliament and the State legislatures to defy the Constitution or damage or destroy the

supremacy of the Constitution. Secondly, Article 31C subordinates fundamental rights to

Directive Principles. The right to enforce fundamental rights is guaranteed under Article 32. The Directive Principles are not enforceable by reason of Article 37. Yet it is said that while giving effect to Directive Principles fundamental rights are abrogated. Thirdly, whereas an amendment of a single fundamental right would require a majority of at least two-thirds of the members of Parliament present and voting, a law within Article 31C which overrides and violates several fundamental rights can be passed by a simple majority. Fourthly, every fundamental right is an essential feature of the Constitution and Article 31C purports to take away a large number of those fundamental rights. Fifthly, the Court is precluded from considering whether law under Article 31C is such that it can possibly secure Directive Principles in question. Sixthly, no State legislature can amend the fundamental rights or any other part of the Constitution but Article 31C empowers the State legislature to pass laws which virtually involve repeal of the fundamental rights. Power of amending the Constitution is delegated to State legislatures.

1071. Finally, it is said that the fundamental rights under Article 14, 19 and 31 which are sought to be superseded by Article 31C are necessary to make meaningful specific rights of the minorities which are guaranteed by Articles 25 to 30. The proviso to Article 31(2) shows that in the case of acquisition of property of an educational institution established by a minority an amount fixed should be such as not to restrict or abrogate the right of the minorities under Article 31. It is, therefore, said that the implication is that if property is acquired in cases other than those of minorities an amount can be fixed which restricts or abrogates any of the fundamental rights. Again, it is said that if a law violates the right of the minority under Articles 25 to 30 such a law would be no law. Therefore, deprivation of property under such law would violate Article 31(1). But the 25th Amendment by Article 31C abrogates Article 31(1) and minorities can be deprived of their properties held privately or upon public, charitable or religious trusts by law which violates Articles 25 to 30.

1072. The pre-eminent feature of Article 31C is that it protects only law. Therefore, any question of violation of Article 31(1) does not arise. Law referred to in Article 31C must be made either by Parliament or by the State legislature, according to the

legislative procedure for enacting a law. There are several Articles in the Constitution where the expression "law" with reference to the authority to make law has been used. These are Articles 17, 19(2) to (6), 21, 22, 23(1), 26, 31, 33, 34 and 35. These Articles indicate that the expression "law" there means law made by the legislature in accordance with its ordinary legislative procedure. The expression "law" does not include within itself ordinance, order, bye-law; rule, regulation, notification, custom or usage having the force of law nor an amendment of the Constitution in accordance with the procedure prescribed in Article 368. In Article 13 the term "law" has been used in a wide sense. For this a definition was given in Article 13(3) to include certain other categories. The definition in Article 13(3) is expressly limited for Article 13. Law in Article 31C must have the same meaning as it has in other Articles generally, namely, a statute passed by the legislature.

1073. It is true that such law may need details to be filled up by other agencies but the essential elements of Article 31C must be supplied directly by that enactment. A question arose with reference to Article 254 as to whether a clause of the Sugar Control Order 1955 made under the Essential Commodities Act had the effect of repealing the corresponding Uttar Pradesh State Law. This Court held that the power of repeal was vested in Parliament and Parliament alone could exercise it by enacting an appropriate provision in that regard. Parliament could not delegate the power of repeal to any executive authority. (See Ch. Tika Ramji and Ors. Etc. v. The State of Uttar Pradesh and Ors. 1956 S.C.R. 393).

1074. Article 31C is inextricably bound up with Article 39(b) and (c) because the purpose and the phraseology in both the Articles are essentially identical. The legislative efforts to implement Directive Principles in Article 39 (b) and (c) were set in motion in some States to achieve reforms in land law. Articles 31A and 31B were introduced by the Constitution First Amendment Act 1951. The main reason for introducing Articles 31A and 31B was to exclude the operation of Part III as a whole from those provisions. The true relationship between Directive Principles in Part IV and the fundamental rights in Part III became clear. It was realised that though the liberty of individual was valuable it

should not operate as an insurmountable barrier against the achievement of Directive Principles. In Sajjan Singh case (1965) 1 S.C.R. 933 it was said that "the rights of society are made paramount and they are placed above those of the individual". In the Bihar Land Reforms case 1952 S.C.R. 889 it was said that "a fresh outlook which placed the general interest of the community above the interest of the individuals, pervades over Constitution".

1075. Law contemplated in Article 31C will operate on the ownership and control of the material resources of the community to be distributed as best to subserve the common good. The operation of the economic system should not result in concentration of wealth.

Means of production should not be used to the common detriment. The ownership and control of the material resources of the community can be achieved by nationalisation and planned economy. The operation of the economic system will mean imposition of control on the production, supply and distributions of products of key industries and essential commodities. There can be laws within Schedule 7 List III Entries No. 42, 43;

List I Entry No. 52 to 54 and List II Entries No. 23, 24, 26 and 27.

1076. The provisions in Article 31C that no law containing a declaration that it is for

giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy was questioned by the petitioner to exclude judicial review and, therefore, to be illegal. Article 31C was in the second place said to enable the State legislatures to make discriminatory laws destructive of the integrity of India.

Thirdly, Article 31C was said to delegate the amending power to State legislatures or Parliament in its ordinary legislative capacity.

1077. The declaration mentioned in Article 31C is for giving effect to the policy of the

State towards securing the principles in Article 39 (b) or (c). Such a declaration in a law shall not be called in question on the ground that it does not give effect to such policy.

The laws which receive protection under Article 31C are laws for securing the Directive

Principles of Articles 39(b) and (c). The nexus or connection between the law and the

objectives set out in Article 39(b) and (c) is a condition precedent for the applicability o

f

Article 31C. On behalf of the Union and the State it was not contended that whether there was such nexus or not was not justiciable. The real reason for making the declaration free

from question in a Court of law on the ground that it does not give effect to such policy is to leave legislative policy and wisdom to the legislature. The legislative measure might not according to some views give effect to Directive Principles. Therefore, legislatures are left in charge of formulating their policy and giving effect to it through legislation.

It is the assessment and judgment of such measures which is sought to be excluded from judicial review by the declaration.

1078. In order to decide whether a statute is within Article 31C the court may examine the nature and the character of legislation and the matter dealt with as to whether there is any nexus or the law to the principles mentioned in Article 39(b) and (c). If it appears tha

t there no nexus between the legislation and the objectives and principles mentioned in Article 39(b) and (c) the legislation will not be within the protective umbrella. The Court can tear the veil to decide the real nature of the statute if the facts and circumstances warrant such a course.

1079. The reason for excepting Articles 14, 19 and 31 from Article 31C is the same as in Article 31A. The Solicitor General rightly said that the fear of discrimination is allayed by three safeguards. The first and the foremost safeguard is the good sense of the legislature and the innate good sense of the community. The second safeguard is the Presidentâ™s assent. The third safeguard is that in appropriate cases it can be found as to whether there is any nexus between law and Directive Principles sought to be achieved. There is no better safeguard than the character of the citizen, the character of the legislature, the faith of the people in the representatives and the responsibility of the representatives to the nation. No sense of irresponsibility can be ascribed or attributed to the representatives of the people. The exclusion of Article 14 is to evolve new principles of equality in the light of Directive Principles. The exclusion of Article 19 is on the footing that laws which are to give effect to Directive Principles will constitute reasonable restrictions on the individualâ™s liberty. The exclusion of Article 31(2) is to

introduce the consideration of social justice in the matter of acquisition.

Directive

Principles are not limited to agrarian reforms. Directive Principles are necessary for the uplift and growth of industry in the country.

1080. Article 31(4) and 31(6) speak of certain class of laws not being called in question

on the ground of contravention of Article 31(2). Article 31A relates to law of the class

mentioned therein not to be void on the ground that it is inconsistent with or takes away

or abridges any of the fundamental rights conferred by Articles 14, 19 and 31. Article

15(4) states that nothing in Article 15 or in Article 29(2) shall prevent the State from

making any special provision for the advancement of any socially and educationally

backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.

Article 31(5)(b)(ii) states that nothing in Article 31(2) shall affect the provisions of any

law which the State may make for the promotion of public health. Article 33 speaks of

law with regard to members of the Armed Forces charged with the maintenance of public

order, so as to ensure the proper discharge of their duties and the maintenance of

discipline among them and for that purpose the operation of some fundamental right in

Part III is modified.

1081. The Solicitor General rightly said that similarly Article 31C creates a legislative

field with reference to the object of legislation. It is similar to laws contemplated in

Article 15(4), Article 31(5)(b)(ii) and Article 33. Each of these Articles carves out an

exception to some Article or Articles conferring fundamental rights. The field carved out

by the various Articles are of different dimensions. The entire process of exception of the

legislative field from the operation of some of the Articles relating to fundamental rights

is the mandate of the Constitution. It is wrong to say that the Constitution delegates

power of amendment to Parliament or the States. As a result of the 25th Amendment the

existing legislative field is freed from the fetters of some provisions of Part III of our

Constitution on the legislative power.

1082. Article 31C substantially operates in the same manner in the industrial sphere as

Article 31A operates in the agrarian sphere. The problems are similar in nature though of

different magnitude. The Constitutional method adopted to solve the problem is similar.

The Solicitor General is correct in summing up Article 31C as an application of the

principles underlying Articles 31(4) and 31(6) and Article 31A to the sphere of

industry.

1083. A class of legislation can be identified and the legislative field can be carved out from the operation of fundamental rights or some of those can be excluded by a provision of the Constitution. Articles 31(4) and 31(6) identify the laws with reference to the period during which they were made. Article 31(4) relates to a bill pending at the commencement of the Constitution in the legislature of a State to have been passed by such legislature and to have received the assent of the President to be not called in question on the ground that it contravenes Article 31(2). Article 31(6) relates to law of the State enacted not more than 18 months from the commencement of the Constitution to be submitted to the President for his certification and upon certification by the President not to be called in question on the ground of contravention of Article 31(2). Articles 31(2) and 31A identify the legislative field with reference to the subject matter of law. Articles 15(4) and 33 and Article 31(5)(b)(ii) identify laws with reference to the objective of the legislature. The exceptions to some part or some Articles of Part III of the Constitution is created by the Constitution and any law which is made pursuant to such power conferred by the Constitution does not amend the operation or application of these Articles in Part III of the Constitution. The crux of the matter is that modification or exception regarding the application of some of the Articles in Part III is achieved by the mandate of the Constitution and not by the law which is to be made by Parliament or State under Article 31C. Therefore, there is no delegation of amending powers. There is no amendment of any Constitutional provision by such law.

1084. The Constitution First Amendment Act 1951 introduced Articles 31A and 31B and Schedule 9 which are to be read together. Article 31A excluded a challenge under the whole of Part III for the laws of the kind mentioned in that Article. Article 31B retrospectively validated laws mentioned in Schedule 9 from challenge under Part III and also on the ground that they violated Section 299 of the Government of India Act, 1935. It may be stated here that Parliament which passed the Constitution First Amendment Act 1951 was the Constituent Assembly functioning as a legislature, till elections were held and a Parliament as provided for under the Constitution could be formed. Articles 31A and 31B carried out the intention of the framers of the Constitution as stated in Articles 31(4) and 31(6) that land legislation or agrarian reform was to be

enforced and fundamental rights were not to be allowed to stand in the way of implementing the Directive Principles of State Policy contained in Article 39. The fundamental right conferred under Article 31(2) was subordinated to Article 39(b) and (c) in order to protect laws referred to in Article 31(4) and 31(6). When that object failed and the law was struck down under Article 14, Parliament gave effect to the policy underlying Articles 31(4) and 31(6) by excluding a challenge under every Article in Part

III. In the Bihar Land Reforms case this Court said that the purpose behind the Bihar

Land Reform Act was to bring about a reform of the land distribution system in Bihar for

the general benefit of the community and the legislature was the best judge of what was

good for the community and it was not possible for this Court to say that there was no

public purpose behind the acquisition contemplated in the statute.

1085. This Court in State of West Bengal v. Bela Banerjee 1954 S.C.R. 558 held that the

word "compensation" means just equivalent or full indemnity for the property expropriated. In Dwarkadas Srinivas v. Sholapur Spg & Wvg. Co. Ltd. 1954 S.C.R. 674

this Court struck down the law for taking over the management of Sholapur Mills on the

ground that it amounted to acquisition and since no compensation was provided for, the

law was held to be void. The Constitution Fourth Amendment Act 1955 came to remedy

the implementation of essential welfare legislation. One of the measures in the Fourth

Amendment Act was the amendment of Article 31 by making adequacy of compensation non-justiciable and the other was to amend Article 31A. The formula which had been

used in Articles 31(4) and 31(6) to exclude the contravention of Article 31(2) was

adopted with regard to adequacy of compensation. As a result of the amendment of Article 31A new categories were added to the Article and new Acts were added to the

Ninth Schedule. The 17th Amendment Act made changes in Article 31A(1) and the proviso and amended Schedule 9 by inserting new Acts therein.

1086. The successive amendments of the Constitution merely carried out the principle

embodied in Article 31 Clauses (4) and (6) that legislation designed to secure the public

good and to implement the Directives under Article 39(b) and (c) should have priority

over individual rights and that therefore fundamental rights were to be subordinate to

Directive or State Policy.

1087. Article 31(2) as it originally stood spoke of compensation for acquisition or

requisition of property. The meaning given to compensation by the Court was full market

value. There was no scope for giving effect to the word "compensation". There was no

flexibility of social interest in Article 31(2). Every concept of social

interest became irrelevant by the scope of Article 13(2). It is this mischief which was sought to be remedied by the 25th Amendment. If Directive Principles are to inter-play with Part III legislation will have to give expression to such law. Parts III and IV of the Constitution touch each other and modify. They are not parallel to each other. Different legislation will bring in different social principles. These will not be permissible without social content operating in a flexible manner. That is why in the 25th Amendment Article 31(2) is amended to eliminate the concept of market value for property which is acquired or requisitioned.

1088. If compensation means an amount determined on principles of social justice there will be general harmony between Part III and Part IV. Secondly, if compensation means market price then the concept of property right in Part III is an absolute right to own and possess property or to receive full price, while the concept of property right in Part IV is conditioned by social interest and social justice. There would be an inherent conflict in working out the Directive Principles of Part IV with the guarantee in Part III. That is why Clauses (4) and (6) of Article 31 illustrate the vital principle that to make effective a legislative effort to bring about changes in accordance with Directive Principles particularly those contained in Article 39(b) and (c) Article 31(2) may have to be abridged. The social interest and justice may vary from time to time and territory to territory and individual rights may have to be limited.

1089. Just as the amount can be fixed on principles of social justice the principles for determining the amount can be specified on the same consideration of social justice. Amount is fixed or the principles are specified by the norm of social justice in accordance with Directive Principles.

1090. In amending Article 31(2) under the 25th Amendment by substituting the word "amount" for "compensation" the amount fixed is made non-justiciable and the jurisdiction of the Court is excluded because no reasons for fixing such amount would or need appear in the legislation. If any person aggrieved by the amount fixed challenges the Court can neither go into the question of adequacy nor as to how the amount is fixed. If adequacy cannot be questioned any attempt to find out as to why the particular amount is

fixed or how that amount has been fixed by law will be examining the adequacy which is forbidden as the Constitutional mandate. If one alleges that the amount is illusory one will meet the insurmountable Constitutional prohibition that the adequacy or the alleged arbitrariness of the amount fixed is not within the area of challenge in courts. 1091. The amount fixed is not justiciable. The adequacy cannot be questioned. The

correctness of the amount cannot be challenged. The principles specified are not justiciable.

1092. If on the other hand, the legislature does not fix the amount but specifies the principles for determining the amount, the contention that principles for determining the amount must not be irrelevant loses all force because the result determining the amount

by applying the specified principles cannot be challenged on the ground of inadequacy. If

principles are specified for determining the amount and as a result of the application of the principles the result is less than the market value it will result in the same question

of challenging adequacy.

1093. The relevancy of the principles cannot be impugned. Nor can the reasonableness of the principles be impeached.

1094. Article 14 has the flexibility of classification. Article 19 has the flexibility of reasonable restrictions. Social justice will determine the nature of the individual right and

also the restriction on such right. Social justice will require modification or restriction of

rights under Part III. The scheme of the Constitution generally discloses that the principles of social justice are placed above individual rights and whenever or wherever it

is considered necessary individual rights have been subordinated or cat down to give effect to the principles of social justice. Social justice means various concepts which are

evolved in the Directive Principles of the State.

1095. The 25th Amendment has amended Article 31(2) and also introduced Article 31(2B) in order to achieve two objects. The first is to eliminate the concept of market

value in the amount fixed for acquisition or requisition of the property. The second is to

exclude in Clause (2B) of Article 31 the applicability of Article 19(1)(f). Articles 31A

and 31B applied to acquisition and requisition of property. The purpose of Article 31C is

to confer by Constitutional mandate power on Parliament and State to make laws for

giving effect to Directive Principles. The significance of the total exclusion of Part III

from Articles 31A and 31B is that it brings about in unmistakable manner the true relationship between the provisions of Part IV and Part III of the Constitution. 1096. With reference to land legislation subordination of fundamental rights of individual to the common good was clear in Clauses (4) and (6) of Article 31. It was made clearer by the Constitution First Amendment Act which introduced Articles 31A, 31B and Schedule 9. Articles 31A, 31B, Schedule 9 and Article 31C merely removed the restrictions which Part III of the Constitution imposes on legislative power. Article 31A after the Fourth Amendment removed the restrictions on legislative power imposed by Articles 14, 19 and 31. In enacting Clauses (b), (c) and (d) in Article 31A Parliament was giving effect to social control which though less urgent than land reform became in course of time no less vital. Article 31B by the First Amendment retrospectively validated the laws specified in Schedule 9 by retrospectively removing all invalidity from the law because of the transgression of rights in Part III. Again, the seven new Acts added in the Ninth Schedule by the Fourth Amendment Act had nothing to do with agrarian reform, but dealt with subjects of great national importance. The Constitution Fourth Amendment Act was intended to remove the barriers of Articles 14, 19 and 31(2) in respect of land legislation considered essential for public good. 1097. State legislatures cannot remove the fetter. They have no power to amend the Constitution. Parliament cannot remove the fetter by ordinary law. By amendment of the Constitution Parliament can remove the fetter by either deleting one or more fundamental right or rights or by excluding certain laws or certain kinds of laws from the fetter. 1098. The pattern of Articles 31A, 31B, the Ninth Schedule and Article 31C is best understood by the observations of Patanjali Sastri, C.J. in Shankari Prasad case and of Wanchoo, J. in Golak Nath case. Patanjali Sastri, C.J. said in Shankari Prasad case "Articles 31A and 31B really seek to save a certain class of laws and certain specified laws already passed from the combined operation of Article 13 read with other relevant Articles of Part III. The new Articles being thus essentially amendments of the Constitution have the power of enacting them. It was said that Parliament could not validate the law which it has no power to enact. The proposition holds good whether the validity of the impugned provision turns on whether the subject matter, falls within or without the jurisdiction of the legislature which passed it. But to make law, which

contravenes the Constitution, Constitutionally valid is a matter of Constitutional amendment and as such it falls within the exclusive power of Parliament". Wanchoo, J. said of Article 31B "The laws had already been passed by the State legislature and it was their Constitutional infirmity, if any, which was being cured by the device adopted in Article 31B read with the Ninth Schedule.... Parliament alone could do it under Article 368 and there was no need for any ratification under the proviso for amendment of Part III is not entrenched in the proviso". 1099. The conclusiveness of declaration introduced by the 25th Amendment in a law under Article 31C is to be appreciated in the entire context of Article 31C. In removing restrictions of Part III in respect of a law under Article 31C there is no delegation of power to any legislature. There is only removal of restriction on legislative power imposed by Articles 14, 19 and 31. Article 31C does not confer any power to amend the Constitution. The exclusion of Article 31 is a necessary corollary to protecting the impugned law from challenge under Articles 14, 19 and 31 because Article 13(2) would but for its exclusion in Article 31C render such laws void. The declaration clause is comparable to Section 6(3) of the Land Acquisition Act "1894 which contains a conclusive evidence clause that declaration shall be conclusive evidence that the land is needed for a public purpose and for a company as the case may be. A conclusive declaration would not be permissible so as to defeat a fundamental right. In Article 31(5) it is provided that nothing in Clause (2) shall effect (a) the provisions of any existing law other than a law to which the provisions of Clause (6) apply and since the Land Acquisition Act 1894 is an existing law the conclusive declaration clause prevails and is not justiciable. See Babu Barkya Thakur v. The State of Bombay and Ors. (1961) 1 S.C.R. 128. The same view was reiterated by this Court in Smt. Somavanti and Ors. v. The State of Punjab and Ors. (1963) 2 S.C.R. 774 that a declaration under the Land Requisition Act was not only conclusive about the need but was also conclusive for the need was for a public purpose. 1100. Conclusive proof is defined in the Indian Evidence Act. It is, therefore, seen that the legislative power carries with it the power to provide for conclusive proof so as to oust the jurisdiction of a Court. The declaration is for the purpose of excluding the process of evaluation of legislation on a consideration of the virtues and defects with a view to seeing if the laws has led to the result intended. If a question arises

as to whether

r

a piece of legislation with such declaration has a nexus with the Directive Principles in

Article 39(b) and (c) the Court can go into the question for the purpose of process of

identification of the legislative measure on a consideration of the scope and object and

pith and substance of the legislation. Therefore, the 25th Amendment is valid.

1101. A contention was advanced on behalf of the petitioner that Article 31B applies to

agrarian reforms or in the alternative Article 31B is linked to Article 31A and is to be

read as applying to laws in respect of five subject matters mentioned in Article 31A. The

13 Acts mentioned in the Ninth Schedule as enacted by the First Amendment Act, 1951

dealt with estates and agrarian reforms. There is nothing in Article 31B to indicate that it

is linked with the same subject matter as Article 31A. In the Bihar Land Reforms case

Patanjali Sastri, C.J. said at pp. 914-915 of the report (1952 S.C.R. 889) that the opening

words of Article 31B are only intended to make clear that Article 31A should not be

restricted in its application by reason of anything contained in Article 31B and are not in

any way calculated to restrict the application of the latter Article or of the enactments

referred to therein to acquisition of estates.

1102. In Vishweshwar Rao v. State of Madhya Pradesh 1952 S.C.R. 1020 it was urged

that Article 31B was merely illustrative of Article 31A and as the latter was limited in its

application to estates as defined therein Article 31B was also similarly limited. That

contention was rejected and it was said that Article 31B specifically validates certain

Acts mentioned in the Schedule despite the provisions of Article 31A and is not illustrative of Article 31A but stands independent of it.

1103. Again, in Jeejibhoy v. Assistant Collector (1965) 1 S.C.R. 616 it was contended

that Articles 31A and 31B should be read together and if so read Article 31B would only

illustrate the cases that would otherwise fall under. Article 31B, and, therefore, the same

construction as put upon Article 31B should apply to Article 31A. This Court did not

accept the argument. It was said that the words "without prejudice to the generality of the

provisions contained in Article 31A" indicate that the Acts and Regulations specified in

the Ninth Schedule would have the same immunity even if did not attract Article 31A of

the Constitution. If every Act in the Ninth Schedule would be covered by Article 31A,

Article 31B would be redundant. Some of the Acts mentioned in the Ninth Schedule, namely, items 14 to 20 and many other Acts added to the Ninth Schedule, do not appear

to relate to estates as defined in Article 31A(2) of the Constitution. It was, therefore, he

ld

in Jeejibhoy case that Article 31B was a Constitutional device to place the specific statute

beyond any attack on the ground that they infringe Part III of the Constitution. 1104. The words "without prejudice to the generality of the provisions contained in

Article 31A" occurring in Article 31B indicate that Article 31B stands independent of

Article 31A. Article 31B and the Schedule are placed beyond any attack on the ground

that they infringe Part III of the Constitution. Article 31B need not relate to any particular

ar

type of legislation. Article 31B gives a mandate and complete protection from the

challenge of fundamental rights to the Scheduled Acts and the Regulations.

Article 31A

protects laws in respect of five subject matters from the challenge of Articles 14, 19 and

31, but not retrospectively. Article 31B protects Scheduled Acts and the Regulations and

none of the Scheduled Acts are deemed to be void or even to have become void on the

ground of contravention of any fundamental right.

1105. The validity of the Constitution 29th Amendment Act lies within a narrow compass. Article 31B has been held by this Court to be a valid amendment.

Article 31B

has also been held by this Court to be an independent provision. Article 31B has no

connection with Article 31A. The Bihar Land Reforms case and Jeejibhoy case are well

settled authorities for that proposition. It, therefore, follows that Mr.

Palkhivala[™]s

contention cannot be accepted that before the Acts can be included in the Ninth Schedule

requirements of Article 31A are to be complied with.

1106. For the foregoing reasons these are the conclusions.

1107. First, the power to amend the Constitution is located in Article 368.

Second, neither

the Constitution nor an amendment of the Constitution can be or is law within the

meaning of Article 13. Law in Article 13 means laws enacted by the legislature subject to

the provision of the Constitution. Law in Article 13(2) does not mean the Constitution.

The Constitution is the supreme law. Third, an amendment of the Constitution is an

exercise of the constituent power. The majority view in Golak Nath case is with respect

wrong. Fourth, there are no express limitations to the power of amendment.

Fifth, there

are no implied and inherent limitations on the power of amendment. Neither the Preamble

nor Article 13(2) is at all a limitation on the power of amendment. Sixth, the power to amend is wide and unlimited. The power to amend means the power to add, alter or repeal any provision of the Constitution. There can be or is no distinction between essential and in-essential features of the Constitution to raise any impediment to amendment of alleged essential features. Parliament in exercise of constituent power can amend any provision of this Constitution. Under Article 368 the power to amend can also be increased. The 24th Amendment is valid. The contention of Mr. Palkhivala that unlimited power of amendment would confer power to abrogate the Constitution is rightly answered by the Attorney General and Mr. Seervai that amendment does not mean mere abrogation or wholesale repeal of the Constitution. The Attorney General and Mr. Seervai emphasised that an amendment would leave an organic mechanism providing the Constitution organisation and system for the State. If the Constitution cannot have a vital growth it needs must wither. That is why it was stressed on behalf of the respondents that orderly and peaceful changes in a Constitutional manner would absorb all amendments to all provisions of the Constitution which in the end would be "an amendment of this Constitution".

1108. The 25th Amendment is valid. The adequacy of amount fixed or the principles specified cannot be the subject matter of judicial review. The amendment of Article 31(2B) is valid. Article 31(2) is self contained and Articles 31(2) and 19(1)(f) are mutually exclusive. Amendment of fundamental right prior to the amendment was and is now after the 24th Amendment valid. Article 31C does not delegate or confer any power on the State legislature to amend the Constitution. Article 31C merely removes the restrictions of Part III from any legislation giving effect to Directive Principles under Article 39(b) and (c). The power of Parliament and of State legislatures to legislate on the class of legislation covered by Article 31C is rendered immune from Articles 14, 19 and 31.

1109. The inclusion of the Kerala Act 35 of 1969 and the Kerala Act 25 of 1971 by the 29th Amendment in the Ninth Schedule is valid. Article 31B is independent of Article 31A.

1110. In the result the contentions of Mr. Palkhivala fail. Each party will pay and bear its

<http://JUDIS.NIC.IN>

SUPREME COURT OF INDIA

Page 205 of 502

own costs. The petitions will be placed before the Constitution Bench for disposal in accordance with law.